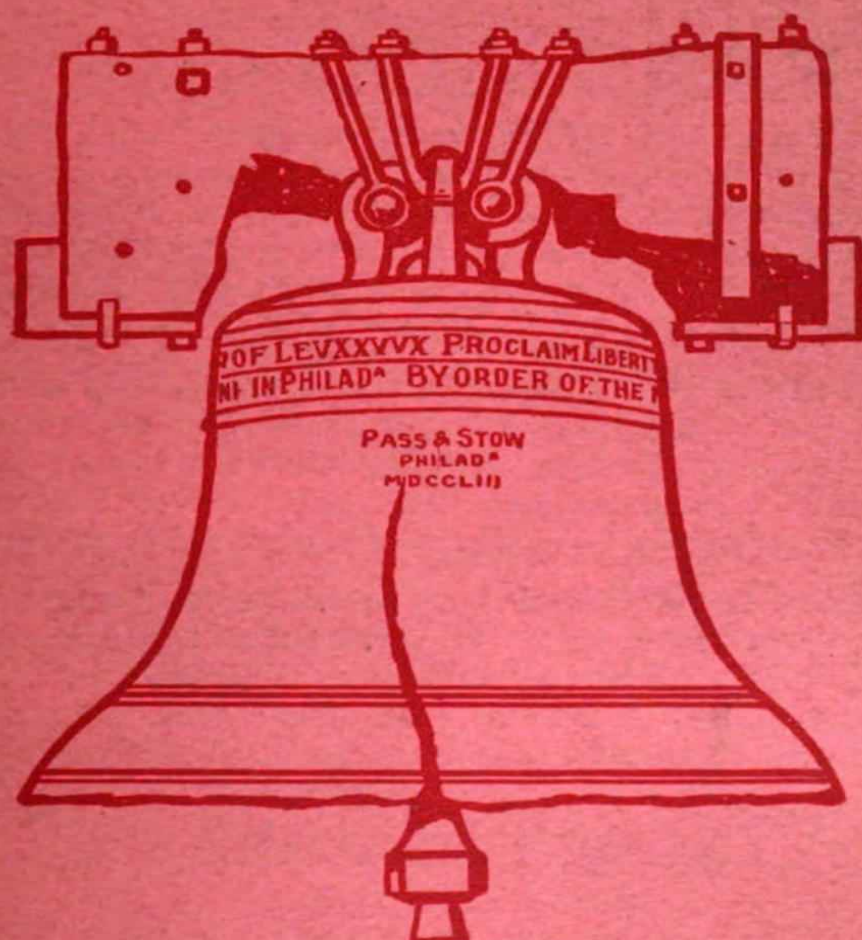


VOL. I, NO. 2

APRIL, 1905

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TOM WATSON'S MAGAZINE



MONTHLY

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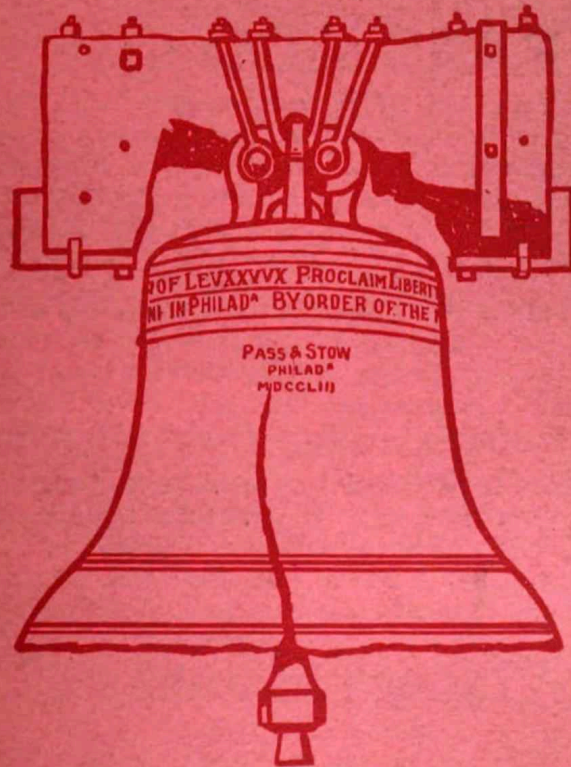
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TOM WATSON'S MAGAZINE

THE MAGAZINE WITH A PURPOSE BACK OF IT

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TOM WATSON’S MAGAZINE

VOL. I

APRIL, 1905

No. 2

Politics and Economics

BY THOMAS E. WATSON

In Russia

“**A** TALE of Two Cities,” written by the great novelist, Charles Dickens, contains a vivid picture, which shows the relation existing between a nobleman of the Old Order in France and one of the common people.

In that day the streets were narrow. Sidewalks did not separate the space used by those who went on foot from that used by those who went in vehicles. From the houses on the one side to the houses on the other, travel was free to all: those on the ground were ever in danger from those who were in vehicles.

Dickens describes the progress of the carriage of one of the French aristocrats, driven at headlong speed along these narrow streets. It whirled around the corners with a wild rattle and clatter, and with an utter lack of consideration for pedestrians. Women and children scattered, screaming, to get out of its way, and men clutched at one another to escape the danger.

At last, whirling round a corner, by a fountain, one of the wheels of this furiously driven carriage strikes a little child and kills it. Amid the loud cries of those who behold the sickening spectacle the horses rear and plunge and the carriage comes to a standstill. The nobleman looks out and calmly inquires what has gone wrong. He is told that a child has been run over.

A man is bending over the lifeless form, screaming with grief.

“Why does he make that abominable noise?” asks the nobleman.

“Pardon me, Monsieur le Marquis, it was his child,” explains one of the crowd humbly.

“Killed!” screams the father, lifting and extending his arms. “Dead!” he cries.

The Marquis runs his eye over all the rabble, as though they were so many rats come out of their holes. He draws out his purse.

“I do not see why it is that you people won’t take care of yourselves and children? One or the other of you are always in the way. HOW DO I KNOW THAT YOU HAVE NOT INJURED ONE OF MY HORSES?”

With this he throws a gold coin on the ground beside the father of the child.

The crazed parent continues to scream: “Dead! Dead!”

As the Marquis is driving away, the gold coin which he had thrown to the ground is flung back into the carriage, and falls rattling at his feet.

“Hold!” says the Marquis. “Hold the horses! Who threw that coin?”

The crowd makes no answer. No blouse-clad man dare look him in the eye.

“You dogs!” says the Marquis smoothly; “I would ride over any of you very willingly and exterminate you from the earth. If I knew who it was that threw that coin I would have the brigand crushed under the wheels.”

So cowed were they, so long and hard had been their experience of what such a man could do to them, that not a voice or a hand or an eye was raised.

Such was the condition of the French before the great Revolution of 1789; and while the picture is drawn by a novelist, it is the picture of a novelist who painted human life and human conditions as they were never painted before. His pictures were photographs.

In another book, not a novel but a history, (the title and the author of which shall not be mentioned here), there is another description of human relations under the *Ancien Régime*, and that description claims to be literally true. I quote the author’s own words:

“Was it not in this same year, 1788, that the Duke of Béthune’s carriage, dashing through the narrow streets, as was the aristocratic custom, ran over a little girl in the rue de la Ferronnerie and killed her?”

“Did not the mother see it all? Did not she rush wildly to the scene, snatch up the poor crushed form, gaze distractedly into the eyes for light *and see none*, lay her cheek to that of the child to feel the warmth of life *and feel none*?

“Still was the little heart, gone the breath, blanched the cheeks, frozen the tiny hands.

“What sound does the ear ever hear like that of the voice that was heard of old in Ramah?

“Shriek after shriek split the air, piercing every heart in the crowd that gathered as the frantic mother, holding her dead child in her arms, gave voice to her grief.

“*And the Duke, what said he?* ‘LET THE WOMAN COME TO MY HOUSE, AND SHE SHALL BE PAID FOR HER LOSS.’

“He had not even left the carriage; *he had not spoken a word of sympathy or regret.*

“In his view of the case he had done some damage to this woman, and, being a man of honor, he was ready to settle the bill.

“That was all. ‘Drive on, coachman!’—and never a thought more did the Duke waste on the mother or child. *They were not of his world, but of another and a lower.*”

This was more than one hundred years ago. Ever since that time we have supposed that the human race has been advancing onward and upward toward a higher and a better civilization.

The philosopher has reflected and advised. The statesman has studied and planned. The reformer has made his battle-axe ring at the door of every abuse.

Learning has spoken from all our schools. Religion has preached from all our temples; and yet in one of the nations of Europe, where the king and the priest have had absolute control of the minds and the bodies of the people for hundreds of years, the point of view of the aristocrat is precisely the same that it was in France in the year 1788. And the man of the common people submits humbly in 1905 just as he did in 1788.

In Russia no man's conscience is his own; it belongs to the Church. In Russia no man's action is free; he belongs to the State. The Czar rules by "*Divine Right*." He is the earthly representative of *the Most High God*; the common people of the land are mere dirt under his feet, being of a different world and a lower.

A few Sundays ago his people, in the belief that his heart—the heart of their "Little Father"—was accessible to pity and to the plea for justice, were coming in peaceful procession, accompanied by their wives and their children, to kneel at his feet, lift up their supplicating hands, and, with their own tongues, reach his ear with the true story of their grievances.

Their Little Father refused to see them or hear them.

Their Little Father threw a glittering line of steel between himself and his "children." The Little Father ordered, "*Fire!*" and his children fell before the storm of lead.

They were shot down like dogs; women and children were sabered or crushed under the iron-shod feet of horses; they were scourged back to their hovels, their cellars, their sweltering dens.

And the hundreds of dead bodies which littered the streets were thrown into the river like so much carrion.

A few days afterward it was considered good politics by the Grand Dukes who control this contemptible little Czar to grant a hearing to a deputation representing these same laborers.

The whole world had been aroused to anger and indignation at the manner in which the Cossacks had massacred the people.

Public sentiment had made itself felt even in the inner circles of the heartless oligarchy which controls the Russian Empire.

Therefore the Czar was told to receive the deputation, and he did so. The deputation bowed down to the earth before the Czar, who said: "*Good day, my children*. I have summoned you to hear my words, and to communicate them to your companions. The recent unfortunate events were *the inevitable results of your own lawless actions*. Those who induced you to address this petition to me desire to see you revolt against me and my

government.” After a few more words of the same complacent character, this representative of God on earth said to the delegation:

“I am convinced of *the innocence of the workingmen*, and believe that *they* are well disposed toward me. I WILL PARDON THOSE TRANSGRESSORS. RETURN AGAIN TO YOUR WORK. MAY GOD ASSIST YOU.”

The history of the world has so many revolting passages that I cannot say that this Russian episode surpasses others, but when the head of a great Christian government tunes his tongue to the formula of Divine Right which was current during the Dark Ages, and gives us a dash of medievalism, to be reported by a special correspondent in the daily newspapers, there is something so anomalous about the situation that it makes a peculiar impression of its own.

At least 2,000 of this emperor’s “children” had been butchered in cold blood for the high crime of wishing to present a petition to him for shorter hours of labor and a more liberal recognition of their status as human beings.

“May God assist you,” says the Czar—leaving it to the benighted minds of these untutored workmen to find out how it is that God is going to assist them, when the representative of God on earth shoots them down by the thousand, tramples them beneath the hoofs of Cossack horses, slashes them with Cossack sabers, pierces them with Cossack lances, lashes them with Cossack scourges, and sends them bleeding and howling back to their hopeless homes and miserable lives, for no offense other than the wish to kneel at his feet and pray for better treatment.

“I FORGIVE YOU!” says the Czar.

Forgives them for what?

For being denied the right to petition the throne, for being driven back into serfdom, for being hacked and slashed and trampled and bullet-riddled by the hireling savages of a barbarian government!

“As the Great Father above forgives, so I, your Little Father, forgives.”

Amen. Let the whimpering wretch who nurses a saber-slashed head recover in peace. *He is pardoned for having been Cossacked.*

Let the father who drags his lifeless daughter from under the hoofs of the warhorse go weep over her in comfort—he and she are *forgiven for having dared to hope for mercy from the Czar*.

And the nameless dead who went forth that Sabbath morning, following the heroic priest whose baton was the Cross of Christ—went forth in the glow of lofty purpose and pathetic hope, and whose bodies are now feeding the fishes of the Neva—let them also rest in peace—their *Little Father has forgiven them*.

“How do I know that you have not injured my horses?” asked Dickens’s Marquis, while the frantic peasant was lamenting his crushed child.

“Let the woman come to my house; she shall be paid. Drive on, coachman,” said the Duke of Béthune.

“Served you right!” says the Czar.

“Served you right!” say the Grand Dukes, speaking through the individual called Vladimir.

“You should not have quit work. You should not have asked a hearing. You got crushed by my troops. I forgive you for it. Go back to your work. Be content with your lot. May God assist you.”

Thus the voice of class-rule speaks in Russia today as it spoke in France on the eve of the Revolution, and as it always has spoken in every part of the world *since man learned the trick of enslaving his brother*.

As everybody knows, the real governors of the vast empire of Russia are the Grand Dukes. The Czar is a mere puppet in their hands. When he is obedient they control him. When he is disobedient they murder him. Thus they killed Paul, the father of Alexander the First, because he favored an alliance with Napoleon Bonaparte, while the Grand Dukes favored an alliance with Great Britain. They would “remove” the present emperor if he were to pit his will against theirs.

The spokesman of the present cabal of Grand Dukes is Vladimir, as perfect a type of the cruel, obstinate, narrow-minded aristocrat as Europe ever saw in its worst days.

Speaking to Michael Davitt, the Irish member of the British Parliament, this Grand Duke declared that the reason why representation could not be given to the common people of Russia was that *they were not fit to exercise it*.

He regarded and intended this to be an indictment against the common people. On the contrary, it is a tremendous indictment against the government.

The Russian people, as distinguished from the Russian aristocracy, have been completely under the control of the laws and the administration which the ruling class saw fit to establish. The altar and the throne have supported each other. Church and State have been firm and fast allies. Ever since the days of Peter the Great the minds and the consciences of the common people of Russia have been absolutely dominated by the ruling class.

The shepherds have had full control of the flock. The guardians have had no interference with the education of their wards.

If after so many hundreds of years the mass of the Russian people are so steeped in ignorance and superstition that they are unfit to exercise the common rights of manhood, *that fact, if it be fact, damns the Russian aristocracy with the deep guilt of having debased the nation committed to its care and guidance.*

No substantial reform has ever been conceded within a state governed by king or aristocracy until the blood of sacrifice has first been shed.

Spain would grant no concessions to those who claimed freedom of conscience in the Netherlands, until years of warfare had drenched the soil of Holland with the blood of heroes, who fought and died for those principles which we carelessly and unappreciatively enjoy today.

France would loosen none of the chains which galled the peasant, until that peasant rose in his desperation and paid with his life for the liberty his descendants inherit. The king was deaf to all prayers.

The aristocracy drove from power with insults and persecution every enlightened minister who proposed to better the condition of the common people by conceding moderate reforms. It was only when the desperation of

despair roused the people to a furious attack upon time-honored abuses and vested wrongs of every conceivable kind, that “*privilege*” would harken to reason, and Right could find a place on the statute-book.

In England the story has been the same. In the long procession of the ages in which the common people have wrung, one by one, from the grip of aristocracy those liberties upon which we now pride ourselves, the price of blood has been always demanded, and invariably paid. Never has king or aristocrat conceded a single demand of the reformers until those reformers had either won it in battle or had made such a demonstration as *struck fear into the hearts of the ruling class*.

In Russia precisely the same state of affairs exists, and if ever liberal institutions are to take the place of grand ducal tyranny and class-rule in that empire the soil will once more drink the blood of sacrifice. It was so in the beginning, is now, and ever will be, perhaps, for human nature is the same “yesterday, today and forever.”

The man who believes that the autocratic class in Russia will give up its advantages without a fight is a superficial student of history, just as the man who believes that the dominating trusts and corporations in these United States can be made, by moral suasion, to turn loose, is an idle dreamer who knows nothing of the greed of class-rule. No matter under what name it exploits the people, or under what form it exerts its power, or under what particular system of legislation it usurps control and veils its rascalities, to make it *turn loose* you must beat it in battle OR MAKE IT AFRAID.

“Give Them Free Passes and They Will Become as Servants”

The manner in which the railway pass can make honest men steal was never illustrated more clearly than when the Southern Railroad of J. P. Morgan, a few days ago, filched \$142,000 from the taxpayers of this country.

It was a shameless, impudent, vulgarly common steal—nothing else. The Congressmen who stole this money for the Wall Street King, J. P. Morgan, were led by the well-known statesman of Alabama, John H. Bedstead.

Many and many a year ago a stupid Post-Office Department adopted the policy of paying subsidies to certain railroads for the carriage of mails which they had already contracted to carry.

It is doubtful whether a single dollar of this money was well spent. To secure the ridiculously high prices which the government pays for the carriage of the mail, the railroads could always have been induced to contract for as speedy a delivery as was possible.

Subsidies could not make them do more. Even a stupid P. O. Department woke up to this fact, at last, and quit paying the subsidies.

Mails were carried just as fast after that as before.

The rate of payment is so high—the plum so very luscious—that the corporation could not refuse the contracts, *especially when they could borrow a rascally congressman's frank, stuff the bags with bogus mail, and thus secure a false average of weight upon which they were paid for the whole year.*

(Congressman Livingston of Georgia can tell you how this is done.)

But the Southern Railroad clung to the subsidy.

It needed the money, as Meredith of Virginia once plaintively stated in the House.

The P. O. Department no longer asked it or advised it—but certain congressmen from the South who are ravenously fond of free passes stood by the hungry corporation, and at every session of Congress this subsidy is voted.

The false pretense, used as an excuse, is that it secures *fast mail for the South*.

There is no truth in the statement. Under an ordinary contract for mail carriage, the government can secure precisely the same service as the railroad gives in return for the subsidy. In other words, the \$142,000 is a *gift to the Wall Street Monarch, J. P. Morgan*.

Hon. James H. Blount of Georgia was for many years Chairman of the Committee on Post-Offices and Post Roads.

He understood every detail of that service. He bitterly opposed this subsidy. I myself heard him denounce it in the most wrathful manner; and he declared on the floor of the House that the people got nothing whatever for it.

It was a donation—nothing more.

Blount's place in Congress is now partially filled by a different kind of man—and the indignant protest of the South against the contemplated steal was not voiced by him or by any other member from Georgia.

That honor was won by Tennessee.

When Hon. John A. Moon and John Wesley Gaines denounced this subsidy as it deserved, they earned the applause and the grateful remembrance of every honest man in the South.

The Hon. R. B. Macon of Arkansas also deserves the highest credit for his opposition to the theft.

Of course, "Slippery Jim" Richardson of Tennessee rushed to the relief of the corporation, *as "Slippery Jim" always does*, and the robbers, led by the Bedstead statesman of Alabama, prevailed.

The Congressman from Georgia, or Alabama or any other Southern state who helps Samuel Spencer and J. P. Morgan steal the taxes of the people upon the plea that it is done for the benefit of the South, merits the scorn and contempt of every decent Southern man.

But those who excuse their votes upon that pretense are hypocrites, or dupes.

They know, or should know, that the subsidy gives no benefit to the South which she would not be entitled to under an ordinary mail contract.

The Congressmen who stole this money from the treasury for Morgan's Railroad were seduced *by the indirect bribery of railway favors*—JUST THAT, and NOTHING ELSE.

Two Outlaws

Once upon a time there was a great lawyer, orator, financier and statesman who was honest. He bore himself among men with the port of a king, and even strangers, when they passed him on the streets, would stop and look back at that majestic figure with involuntary admiration. To see him was to get a new idea of the natural impressiveness of a great man. To hear him talk was to learn more than you had ever dreamed of the infinite variety of creative intellect.

I knew him well. And I looked up to him as I have since looked up to the higher summits of the Rocky Mountains—with wondering awe for height which I might never hope to reach.

Royal as this man was in all his ways, his heart was warm and true. Pure as the woman he called wife in his loyalty to the marriage tie, his morality recognized the double-life nowhere, and he scorned all that was mean and false and cruel and oppressive.

Always and everywhere he was for the under-dog.

A more stalwart soldier of Right never stood up in defense of the weak.

In a murder case he was able to command a fee of ten thousand dollars; but he was proudest of that triumph he won in the court-house when he volunteered to defend a penniless negro, and saved the life of the accused by tearing open his shirt and showing the scars which the black man had received on a battlefield in Virginia while defending the life of his young master.

Having incurred the displeasure of the Federal authorities prior to the Civil War and by certain conduct of his during that war, the best Government the world ever saw told him to “git up and git”—and he did it. In his native land he was outlawed.

He went to Europe for his health.

While waiting for the wrath of Thaddeus Stevens to cool, he studied conditions abroad—particularly the railroad systems and the public schools.

Upon his return home he created a demand for a new Constitution for his State, and in the convention which framed it he was the undisputed leader.

The legislative appropriations for the convention were spent before the Constitution was finished, and the patriots were about to disband. Average patriotism moves on its belly, as an army does.

The Georgia outlaw of whom I have been writing borrowed \$25,000 from his Cotton Factors, and financed the convention until the Constitution was finished.

On two occasions only was this Outlaw ever seen to weep in public—once when the Constitutional Convention of Georgia thanked him for his princely generosity, and once when he stood at the coffin of Alexander H. Stephens to deliver the memorial address.

In the new Constitution of Georgia the Outlaw believed he had embodied three grand provisions:

(1) He had made the looting of the treasury a difficult job.

(2) He had established a system of public schools to educate at public expense the children of the poor as well as the rich.

(3) He had put a curb on corporation tyranny; made it illegal for competitive lines of railways to combine, and had created a commission to regulate and control the transportation companies.

This was the Georgia Outlaw's proudest work. He exulted over it; he regarded it as his monument: he relied on it to benefit his people for generations to come.

In this belief he lived out the remnant of his days, and in this belief he died.

Where are now the competing railroads in Georgia?

We have none. Mergers, leases, allied interests have swallowed them all. Monopoly rules from border to border. Constitutional provisions are dead letters.

The corporations who nullify our law and plunder our people keep paid corruptionists busy all the year round to defeat investigation and reform.

When the legislature meets, these professional corruptionists all flock to the Capitol. They remain throughout the session.

If any member seeks to vindicate the outraged Constitution, these lobbyists employ every weapon known to the armory of corruptionists to kill the measure.

The campaign fund with which the present Governor beat his competitor was furnished by the railroads.

The notorious Hamp McWorter, State lobbyist for the Southern Railroad, was tendered a place on the Supreme Bench by this Governor, who owed his election to railroad money.

The Railroad Commission has been reduced to a state bordering on imbecility. If they pass orders which the corporations dislike the orders are ignored. They no more control the railroads than the saddle on a horse controls the horse.

Three excellent gentlemen draw comfortable salaries for acting as commissioners; the railroad lawyers have something to play with; the corporations are sometimes annoyed by having to evade direct answers to troublesome questions, and by having to get a Federal Judge to discipline the Commission; but that is about all.

J. P. Morgan is the absolute king of the railroads of Georgia.

He makes the Governor, controls the Legislature, overrides the Commission and tramples the Constitution of the State under his feet.

The Georgia Outlaw made the Constitution for the good of the people; the Wall Street Outlaw violates it for the good of Wall Street plutocrats.

In making the Constitution, the Georgia Outlaw had the help of the best people of the State, and his work was sanctioned by a popular vote after it was finished.

In violating the Constitution, J. P. Morgan has the aid of the worst men in Georgia, and they dare not submit their work to a free vote of the people.

The party machinery of the Democratic party is prostituted to the vile uses of the corporation lobbyists, and the negro vote is held in reserve to be used as a club to beat down any organized opposition.

The Georgia Outlaw who made our Constitution was a Democrat; the Wall Street Outlaw who violates it is a Republican.

Georgia is a Democratic state. The Democratic party is in full control of every branch of the Government.

Thus we have an amazing spectacle. A Republican Wall Street outlaw uses the machinery of the Democratic party in Georgia to trample upon the Constitution and plunder the people.

What is the secret of this astonishing situation?

Bribery—direct and indirect BRIBERY.

Daily and weekly newspapers subsidized; rebates given to certain shippers; favors granted where they will do the most good; campaign funds supplied to needy candidates; free passes dealt out by the bushel; princely salaries paid to plausible lobbyists.

Bribery, *bribery*, BRIBERY!

In no other way can you account for such a shocking state of affairs.

When Democrats hold down a Democratic State while a Wall Street Republican robs it, there is just one explanation—only one—BRIBERY.

Building on Sand, Again

With a strenuous rush and clang and clatter, President Roosevelt has set out to solve the Railroad Problem.

All honor to him for the motive. To his everlasting credit be it remembered that he recognized the abuses of the present system and shouldered the task of reform.

But Mr. Roosevelt's remedy will never reach the seat of the disease.

In a case of blood poison, shin-plasters for surface abrasions never yet saved the patient; and Mr. Roosevelt's plans for another tribunal *to control the railroads* are mere shin-plasters.

The trouble is that *the corporations will control the new tribunals*, just as they have controlled the old ones.

The tremendous pressure which combined capital can bring to bear upon any tribunal which Congress creates will be irresistible in the future,

as it has been in the past. Poor human nature is simply unable to withstand temptations which assume so many seductive forms, and intimidations which assail natural weakness in such a variety of ways. So vast is the power of the corporations to reward or punish, enrich or impoverish, that individuals sink into nothingness by comparison. No man is beyond their reach. If they cannot act upon the official himself, they can strike him through his family, or relatives, or friends, or business connections.

Somewhere, within the little world in which he lives, they will find someone who will yield to their temptations or surrender to their power to hurt.

Railroads have been known to do great things for the son of a Judge who was about to try an important case.

Governors, Senators, Judges, Railroad Commissioners sometimes have relatives who are more or less willing to get hold of a good thing.

The wives of the same sometimes have approachable kinsmen who, for a consideration, are willing to speak superciliously of the “demagogues” who assail corporations.

Then, again, the newspapers—those busy bees!—can be so trained by corporation cunning that they will give us their sting instead of their honey.

If Sir Statesman votes with a serene disregard for Sir Demagogue, giving the railroads what they want, Editorial prowess will take care of him. His praises will resound, until his sublime head bumps against the stars. But should he be his own master, obeying no orders save those of his conscience, the corporation organs can so belittle him, slander him, and manufacture lies about him, that he almost grows ashamed of having been honest.

In short, the corporation can make “a good time” for those who serve it, and “a bad time” for those who defy it.

Do not all men know this?

The more necessary any official is to combined capital, the more they will do for him, or against him.

Create any tribunal which becomes an absolute necessity to the corporations—a matter of life and death to them—and they will either

tempt it with bribes which no virtue can resist, or assail it with intimidations which no courage can defy.

Mr. President, have you studied the history of “The Granger Cases” of thirty years ago? If not, study it. Then you will know better how the corporations control human tribunals and get rid of laws which are obstacles.

Have you studied the recent decisions of the Federal Judges on the question of fixing “reasonable rates”? If not, study them.

You will then know better what a monkey a railroad lawyer can make of a Federal Judge.

To create another tribunal for the purpose of controlling the railroads, is simply the building of another house upon sand.

The only solution of the Railroad Problem is national ownership, *which takes away the motive to do wrong.*

In no other way can you cure the disease.

Instead of establishing another Court, or Commission, for the corporations to play with, assert the principle of Eminent Domain, assess the railroads at a fair valuation, pay for them partly in treasury notes and partly in twenty-year two per cent. bonds, place the general management of the property under the Interior Department—and *then* the railroads will no more think of free passes, rebates and discriminations than the Post-Office service does of free stamps, or privileged patrons who must be enriched at the expense of the other patrons.

Look at England

Collier's Weekly thinks that the United States should pay higher salaries. Ambassadors do not get enough. Neither do cabinet officers. The President also is underpaid. How lamentable!

“Look at England,” says *Collier's*, in effect.

England pays \$100,000 to the Lord Lieutenant of Ireland, \$35,000 to the Speaker of the House of Commons, and so forth and so on.

Well, let us accept the invitation, and *look at England*.

Who pays the taxes in England? We know who pays them here. With us the poor man pays the tax.

When he covers his nakedness, when he satisfies his hunger, when he builds his house, when he buys tools to work with, he pays an outrageously oppressive Tariff tax.

Rockefeller pays no more Federal tax than is paid by many a one-horse negro farmer in the South.

Morgan pays less Federal tax than many a Western corn-grower who fed his stove on ear corn in 1891, because it was cheaper than coal.

Blessed are our millionaires! Those of them who are neglected by Congress are tenderly cared for by the Federal judiciary.

Blessed are the rich!—they run the government, and the common man pays the bill.

LOOK AT ENGLAND!

All right, we now look. This is what we see:

She compels her railway corporations to pay an Income Tax upon the assessed valuation of \$190,000,000.

She compels the Coal Barons and the marble quarry owners to pay Income Tax upon an assessed valuation of \$95,000,000.

She compels the landlords, bankers and merchant princes to pay Income Tax upon an assessed valuation of \$900,000,000.

In this manner *she forces her wealthy classes to pay on property and income nearly two hundred million dollars annually* toward the support of the government!

Her tariff duties are levied exclusively upon articles which are NOT necessities of life.

Not a dollar of Tariff need the poor man pay to live in perfect comfort.

This tariff upon the non-necessaries amounts to \$170,000,000.

From intoxicating liquors the revenue is \$150,000,000.

Thus it will be seen, by a look at England, that *the poor man can feed himself, clothe himself, build a house to live in, and supply it with necessary furniture without having to pay one dollar of national tax.*

In this land of the free *he must pay the Tariff tax, or go naked, eat grass, and live in a hole in the ground.*

But let us “look at England” again.

We see her operating her Post-Office, carrying parcels as well as letters. She does not allow express companies to amass fortunes by robbing the people in the carrying of light freight.

Thus she makes \$70,000,000 instead of letting the corporations make five times that amount.

She owns and operates the telegraph lines, and makes \$18,000,000 per year instead of letting the corporations make it.

What, therefore, is the net result of the “Look at England”?

We discover that *the government supports itself upon the possessions of the people rather than upon their necessities.*

Give us the same system of taxation—compel *those who possess the wealth to pay the expenses of government*—and I, for one, will say, “*Make the salaries what you will so long as you, who make them, have to pay them.*”

Editorial Comments

NOTORIOUSLY, you cannot convict a cow-thief when eleven of the jury got part of the beef. Judge Swayne owes his escape to similar conditions. He was acquitted by the United States Senate not because he was innocent, but because he was regular. He had not done anything which the Senatorial Jury does not constantly do.

A railroad fell into the Federal Court of which Swayne happened to be the presiding judge. Swayne possesses and controls this railroad through the

medium of a receiver. In law and in morals Swayne is the trustee of the property, administering it for the benefit of the owners—the stockholders. Had he put his fingers into the cash-drawer at the ticket office and stolen five dollars, his crime would have been clear, indefensible. Proof of such an act would have compelled a unanimous verdict of guilty—even in the United States Senate—for Senators do not do it that way.

But Swayne knows how the game is played, and he played according to rule.

That is to say, he made use of the trust funds which were in his possession and control, to fit himself up a palace car and stock it with the best eatables and drinkables. He then took on, as a retinue of servants, the employees who were paid to work for the stockholders, and appropriated car, provisions, employees and all to his own private purposes.

With this luxurious car, upon which he had spent the trust funds committed to his care, he took himself and family on long pleasure trips to his native place in Delaware. In this rolling palace he and his family enjoyed a tour of the West.

The sum total of the trust funds which he thus converted to his own use could not have been less than thousands of dollars, for the car and its equipment would have been worth hundreds of dollars per day had it been used by its owners, the stockholders.

These facts were not denied.

In law and morals, Judge Swayne misappropriated trust funds.

He did not go to the cash-drawer at the ticket office and steal five dollars, but he took charge of the car, the supplies and the employees whose services would have put thousands of dollars into the cash-drawers, and thus converted to his own private use the property which was in his Court for management and final disposition.

Here was a plain case of dishonest use of power and opportunity.

Here was a plain case of robbery—the Federal Judge taking that which belonged to the stockholders and which should have earned them thousands of dollars.

In morals and sound law, the crime is the same as it would have been had he embezzled the same sum in dollars and cents.

The Washington *Post* argues that the President should have a salary of \$100,000.

All right. Let us levy a tax or two on the rich, and raise the salaries which the organs of the rich say are too small.

If the President is discontented with his pay, why doesn't he throw up his job?

I know several fellows who will take it at the present price.

There is W. J. B., for instance.

I haven't the faintest doubt that he would be willing to quit editing *The Commoner* and assume Presidential burdens at \$50,000 per year. It would be easier work, don't you know, than making twenty-two speeches a day for a candidate like Parker, a platform like that of St. Louis 1904, and a National Chairman like Tom Taggart—the gambling-hell man of Indiana.

Governor Folk, of Missouri, was elected to stop boodling, banish bribery and otherwise purify the political atmosphere.

A bill was promptly introduced into the Legislature to make it possible to convict and punish bribery.

The Senate promptly killed the bill.

Folk is still Governor, however.

Populists throughout the country regard with demure interest the modest strides which Kansas is taking in State-Socialism.

That Republican State is to own and operate oil refineries to the end that Rockefeller's Trust may not swallow the earth.

Besides the Kansas State refinery, the Republican legislature favors other things which are *almost* new under the sun.

No trust, corporation or private partnership shall be allowed to sell cheaper in one place than in another in Kansas—freight being deducted.

All over that State the price must be the same.

Maximum freight rates have been established, oil pipe lines have been made common carriers, and the pumping of Kansas gas out of Kansas forbidden.

Is it possible that we Populists are to find ourselves reduced to a state of mere "eminent respectability" by such thoroughgoing revolutionists as the Republicans of Kansas?

The Washington *Post* says:

"After Kansas gets her oil refinery in operation she may find that Mr. Rockefeller will not allow his railroads to carry its product."

When Rockefeller refuses to haul Kansas oil because Kansas operates a refinery he will probably discover that Kansas can do a thing or two against his railroads.

When Theodore Roosevelt was a very, very young man, he wrote a "Life of Gouverneur Morris" in which the youthful author sweepingly classified Tom Paine as "a filthy little atheist."

Now that Teddy has grown great upon the meat which Cæsar fed on, the University of Pennsylvania has conferred an Honorary Degree upon him.

This is the same institution which conferred an Honorary Degree upon Tom Paine.

So there you are.

To the extent that the University of Pennsylvania can equalize the eminence of Teddy and Tom, equality has been established.

So far as the University of Pennsylvania can link the two names together, they are linked.

Whether he likes it or not, Teddy must promenade down the corridors of time and fame arm in arm with the “filthy little atheist.”

Here is a case where that one of the Grecian philosophers who laughed at everything would weep: and where that one who wept at everything would laugh.

Tom Paine being dead cannot resent the honors paid Roosevelt by any act of renunciation aimed at the University of Pennsylvania; but Teddy lives and can defend his virtue from contaminating contact.

Will he tamely submit to wear the Academic honor tainted by the touch of Tom Paine, or will he spurn it with that disdain which condensed the career of a much-enduring, much-achieving patriot and democrat in the cruelly scornful words, “a dirty little atheist”?

Whenever, in the hour of gloom and doubt, we call upon the presidents of our world-famous colleges for guidance we get it. Which is one of the reasons why we are still in the dark.

A couple of years since, the chief sage of one of these world-famous institutions told us that Social Ostracism was the medicine for the Trust evil which would prove a cure-all.

The chief sage neglected to inform us how and when we should or could dose the wicked corporations with this medicine: hence we have not as yet socially ostracized J. P. Morgan, Ogden Armour or John D. Rockefeller.

Woodrow Wilson, chief sage of Princeton University, is the latest of the academic guides who offers to pilot us out of the gloom.

“Trusts,” remarks Woodrow (who, just between you and me, is something of a prig), “Trusts can never be abolished.”

“We must moralize them.”

“The thing that keeps water in stocks is secrecy.”

“Publicity is the remedy.”

When we hear the chief sage of Princeton droning and driveling this sort of nonsense we wonder whether his mind is fixed upon the actual men, methods and standards of today, or whether he gropes in some Arcadia of the past.

“Moralize the Trusts?”

How will you do it, impractical prig?

Mr. Rockefeller is moral, isn't he? Goes to church every Sunday, endows Baptist colleges, sends young John to teach Sabbath school and attend English revivals, prates of morality and the Bible to equal any Pecksniff that ever stole the livery of the Lord to shear the sheep in.

Yet where was there ever a more ruthless criminal on the face of the earth than Rockefeller's Oil Trust?

“The thing that keeps water in stocks is secrecy.”

No, it isn't, impractical prig.

It's water that keeps the water in the stocks.

Secrecy has nothing to do with it.

The public always knows when the watering is done!

It was so with the Steel Combine; it has been so with every railroad reorganization which Morgan has managed; it was so with Amalgamated Copper.

“Publicity is the remedy!” says Woodrow, the Sage.

How can that be?

Does the knowledge that we are being robbed stop the robbery?

There is no secrecy about the Beef Trust. Publicity there has run riot.

We know all about the Refrigerator car, the rebate, the discriminations, the Big Stick methods, the colossal, un-Godly profits.

We know how the cattle owner is robbed when the Trust buys, and how the consumer of dressed meat is robbed when he buys.

What good does the Publicity do us?

None at all.

It makes us rage and rant, but the Trust gets our money just the same.

Have not Lawson and Russell and Ida Tarbell and Lincoln Steffens and a dozen others put the flashlight upon all these monstrous piratical combinations until the very children are familiar with the details?

Publicity?

Why, if there is anything that we have got a lavish supply of, just now, *it is Publicity*.

What we haven't got is RELIEF.

If *Publicity* were a cure for the disease, we'd have been well long ago.

As it is, the evil grows worse, day by day, in spite of all the *Publicity*.

Go back to thy gerund-grinding, Woodrow—thou insufferable, impractical prig. Among the dead Greeks and the extinct Romans thy labors may, haply, be useful; but when thou comest among the practical men of today seeking to master actual conditions and to take part in the great battle of thought, motive and purpose which rages around us, thou art but “a babby, and a gal babby at that.”

Mr. Bryan says, in his *Commoner*, that “the movement begun in 1896 would have succeeded in 1900 had it not been for the Spanish War and the increase of the gold supply.”

What a superficial view!

First of all, the “movement” did not begin in 1896.

It began when the West and South were brought together by the Farmers' Alliance in 1890. It was in full swing when it gave General Weaver 1,200,000 votes in 1892. It was running like a millrace when it polled 1,800,000 in the local elections of 1894. It would have scored a triumph in 1896 had the Democratic leaders acted honestly with the Populists.

After 1896 the "movement" lost strength every day.

In 1900 it was doomed to defeat before the campaign opened.

Yes; the reform "movement" was in full swing in 1890, and one of the good things it did was to float into Congress a promising young lawyer named Bryan.

To the Populist movement W. J. B. owes his rise, for there were then no Democrats to speak of in Nebraska.

Populist votes carried his home State for him in 1896, when he ran for President against McKinley.

In 1900 Nebraska went Republican, although the same Bryan was running against the same McKinley.

They are hunting, in Paris, for the bones of John Paul Jones, the first and greatest sea captain who ever flew the Stars and Stripes from the masthead of a battleship, and "held the ocean lists against the world in mail."

Congress gives \$35,000 to find the bones, and of course they will be found—not those of the original Jones, perhaps, but a good enough lot of bones for that amount of money.

Had Gouverneur Morris, the American Minister to France, done his duty at the time of Paul Jones's death, by giving him a respectable funeral and a modest tombstone, the people of this country would not now be taxed \$35,000 to find the hero's grave.

When John Paul Jones—old, broken and poor—lay dying in Paris, our high-toned Minister to France, Gouverneur Morris, sat feasting with aristocratic company, and that high-toned Minister failed to mark the grave of a man who with Nelson's chances might have done even more than Nelson on the sea.

His grave was made in an obscure churchyard, his resting-place neglected and forgotten, covered with accumulated deposits, and built over with houses.

Those who seek the bones are sinking holes seventeen feet deep, in the search.

Of course, they will find the body of Commodore Jones. That is what they are hunting for. Therefore, they will find it.

But whether the dust they bring back to America will be that of *our* Paul Jones no mortal will ever know.

In his Diary, Gouverneur Morris relates:

“A message from Paul Jones that he is dying.

“I go thither and make his will.... Send for a Notary, *and leave him struggling with his enemy.*”

The American Minister to France left Paul Jones struggling with death!

Left him alone with a French Notary, and went away.

To do what?

To “dine with Lord Gower and Lady Sutherland”!

The American Minister knew that Paul Jones was dying, for he says so.

After the dinner with the English Lord and Lady, does the American Minister hasten back to the bedside of the fellow-countryman whom he had left “struggling with his enemy”?

By no means.

He goes to the Louvre to look at the paintings; and then takes Talleyrand's mistress with him to Jones's lodging.

“But he is dead—*not yet cold.*”

And this is all that Gouverneur Morris’s Diary records of Paul Jones’s death, until the indignation aroused in America by his shocking lack of attention to the dying hero had thrown him upon the defensive.

Who paid the burial expenses of Paul Jones?

A Frenchman claims that he did it.

Morris, in his Diary, certainly seeks to make the impression that he paid them out of Jones’s estate.

The hero left sufficient property for the purpose, as can easily be shown. Further than that we are left in doubt.

But Morris was requested to authorize a public funeral, in which fitting honors should be paid to the dead. Morris refused. He states that he (Morris) desired “a private and economical funeral.”

He got it. The funeral was so economical and so private that neither the tongue of repute, identifying the grave from generation to generation, nor the more unerring evidence of shaft or vault guides the footsteps of those who come so late, so late! to repair the neglect of a hundred years.

How Private Ownership Breaks Down

In the great city of New York there is a Subway, an underground street, which was opened at the expense of the taxpayers. Every dollar of the enormous expenditure came out of the pockets of the citizens of New York. After this Subway had been completed and paid for by the people, it was turned over to a private corporation to be used for private profit. It is unnecessary to say that such a stupendous piece of folly could never have been committed by wise men or honest men. On the face of it, the transaction reeks with rascality.

Let us, however, contemplate actual results. The men to whom the property was given operate the Subway to make all the money that is possible out of the franchise. In doing so they have come into collision with

their employees. The disagreement results in a strike. The experienced operators of the cars leave them. Inexperienced men take hold. The necessary consequence is danger to life and limb, which only the careless or reckless would incur.

The thousands of people in New York, to whom the Subway is a daily necessity, are incommoded and injured. The entire city suffers because of the dispute between the corporation and its employees.

I will not enter into the question as to who is to blame for the strike. It is sufficient to say that under private ownership of this public thoroughfare the strike does occur and all of its evil consequences naturally follow. No matter whether Belmont is right or wrong; no matter whether his employees are right or wrong, the effect upon the public is precisely the same. The public gets hurt. The public suffers and the public is helpless. Such a situation is surely sufficient to arouse thought and investigation.

Ever since we have allowed private corporations to take charge of public utilities we have had the strike, the riot, the loss of money, the loss of life. As long as private ownership continues to exploit these things which belong to the public, we will continue to have the strike, the riot, loss of money and the loss of life.

I say nothing about the amount of which the traveling public is robbed by these corporations which own the public utilities. I confine myself simply and solely to this thought, namely, that under private ownership the situation, which now confronts the traveling public of New York City, is liable to happen at any time and at any place throughout the Union where public franchises are used for selfish and private gain.

That is the fruit of the tree. It always has been; it always will be. That kind of tree will *never* bear any other sort of fruit.

Then why not cut it down?

Public ownership removes the *motive* for misuse of public utilities, and when the motive goes the evil will go. As long as selfishness and greed get *the chance* to gratify themselves at the public expense, just so long will they do it.

In every conflict between Capital and Labor the public loses—no matter whether Capital wins or Labor wins.

Public ownership would do for the railroads what it does for the Post-Office, the Police Department or the Fire Department. Who ever heard of a strike among the Post-Office employees? Or in the police force? Or among the firemen?

In Germany the railroads are owned and operated by the Government, and nobody ever heard of traffic being blocked by a strike. In Austria the story is the same. In Australia it is the same. In New Zealand it is the same. Nowhere on earth, so far as I know, has there ever been a strike when the principle of government ownership was in operation. Take those cities of England where the street cars are owned and operated by the city government. Who has ever heard of a strike on those lines? From Liverpool to Birmingham and from Birmingham to Glasgow you will find the principle of public ownership applied with perfect success, and nowhere has the operation of public utilities by the public been stopped by a strike.

It seems almost impossible for the people of our great cities to learn the lesson taught by our own troubles, and taught further by the object-lessons furnished us by nationalities which are not such cowardly slaves of the corporations as we seem to be. The most amazing feature in American life today is the audacity with which predatory corporations ride forth, like the feudal barons of olden times, to strike down the average citizen and rob him of what he makes as fast as he makes it. Individually, we have plenty of courage, but, collectively, we are the most cowardly creatures on earth. The communal spirit seems to be dead within us. Public opinion is in its infancy. The strength which lies dormant within us because of our numbers seems to be a fact of which the masses are totally ignorant.

Acting swiftly, acting with unity of purpose, acting with the keenest intelligence, acting with a magnificent courage, the outlaws of modern commercialism dash at their object with superb confidence in their prowess, and they have seized and ridden away with the spoils before the drowsy, ignorant and timid public have awakened to the fact that they have been raided, stricken down and plundered.

If the city government of New York had at its head a man “with a beard on his chin,” he could find a way to solve this Subway problem and all kindred problems within a few weeks, and in such a manner that it would never be presented again. He would have to be intelligent, he would have to

be honest, he would have to be brave, but if he had these qualities and were, besides, a patriot wishing to do what is best for the entire community, he could win a victory which would repeat itself in all the centres of our population, and which would terminate the reign of rascality which now exploits, for personal ends, the powers and the opportunities of public office in almost every great city of this Republic.

You ask me *how* could the Mayor do anything, when the Subway is legally in the hands of a Commission created by the Legislature?

I answer that the city has the right to use its streets. One of its sovereign powers, inherent and absolute, is that of keeping its streets open for the safe and free use of every citizen. Nobody has the right to block travel or traffic, nor can the Legislature grant such a privilege.

As to the Subway, it is a street under the ground. True, the *methods* which he would have to employ differ from those which he would apply to a surface street, but the *principle* would be precisely the same in the one case as in the other.

He could say to Belmont and his employees: “You are blocking the streets. You are interfering with the rights of the people who paid for the Subway and who want to use it. You and your disputes are as nothing to me in comparison with the duty which I owe to the city. *Arbitrate your difference*, or I will exert the full sovereign power of the municipality to seize the Subway and to open it to travel.

“And you needn’t run to any judge for an injunction, either. In the exercise of supreme executive authority policing the city and keeping open its streets, I shall tolerate no interference whatever from corporation lawyers or corporation judges. I give you fair warning: *Arbitrate*, and do it quickly—else the city takes what is hers, and operates the cars which you have tied up!”

Who doubts that a threat like this, made by the right kind of Mayor, would bring Belmont to his senses in a couple of minutes? Arbitrate! Of course he would arbitrate—quickly and gladly.

And the Mayor would have the enthusiastic support of ninety-nine men out of every hundred in New York.

The Patriot

HIS eyes ashine with ancient memories,
His blood aglow with subtle racial fire,
For him are quenched the stirrings of desire.
The pageant of the world has ceased to please;
Hushed are the evening songs—the lutes of ease;
In the war flame, that old ancestral pyre,
He casts his hopes of home, wife, child or sire;
Instinct of race, a passion more than these,
The spirit of his country, holds him thrall;
In him forgotten heroes, forbears, rise,
Strengthening his heart to common sacrifice;
Out of the darkness generations call
And martyr hosts, that unrecorded fall,
Salute him from the void with joyful cries.

LONDON DAILY NEWS.

The Atonement of Hustler Joe

(COMPLETE NOVELETTE)

BY ELEANOR H. PORTER

PROLOGUE

A TOY horse or a raspberry-tart is not often responsible for the loss of a life, but a succession of toy horses, raspberry-tarts, and whatever else the heart of a small boy craved, given in a reckless abandonment of superfluity, was certainly responsible for the wilfulness in the character of Paul Weston; and the wilfulness, in turn, was responsible for the quarrel.

At twenty he was a restless, impulsive, good-hearted, broad-chested, strong-limbed young fellow, the adored of his mother and the pride of his father. And yet it was over the prostrate form of this same father that he now stood—the crack of the revolver still ringing in his ears, the weapon itself still clutched in his hand.

Was the man dead? But a minute before he had been speaking; now there was a fast-growing pool of something dark and horrible on the floor at his side.

Paul Weston brushed the back of his left hand across his eyes and looked down at the still smoking revolver. Had his miserable temper brought him to this? His features worked convulsively and his eyes widened in horror. Throwing the revolver from him to the farthest corner of the room, he turned and fled.

Out the door, through the gate, and down the long street of the little New England village he ran. It was dusk, but he stumbled as though it were the darkness of midnight.

The neighbors looked and wondered at the fleeing figure, but only their eyes spoke disapproval. If Paul Weston chose to use the main street of the

village as a race-course, it was not for them to interfere—they knew him too well. The town fool alone ventured to accost him.

“Hi, there—go it! What’s after ye?” he shouted; but the jeering words and the vacant smile died on his lips at sight of the face Paul turned upon him.

Down the street, across the open field, and over the fence at a bound—surely the friendly shelter of the woods receded as he ran! But his pace did not slacken even in the dense shadows of the forest. On and on, stumbling, falling, tearing his flesh and his clothing on the thorns and brambles until, exhausted, he dropped on a grassy mound, miles away from that dread thing he had left behind him.

The wind sighed and whispered over his head. Weston had always loved the sound, but tonight it was only an accusing moan in his ears. Even the stars that peeped through the leaves above were like menacing eyes seeking out his hiding-place.

An owl hooted; Weston raised his head and held his breath. Then through the forest came the baying of a distant hound. The man was on his feet in an instant. Something tightened in his throat and his heart-beats came in slow, suffocating throbs. He knew that sound! They sought for—murderers with creatures like that! With a bound he was away on his wild race again. Hours later, the gray dawn and his nearness to a small village warned him to move more cautiously.

All that day he tramped, without rest, without food, reaching at night the seaport town that had been his goal. Skulking through the back streets he came to a cheap eating-house down by the wharves.

The odor of greasily fried meats and bad coffee floated out the open door, causing Weston to sniff hungrily. In a moment he had thrown caution to the winds, entered the restaurant and slunk into the nearest seat.

By his side lay a discarded newspaper. He reached for it with a shaking hand, then snatched his fingers back as though the printed sheet had scorched them. No, oh, no—he dared not look at it! His mind’s eye pictured the headlines, black with horror:

“MURDER! PARRICIDE! THE
FIEND STILL AT LARGE!”

He pushed back his chair and rushed from the room. An hour later he had shipped as a sailor on a vessel bound for San Francisco around Cape Horn.

I

The cracker-barrels and packing-boxes that usually served for seats in Pedler Jim's store were, strange to say, unoccupied. Bill Somers, sole representative of "the boys," sat cross-legged on the end of the counter, meditatively eying a dozen flies that were buzzing happily around a drop of molasses nearby. Pedler Jim himself occupied his customary stool behind the counter.

It was ten years now since the little hunchback pedler first appeared in Skinner Valley. He came from no one knew where, driving a battered and worn horse attached to a yet more battered and worn pedler's cart. The horse had promptly taken advantage of the stop in the village, and by dying had made sure of never leaving the place for the wearisome trail again. The miners say that the night the old horse died, its master patted and stroked the poor dead head until it was cold and stiff, and that the morning found him fondling the useless reins with his shriveled, misshapen fingers.

The next day he bartered for a tiny piece of land fronting the main street. When he had wheeled his old cart into proper position upon it, he busied himself some time with a bit of board and a paint pot, finally producing a rough sign bearing the single word "Store." This creation he nailed with much satisfaction upon the front of the dashboard, then sat down on one of the thills to wait for a customer.

Perhaps it was the oddity of the thing; or perhaps there was something in the deformed little body that appealed to the strong-limbed, straight-backed miners; or perhaps it was the wonderful knowledge of healing herbs and soothing lotions that Pedler Jim possessed—perhaps it was a little of all three. At all events, the new store prospered amazingly so that in a year its owner bought more land, trundled the old cart to the rear, and erected a small cabin on his lot. This, in turn, gave place to a good-sized frame building bearing the imposing gilt-lettered sign:

JAMES A. POWERS,
Skinner Valley Emporium.

The hunchback rolled this high-sounding title under his tongue with keen relish, but it was still “the store” to the boys, and its owner was only “Pedler Jim.”

Bill Somers shifted his position on the end of the counter and poked a teasing finger at the agitated mass of wings and legs around the molasses drop. The storekeeper grinned appreciatively and broke the silence:

“Say, who’s yer new man?”

“Blest if I know.”

“Well, he’s got a name, hain’t he?”

“Mebbe he has—then again, mebbe he hain’t.”

“But don’t ye call him nothin’?”

“Oh, we *call* him ‘Hustler Joe’; but that ain’t no name to hitch a grocery bill on to—eh, Jim?”

The little hunchback slid from his stool and brought his fist down hard on the counter.

“That’s jest the point! He don’t git much, but what he does git he pays fur—spot cash. An’ that’s more’n I can say of some of the rest of ye,” he added, with a reproachful look.

Bill laughed and stretched his long legs.

“I s’pose, now, that’s a dig at me, Jim.”

“I didn’t call no names.”

“I know yer lips didn’t, but yer eyes did. Say, how much do I owe, anyhow?”

With manifest alacrity Jim darted over to the pine box that served for a desk.

“There ain’t no hurry, Jim,” drawled Somers, with a slow smile. “I wouldn’t put ye out fur nothin’!”

The storekeeper did not hear. He was rapidly turning the greasy, well-thumbed pages of the account-book before him.

"It's jest twenty dollars and fourteen cents, now, Bill," he said, his brown forefinger pausing after a run down one of the pages. "Ye hain't paid nothin' since Christmas, ye know," he added significantly.

"Well," sighed Bill, with another slow smile, "mebbe 'twouldn't do no harm if I ponied up a bit!" And he plunged both hands into his trousers pockets.

Pedler Jim smiled and edged nearer, while Bill drew out a handful of change and laboriously picked out a dime and four pennies.

"There!" he said, slapping the fourteen cents on the counter, "now it's even dollars!"

"Well, I'll be jiggered!" cried Pedler Jim, turning his back and walking over to the window.

Somers looked after the retreating figure, and a broad smile lighted up his round red face. Slipping his hand inside his coat he pulled out a roll of greenbacks. In another minute the fourteen cents lay neatly piled on top of two ten-dollar bills. The man hastily slipped into his old position and coughed meaningly.

"Ye don't seem pleased," he began.

The hunchback did not stir.

"Mebbe ye don't want my money," hazarded the miner.

No answer.

"Oh, well, I can take it back," and Somers shuffled noisily off his seat.

Pedler Jim wheeled about and came down the store with his small black eyes blazing.

"Jiminy Christmas, man! If you ain't enough ter try a saint! I'm blest if I can git mad at ye, though, fur all yer pesterin' ways. Now what in thunder —" The storekeeper's jaw dropped, and his mouth fell open idiotically as his eyes rested on the greenbacks. "Well, I'll be jiggered!" he murmured again, and clutched the money in his claw-like fingers.

At that moment the outer door opened to admit a tall, broad-shouldered miner wearing a slouch hat well over his eyes. In a trice Pedler Jim was the obsequious merchant behind the counter.

The newcomer gave his order in a low voice and stood motionless while the hunchback busied himself in filling it.

“Anything else?” suggested Jim wistfully, as he pushed a small package toward him.

“Oh, I guess that’ll do for this time,” returned the man, picking up his purchase and motioning toward a dollar bill on the counter.

Pedler Jim looked up quickly and something like tenderness came into his eyes.

“I—guess you’re from Yankee-land, stranger; shake, won’t ye?” he said, thrusting his hand across the counter. “Gorry! but it’s prime ter see a good old New Englander among all these dagos and Dutchmen and the Lord only knows what else here. Bill an’ me was gittin’ lonesome—I’m glad ye come!”

At Jim’s first words the stranger had stepped back, but the outstretched hand had brought him to the counter again, and he gave the brown fingers a grip that made the little hunchback wince with pain. But Pedler Jim’s welcome was scarcely spoken before the man had turned and disappeared through the door.

“Well, I snum! I should think he was ‘Hustler Joe’!” murmured Jim. “If he didn’t even hustle off and leave his change,” he added, looking helplessly at the dollar bill on the counter.

Somers laughed.

“Hustle!—you’d oughter see him at the mines! why, that man works like all possessed. He don’t speak nor look at a soul of us ’nless he has to. If there’s a chance ter work extry—he gits it; an’ he acts abused ’cause he can’t work every night and Sundays to boot. Gosh! I can’t understand him,” finished Bill, with a yawn and a long stretch.

“That ain’t ter be wondered at—’tain’t ‘Hustler Bill’ that the boys call you,” replied Jim, a sly twinkle in his beady little eyes.

Somers sprang to his feet and towered over the hunchback, his fist raised in pretended wrath.

“Why don’t ye take a feller yer own size?” he demanded.

The hunchback chuckled, dove under the upraised arm, and skipped around the room like a boy. An encounter like this was meat and drink to him, and the miners good-naturedly saw to it that he did not go hungry.

Somers shook his fist at the curious little creature perched on the farthestmost cracker-barrel and slouched out the door.

II

Skinner Valley did not know very much about Hustler Joe. Six weeks ago he had appeared at the Candria coal mine and asked for work. Since that time he had occupied an old shanty on the hillside—a shanty so hopeless in its decrepitude that it had long been abandoned to bats and owls. Hustler Joe, however, had accomplished wonders in the short time he had lived there.

It was a popular belief in the town that the man never slept. Stray wanderers by the shanty had reported hearing the sound of the hammer and saw at all hours of the night. Outside the shanty loose timbers, tin cans, rags and refuse had given way to a spaded, raked and seeded lawn. The cabin itself, no longer broken-roofed and windowless, straightened its back and held up its head as if aware of its new surroundings.

This much the villagers could see; but inside it was still a mystery, for Hustler Joe did not seem to be hospitably inclined, and even the children dared not venture too near the cabin door.

It was vaguely known that the man had come over the mountains from San Francisco, and with that the most were content. Keen eyes and ears like Pedler Jim’s were not common in the community, and the little hunchback’s welcome to the man because he came from “Yankee-land” was not duplicated.

Hustler Joe had not been in the habit of frequenting the store. His dollar bill was in Pedler Jim’s hands a week before the disturbed storekeeper had an opportunity of handing back the change. The miner had forgotten all

about the money and had wandered into the store simply because each stick and stone and dish and chair at home was in its place and there was absolutely nothing for his nervous fingers to put in order.

Joe pushed open the door of the “emporium,” then halted in evident indecision. A dozen miners were jabbering in half as many languages over by the stove, huddled around it as though the month were January instead of June, and the stove full of needed heat instead of last winter’s ashes. Bill Somers lolled on the counter, and Pedler Jim was bowing and scraping to a well-dressed stranger whose face Joe could not see.

The miner had half turned to go when Pedler Jim’s sharp eyes fell upon him. In another moment the hunchback was by his side thrusting some change into his fingers.

“You forgot it, ye know—when ye bought them nails,” he said hurriedly; then added, “why don’t ye come in and set down?”

For a second Joe hesitated; then he raised his head with a peculiarly defiant up-tilting of his chin, and strolled across the room to an unoccupied cracker-barrel behind the gesticulating miners. Pedler Jim went back to his customer.

“You won’t find a better smoke within fifty miles!” he said pompously, giving the box of cigars on the counter a suggestive push.

The well-dressed man gave a disagreeable laugh.

“Well, that’s hardly saying very much, is it?” he questioned.

At the stranger’s first words Hustler Joe glanced up sharply. His fingers twitched and a gray look crept around the corners of his mouth. The room, the miners, and Pedler Jim seemed to fade and change like the dissolving pictures he used to see when a boy. A New England village street drifted across his vision with this well-dressed stranger in the foreground. He could even see a yellow-lettered sign out one of the windows:

GEORGE L. MARTIN,
Counselor at Law.

Then it all faded into nothingness again—all save the well-dressed stranger in the tall black hat. In another minute the jabbering miners, Bill

Somers, and the obsequious hunchback were in their old places, and Pedler Jim was saying:

“Jest try ’em, an’ see fur yerself.”

“All right, I’ll take you at your word,” laughed the stranger, picking out a cigar and leisurely striking a match. “It’s a pity you can’t have a few more languages going in here,” he added, throwing the dead match on the floor and glancing at the group around the stove. “I suppose Barrington employs mostly foreigners in the mines, eh?”

The hunchback thrust his brown fingers through his hair and made a wry face.

“Foreigners!” he exclaimed. “I was born and raised in the state of Maine, an’ if it wa’n’t fur Bill Somers—he’s from York State—to talk God’s own language to me once in awhile, I’d ’a’ gone daft long ago!”

The stranger chuckled softly.

“You hav’n’t anyone here at the works from New England, then, I take it, eh?” he asked, with studied carelessness.

A smile crept up from Pedler Jim’s mouth and looked out of his twinkling eyes.

“Well, we have—” he began, then his eyes suddenly lost their twinkle as they encountered the despairing appeal from beneath Hustler Joe’s slouch hat. “We have—been wishin’ there would be some,” he finished after the slightest of hesitations. “We’ve got everythin’ else under the sun!”

Bill Somers’s long legs came down from the counter abruptly.

“Why, Jim, there’s Hustler Joe—ain’t he from New England?”

The hunchback’s little beany eyes turned upon Somers and looked him through and through without winking.

“Hustler Joe came over the mountains from San Francisco, I have heard,” he said blandly.

“Oh, so he did—so he did!” murmured Somers, and sauntered out the door.

The man on the cracker-barrel over in the corner pulled his hat down over his eyes and sank back into the shadows.

“Well,” said the stranger, tossing a bill and a small white card on the counter, “put me up a dozen of those cigars of yours, and there’s my card—if you happen to know of any New Englanders coming to these parts, just let me know at that address, will you? I’ll make it worth your while.”

“Very good, sir, very good,” murmured Pedler Jim, making a neat package of the cigars. “Thank you, sir,” he said suavely, holding out the change and glancing down at the card; “thank you, Mr.—er—Martin.” And he bowed him out of the store.

One by one the miners went away; still the figure on the cracker-barrel remained motionless. When the last jabbering foreigner had passed through the door, Hustler Joe rose and walked across the room to the pine box where the storekeeper was bending over his account-book.

“See here, little chap,” he began huskily, “that was a mighty good turn you did me a bit ago—just how good it was, I hope to God you’ll never know. What you did it for is a mystery to me; but you did it—and that’s enough. I sha’n’t forget it!”

Something splashed down in front of Pedler Jim, then the outer door slammed. When the hunchback turned to his accounts again a blot and a blister disfigured the page before him.

III

John Barrington, the principal owner of the Candria mine, did not spend much of his time in Skinner Valley. Still, such time as he did spend there he intended to be comfortable. Indeed, the comfort of John Barrington—and incidentally of those nearest and dearest to him—was the one thing in life worth striving for in the eyes of John Barrington himself, and to this end all his energies were bent.

In pursuance of this physical comfort, John Barrington had built for his occasional use a large, richly fitted house just beyond the unpleasant smoke and sounds of the town. A tiny lake and a glorious view had added so materially to its charms that the great man’s wife and daughter had

unconsciously fallen into the way of passing a week now and then through the summer at The Maples, as it came to be called in the family—"Skinner Valley" being a name to which Miss Ethel's red lips did not take kindly.

Mr. Barrington's factotum-in-chief at the mines, Mark Hemenway, lived at the house the year round. He was a man who took every possible responsibility from his chief's shoulders and was assiduous in respectful attentions and deferential homage whenever the ladies graced the place with their presence.

To Ethel this was of little consequence, as she paid no more attention to him than she did to the obsequious servant behind her chair; but to Mrs. Barrington he was the one drawback to complete enjoyment of the place.

Mark Hemenway was a man of limited means, but of unlimited ambitions. Every day saw him more and more indispensable to his comfort-loving employer, and every day saw him more and more determined to attain to his latest desire—nothing less than the hand of this same employer's daughter in marriage.

In a vague way Mrs. Barrington was aware of this, though Hemenway was, as yet, most circumspect in his actions. Mrs. Barrington was greatly disturbed, otherwise she would not have ventured to remonstrate with her husband that Sunday afternoon.

"My dear," she began timidly, "isn't there any other—couldn't Mr. Hemenway live somewhere else—rather than here?"

Her husband turned in his chair, and a frown that Mrs. Barrington always dreaded appeared between his eyebrows.

"Now, Bess, why can't you leave things all comfortable as they are? I like to have you and Ethel here first rate, but I don't see why you think you must upset things when you stay only five minutes, so to speak."

"I—I don't mean to upset things, John, but—I don't like him!" she finished in sudden asperity.

"Like him! My dear, who expected you to? Nobody supposes he is one of your palavering, tea-drinking members of the upper ten! He isn't polished, of course."

“Polished! He’s polished enough, in a way, but—I don’t like the metal to begin with,” laughed Mrs. Barrington, timidly essaying a joke.

Her husband’s frown deepened.

“But, Bess, don’t you see? I must have him here—it’s easier for me, lots easier. Why can’t you let things be as they are, and not bother?” he urged in the tone of a fretful boy.

Mrs. Barrington knew the tone, and she knew, too, the meaning of the nervous twitching of her husband’s fingers.

“Well, well, John,” she said, hastily rising, “I won’t say anything more,” and the door closed softly behind her.

As she passed through the hall she caught a glimpse of Ethel and her friend starting for a walk, and the strange unlikeness of the two girls struck her anew. Just why Ethel should have chosen Dorothy Fenno for a week’s visit to The Maples, Mrs. Barrington could not understand. Perhaps it would have puzzled Ethel herself to have given a satisfactory reason.

Ethel Barrington had met Dorothy Fenno the winter before on a committee connected with a fashionable charity, and had contrived to keep in touch with the girl ever since, though the paths of their daily lives lay wide apart.

“She is mixed up with ‘settlement work’ and ‘relief bands,’ and everything of that sort,” Ethel had told her mother; “but she’s wonderfully interesting and—I like her!” she had finished almost defiantly.

The girls leisurely followed a winding path that skirted the lake and lost itself in the woods beyond. They had walked half an hour when they came to the clearing that commanded the finest view in the vicinity.

Ethel dropped wearily to the ground and, with her chin resting in her hand, watched her friend curiously.

“Well, my dear girl, you——”

“Don’t—don’t speak to me!” interrupted Dorothy.

Ethel Barrington bit her lips; then she laughed softly and continued to watch the absorbed face of her companion—this time in the desired silence. By and bye Dorothy drew a long breath and turned to her.

“Isn’t it beautiful!” she murmured reverently.

Miss Barrington gave a short laugh and sat up.

“Yes, very beautiful, I suppose; but, do you know, I’ve seen so much I’m spoiled—absolutely spoiled for a scene like that? I’d rather look at you—you are wonderfully refreshing. I don’t know another girl that would have snapped me up as you did a minute ago.”

“Indeed, I beg your pardon,” began Dorothy in distress.

“Don’t!” interrupted her friend, with a petulant gesture; “you’ll be like all the rest if you do.”

“But it was very rude,” insisted Dorothy earnestly. “A view like this always seems to me like a glorious piece of music, and I want everything quiet as I would if I were hearing a Beethoven symphony, you know. That is why I couldn’t bear even the tones of your voice—but it was rude of me, very.”

Ethel sighed, and fell to picking a daisy to pieces.

“I used to feel that way, once,” she said; “I did, really.”

“I haven’t a doubt of it,” replied Dorothy, with a smile.

“But I don’t any more!”—the daisy was tossed aside.

“No?”

“No; I’m like a five-year-old that’s had too much candy, I suppose. I’ve seen the Alps and the Rockies, the Rhine and the St. Lawrence; and yet, the first time I looked at that view I felt just as you did. But now——!”

“You need something outside yourself to give zest to your life, my dear,” said Dorothy, her eyes on the town below.

Ethel looked at her narrowly.

“Now see here, my dear, I love you—and you know it, but I just can’t stand any of that settlement talk!”

“I never said settlement,” laughed Dorothy, her eyes still on the straggling cottages.

“I know, but—well, I just simply can’t! How in the world you stand those dismal sounds and sights and—and smells,” she added, with a grimace, “I don’t understand.”

“I suppose the miners live in those cottages,” mused Dorothy aloud, as though she had not heard.

“I suppose so,” acquiesced Ethel indifferently. “Others live over the hill in Westmont.”

“They don’t look as though they’d be very comfortable,” continued Dorothy softly.

“Oh, I don’t know; people like that don’t mind such things, I fancy.”

“Did you ever ask them?”

Ethel looked up in quick suspicion, but Dorothy’s face was placid.

“Of course not! How silly!”

“Suppose you do, sometimes,” suggested Dorothy, quite as a matter of course.

“I thought that was what you were coming to!” flashed Ethel. “My dear girl, you have no idea what those miners are,” she continued in a superior tone. “In the first place, I don’t think there is one of them that understands a word of English, and I’d be afraid to trust my life anywhere near them.”

“But the women and the little children—they wouldn’t hurt you. Isn’t there something you could do for them, dear?” urged Dorothy.

A rumble of thunder brought the girls to their feet before Ethel could reply, and a big storm-cloud coming rapidly out of the west drove the whole thing from her mind.

“Quick—we must run!” she exclaimed. “We can’t reach home, but there’s an old shanty just behind those trees over there. No one lives in it, but ’twill give us a little shelter, maybe,” and in another minute the girls were hurrying down the hill. Big drops of rain and a sharp gust of wind quickened their steps to a run.

Had Ethel not been running with her head bent to the wind she would have noticed the changed appearance of the shanty to which they were

hastening. But as it was, she rushed blindly forward, up the steps, and pushed open the door, Dorothy close by her side. Once across the threshold she stopped in amazement, while Dorothy dropped breathlessly into the nearest chair.

IV

The tiny room was exquisite in its orderly neatness. The furniture was of the plainest, but bore an air of individuality. On one side was a case of books, and the mantel above the fireplace was decorated with quaint curios and beautiful shells.

A shadow fell across the floor.

“A nearer view might the better satisfy your curiosity, madam,” said a voice from behind Ethel.

Ethel turned sharply to find herself face to face with a man in the rough garb of a miner. The man’s eyes looked straight into hers without flinching.

“I said that a nearer view might the better satisfy your curiosity in regard to my poor possessions,” he repeated.

“Yours?” she stammered, a look of repulsion coming into her eyes.

The look and the shrinking gesture were not lost on Hustler Joe. His eyes darkened. His broad shoulders bent in a mocking bow and his right hand made a sweeping flourish.

“Mine, madam; but consider them yours until the storm is over. I’ll not intrude”—and he was gone.

A flare of lightning and a deafening report made his exit wonderfully dramatic to Dorothy. The rain was falling in torrents, too—a fact which suddenly occurred to Ethel. For a moment she hesitated; then she sped through the door, overtook and confronted the miner.

“Go back instantly!” she commanded. “If—if you don’t, I shall start for home in all this rain!”

The words were scarcely spoken before the man had turned and was hurrying her back to the house. Once inside there was an uncomfortable silence. Dorothy came to the rescue.

“I’m afraid you thought we were unpardonably rude,” she began pleasantly. “You see we were caught by the shower and my friend thought no one was living here; otherwise, we would not have so unceremoniously taken possession.”

“No, of course not,” murmured Miss Barrington constrainedly, going over to the window and looking out at the swaying trees.

Hustler Joe made a dissenting gesture.

“Say no more: you are quite welcome,” he replied, going over to the fireplace and touching a match to the light wood ready placed for a fire. “It will take the dampness out of the air, and—of your garments,” he added, with a furtive glance at the tall figure in the window.

“Thank you, you are very kind,” said Dorothy, drawing nearer. The movement brought her close to the mantel, and she picked up one of the shells. “Did you gather these yourself?” she asked, wondering at the light that leaped into his eyes at the question.

Ethel, turning round a minute later, found them talking like old friends together. She even caught herself listening breathlessly to a story he was telling of an Indian arrow he held in his hand. A sudden glance in her direction from the man’s dark eyes sent her back to her old position with an abruptness that surprised as well as displeased her.

The storm was not a long one. The clouds were already lifting in the west and the rain was less flood-like in its descent. Finally the sun peeped out and flashed for a moment in Ethel’s eyes.

Dorothy and their host were over at the bookcase deep in a discussion of the respective merits of Scott and Dickens, when Ethel crossed the room and came toward them.

“I think,” she said, with the slightest of inclinations in Hustler Joe’s direction, “that the storm is over. We can go now.”

“So it is,” said Dorothy; then turning to the man at her side she held out a cordial hand. “Thank you very much. You have been very kind.”

“Yes, very kind—thank you,” murmured Ethel, bowing slightly and turning toward the door. “We shall have to go home by the road,” she

announced regretfully a moment later, as she stood outside looking longingly at the hillside path where the wet grass sparkled in the sun.

For a time the two girls walked on in silence, then Dorothy murmured softly:

“Not a word of English—not a word!”

Ethel gave a sidelong look from her lowered lids.

“Well, I didn’t suppose they could!” she said petulantly.

“I wouldn’t trust my life near one of them,” continued Dorothy in the same low voice.

Ethel shrugged her shoulders and a faint pink showed on her forehead.

“Don’t!” she protested. “How could you talk with him so?—what dreadful boots he wore!”

Dorothy laughed outright.

“My dear, his boots do not cover his head. Would you have a man dig coal in patent-leathers?”

Ethel made a wry face and was silent.

“Seriously, dear,” Dorothy went on, “he was very interesting to me. His knowledge of books was most amazing. What he is doing here I can’t imagine—he’s no common miner!”

“Oh, of course not,” laughed Ethel mockingly. “No doubt he’s a college president in disguise! But really, I’m not in the least interested. Let’s talk of something else.” And she changed the subject.

And yet it was Ethel who, at dinner that night, turned to Mr. Barrington with the abrupt question:

“Father, who is living in the old shanty just beyond the Deerfield woods?”

“I’m sure I haven’t the least idea, my daughter,” replied the man, mildly indifferent.

“Perhaps I can assist Miss Barrington in the matter,” interposed the smooth voice of Mark Hemenway. “It has lately been taken in hand by a

curious creature known as ‘Hustler Joe.’”

“‘Hustler Joe’?” murmured John Barrington.

“Yes, sir, one of the men. A queer, silent sort—the kind that no good comes of. I’m keeping my eye on him, however.”

“Indeed,” observed Ethel calmly, “I thought him quite the gentleman.”

The effect of her words was like that of an electric shock around the table; in fact, Ethel herself felt it to some extent, for her remark was almost as much of a surprise to herself as to the others.

“Why, my daughter!” murmured Mrs. Barrington faintly, and even Dorothy started. There was an ugly narrowing of Mark Hemenway’s eyes, but it was John Barrington who spoke.

“Well, you seem to have the advantage,” he drawled. “Would you mind telling where the rest of us could meet—this gentleman?”

His daughter laughed and lapsed into her old bantering tone.

V

That portion of the Candria mine known as the “Bonanza” had been on the black-list of the miners for some time. It was more than two months since Henry Rotalick, a fire boss, had reported that an extra amount of gas seemed to be collecting in the district. The mine officials had begun at once to take the utmost precautions.

The Bonanza was one of the wealthiest portions of the mine, but, the coal being deep and of very fine quality and the slate being particularly thick, it necessitated considerable blasting to get down to the finest parts. Owing to this and to the growing accumulations of gases, the miners had for some time past been repeatedly warned to use the greatest care.

On the day after the thunderstorm, Hustler Joe was passing through this district when he came upon some miners drilling holes twelve feet or more in depth and preparing for an exceptionally heavy charge.

“You’d better look out or you’ll bring the whole thing tumbling about your ears!” he said, with a sharp glance at one of the men who seemed much the worse for liquor.

A snarl of oaths in various tongues followed him as he turned his back and walked away.

Thirty minutes later every door in the Bonanza fell with a crash, and solid walls of masonry three feet thick were torn down as though they were but barriers of paper, so terrible was the explosion that shook the earth.

Hustler Joe was half a mile away. The shock threw him on his face, and for a minute he was too dazed to think. Then he staggered to his feet and rushed blindly forward straight toward the place where he thought the explosion had occurred. At every turn he met fleeing men, coatless, hatless and crazed with terror. Suddenly he came face to face with Bill Somers.

“Good God, man! Where ye goin’? Are ye gone clean crazy?” demanded Bill, clutching Joe’s arm and trying to turn him about.

For answer Hustler Joe wrenched himself free, picked up a half-unconscious miner and set him on his feet; then he dashed forward and attempted to raise a fallen door that had pinned another miner fast.

“Jiminy Christmas! Ye ain’t goin’ ter stay in this hell of a place alone, anyhow,” muttered Bill, bringing his broad shoulder and huge strength to bear on the door. In another moment the imprisoned man was free and in broken English was calling on heaven to reward his rescuers.

The two men did not falter for an instant, though all the while the deadly damp was closing around them. From gallery to gallery they went, warning, helping, dragging a comrade into a possible place of safety, until human endurance could stand it no longer. Exhausted, they staggered into a chamber which the fire damp had not entered.

“We—we’d better git out—if we’re goin’ to,” panted Somers weakly.

Joe was dizzy and faint. For himself he did not care. He had long ago given up all thought of escape; but a sudden vision came to him of the little blue-eyed woman that he had so often seen clinging to this man’s arm and looking fondly into his face.

“Your wife and babies, Somers—” murmured Joe, his hand to his head as he tried to think. “Yes, we must get out somehow. There’s the fanhouse—we might try that,” he added, groping blindly forward.

The fanhouse, now out of use, stood at the top of the airshaft heading that led up through the Deerfield hill from the mine. And by this way the two men finally reached the open air, and there, blinking in the sunshine, they sank exhausted on the hillside.

It was some time before Somers found strength to move, but his companion was up and away very soon.

The Candria mine had two openings about four miles apart, that went by the names Silver Creek and Beachmont. The Bonanza section was a mile and a half from the surface, and was nearer to the Silver Creek opening than to the Beachmont. It was to the former entrance, therefore, that Hustler Joe turned his steps as soon as he could stand upon his feet.

The news of the disaster was before him. Men running from the mine, barely escaping with their lives, had told fearful tales of crawling over the dead bodies of their companions in their flight. The story flew from lip to lip and quickly spread through the entire town. Mothers, wives, daughters, sons and sweethearts rushed to the mine entrances and frantically sought for news of their dear ones.

When Hustler Joe reached the Silver Creek entrance, a bit of a woman with a tiny babe in her arms darted from the sobbing multitude and clutched his arm.

“Bill—my Bill—did you see him?” she cried.

Hustler Joe’s voice shook as it had not done that day.

“On Deerfield hill, by the fanhouse—he’s all right, Mrs. Somers,” he said huskily; and the little woman sped with joyful feet back by the way she had come.

It was Hustler Joe who was at the head of the first rescue party that attempted to enter the mine; but the deadly gases increased with every step. First one, then another of the heroic men succumbed, until the rest were obliged to stagger back to the outer air, half carrying, half dragging their unconscious companions.

Again and again was this repeated, until they were forced to abandon all hope of reaching the entombed miners from that direction; then hasty preparations were made to attempt the rescue from the Beachmont opening.

Here, as at Silver Creek, Hustler Joe was untiring—directing, helping, encouraging. The man seemed to work in almost a frenzy, yet every movement counted and his hand and head were steady.

Slowly, so slowly they worked their way into the mine, fighting the damp at every turn. By using canvas screens to wall the side entrances and rooms, a direct current of pure air was forced ahead of the rescuers, and by night their first load of maimed and blackened forms was sent back to the mine entrance to be cared for by tender hands.

All night Hustler Joe worked, and it was his strong arms that oftenest bore some suffering miner to air and safety. Once, far down a gallery, he heard a shrill laugh. A sound so strange brought the first tingle like fear to his heart. Another moment and a blackened form rushed upon him out of the darkness, angrily brandishing a pickaxe. Crazy with wandering for hours in that horrid charnel-house of the earth's interior, the miner was ready to kill even his rescuers. He was quickly overpowered and his hands and feet were securely bound; then on Hustler Joe's back he made the journey of a quarter of a mile to the cars that were waiting to bear him, and others like him, to the aid so sadly needed.

Toward morning Hustler Joe was accosted by one of the doctors who had been working at his side half the night.

"See here, my man, you've done enough. No human being can stand this sort of thing forever. I don't like the look of your eye—go outside and get some rest. There are fifty men now that owe their lives to you alone. Come—you'd really better quit, for awhile, at least."

"Fifty? Fifty, did you say?" cried the miner eagerly. Then a look came into his face that haunted the doctor for long days after. "Would fifty count against—one?" he muttered as if to himself, then fell to work with a feverishness that laughed at the doctor's warning.

From dusk to dawn, and again from dawn to dusk, flying ambulances, hastily improvised from every sort of vehicle, coursed the streets with their gruesome burdens. Weeping throngs surged about the Beachmont entrance and about the stricken homes of the dead. Sleepless wives and mothers waited all night for news of their missing dear ones, and peeped fearfully

through closed blinds as the dead and injured were borne through the streets.

But everywhere the name of Hustler Joe was breathed in gratitude and love. Tales of his bravery and of his rescues were on every lip, and when the man walked out of the mine that day, he walked straight into the hearts of every man, woman and child of the place.

His fellow-workmen tried to show their love and appreciation by going in a body to his lonely cabin on the hillside. They found him muttering half crazily to himself: "Fifty lives for one—fifty for one!" And on the table before him he had placed fifty matches in a row and below them one other alone.

They looked at him half fearfully, wholly pitifully, thinking the past horror had turned his brain. But he listened with brilliant eyes and flushed cheeks to their hearty words of thanks and seemed strangely eager to hear all that they had come to say.

Yet the next morning his eyes were heavy with misery, and someone said that the matches lay strewn all over the floor where an impatient hand had cast them—all save one, left alone in the middle of the table.

VI

On the day of the explosion in the Candria mine John Barrington sat on the broad piazza of The Maples reading his morning paper. Occasionally he glanced up to admire the charming picture his daughter and her friend made playing tennis on the lawn nearby.

His night's rest had been good and his morning's beefsteak tender; moreover, a certain paragraph in the newspaper before him had warmed his heart and, in prospect, his pocketbook. He leaned back in his chair and sighed contentedly.

After a time he spied Hemenway's tall form at the far end of the winding walk leading to the house. There was a languid curiosity in his mind as to why Hemenway was walking so fast; but when he caught his first glimpse of his general superintendent's face, his head came upright with a jerk, and he waited in some apprehension for the man to speak.

The girls on the lawn heard an exclamation of dismay from the piazza, then saw the two men pass rapidly down the walk and disappear in the direction of the town. Fifteen minutes later Jennie Somers, the parlor-maid, crossed the lawn and approached Miss Barrington. All her pretty rose color had fled, and her eyes were wide and frightened.

“I beg your pardon—but would you please let me go to town? There has been an explosion in the mine, and my brother—he may be hurt! May I please go?”

“An explosion? How terrible! Yes, yes, child—run right along. Don’t hurry back if you’re needed there,” said Miss Barrington. “I hope you’ll find your brother uninjured,” she added as the girl hurried away. When she turned to speak to Dorothy she found herself alone.

Miss Fenno appeared a few minutes later dressed in a short walking-suit.

“Why, Dorothy!”

“Has Jennie gone? If you don’t mind, dear, I’ll go with her. I might be able to do something,” explained Dorothy hastily.

“Mercy!” shuddered Ethel, “how can you go, dear? They’ll be all maimed and bleeding! There’ll be doctors and—and others to do everything needful. I wouldn’t go—really, dear.”

“I know—but there’ll be something else to do. I might help someone—Jennie, for instance, if she found her brother injured. I really want to go—Oh—there she is!” And Miss Fenno hurried after Jennie’s swiftly moving figure.

Ethel was restless when her friend had gone. She wandered aimlessly around the grounds, then went indoors and began to play a waltz on the piano. The piece was scarcely half through, however, before her fingers moved more and more slowly, finally straying into a minor wail that ended abruptly in a discordant crash as the player rose from the piano-stool.

Miss Barrington’s next move was to take the field-glass from the library and go upstairs to the tower. From there she could see the village and catch occasional glimpses of hurrying forms. She could see the Silver Creek entrance to the mine, too, and she shuddered at the crowds her glasses

showed her there. Twice she turned her eyes away and started down the winding stairs, but each time she returned to her old position and gazed in a fascination quite unaccountable to herself at the moving figures in the distance.

By and bye she saw the head-gardener coming rapidly up the road from the town. As he entered the driveway she hurried down the stairs and out into the kitchen.

“Were there many injured, Peter?” she asked anxiously as the man came into the room.

“They don’t know yet, ma’am; they can’t get into the mine. They’re goin’ to try the Beachmont openin’ now.”

“Perhaps they won’t find things so bad as they think,” she suggested.

“Mebbe not; but them that has come out, ma’am, tell sorry tales of creepin’ over dead men’s bodies—there ain’t much hope for the poor fellers inside now, I’m ’fraid.”

“Is—is there anything one can do?”

Peter shook his head.

“Not much, ma’am. They can’t get in to get ’em out. The young lady from the house here has got her hands full with the women and children. They are takin’ on awful, of course, but she kinder calms ’em down—she and that feller they call Hustler Joe.”

Miss Barrington turned away. As she opened the door she stopped abruptly and looked back into the kitchen.

“If they need anything, Peter—anything at all—come to me at once,” she said hurriedly, and closed the door behind her.

It was at dinner the next night that Mr. Barrington said to his general superintendent:

“What was the matter with Rotalick today? I heard you laying down the law pretty sharp to him this noon.”

“Oh, he wanted a prima donna, that’s all.”

“A what?”

Hemenway laughed.

“Yes, I thought so, too. It was simply this. There isn’t anyone to sing at the funerals Thursday. The choir that usually sings at funerals hereabouts is incapacitated through injuries to the bass and loss of a husband to the soprano. Rotalick wanted a day off to go hunting for singers over in Westmont.”

“Humph!” commented Mr. Barrington.

“I rather think our departed friends will excuse the lack of music,” laughed the general superintendent coarsely; but the laugh ceased at a flash from Miss Barrington’s eyes.

“Will you be so kind, Mr. Hemenway, as to tell the man that I will sing Thursday?” Once more the electric shock ran around that table, and once more Mrs. Barrington murmured faintly, “Why, my daughter!”

This time Mark Hemenway rose promptly to the occasion.

“How very kind!” he said suavely. “Indeed, Miss Barrington, one could almost *afford* to die for so great an honor. I will tell Rotalick. The miners will be overjoyed—they have bitterly bemoaned the probable lack of music tomorrow. Funny they should care so much!”

“Oh, I don’t know—they are human beings, I suppose,” Miss Barrington suggested.

“Yes—of course—certainly—but then——”

“You seem troubled to find a solution,” she remarked, with slightly uplifted eyebrows; “suppose you give it up?”

“Suppose I do,” he acquiesced with ready grace, glad of the way of escape she had opened.

VII

Many of the victims of the explosion had lived in Westmont, but for those whose homes had been in Skinner Valley a succession of funeral services had been arranged to take place in the Slovak Catholic Church, the

largest audience-room in the town. It was here that Miss Barrington had offered to sing, and as one sad service followed another in rapid succession the task she had undertaken was no light one.

But her heart did not lose its courage nor her voice its sweetness all through those long hours. She did grow sick and faint, though, as the throngs of weeping women and children filed in and out of the church, and her voice trembled and nearly broke when a young girl fainted and sank to the floor.

Hustler Joe had not been known to step inside a church since he came to Skinner Valley. On the day of the funerals he had lapsed into his old unapproachableness. He left his cabin early in the morning and joined the crowds moving toward the church, but, once there, he lost himself in the throngs outside instead of entering the doors.

Hustler Joe had long since made up his mind that a church was no place for him. He had the reverence, born of a New England boyhood's training, for all things sacred, and he had come to feel that his own presence was an unpardonable insult to any holy place.

The windows of the church were open and the chanting tones of the priest floated out to his ears. He imagined himself as one of those still, silent forms before the chancel, and he bitterly envied the dead.

"'Twould have been the easiest way out of it!" he muttered under his breath. "By Jove, what a voice!" he added aloud a moment later as the priest's droning gave way to the flute-like tones of a singer.

"It's old Barrington's daughter—ain't she great?" said Bill Somers at his elbow. The man had been there several minutes furtively watching for a chance to speak.

Hustler Joe did not answer until the last note quivered into silence. Then he drew a long breath and turned around.

"Barrington's daughter? What is she doing here?"

"Singin'—didn't ye hear her?"

"But why? How happens it?" Joe demanded.

“Rotalick said she heard how that the choir couldn’t sing and that the Slavs and Poles were makin’ a terrible touse ’cause there wa’n’t no music. So she jest stepped up as pleasant as ye please an’ said she’d sing for ’em. She’s a daisy, an’ as purty as a picture. Have ye seen her?”

“Yes,” replied Hustler Joe shortly, moving away.

Ethel Barrington’s singing won her many sincere, if humble, admirers that day, but perhaps no one inside the building listened quite so hungrily for every tone that fell from her lips as did a tall, sad-eyed man who stood outside—just beneath an open window.

When the last sombre procession had moved away from the doors, and Miss Barrington herself, white and faint with weariness, stepped into her carriage, Hustler Joe left his position under the window and walked slowly toward his home.

“Yes, I’ll go back,” he muttered. “There’s nothing but hell upon earth to be gained by running away in this cowardly fashion. I’ll give myself up and take the consequences—which will be hell somewhere else, I suppose,” he added grimly. “Good God—it can’t be worse than this!”

He pushed open his cabin door and looked about him with troubled eyes. For the first time he was conscious of a fondness for the place.

“I’ll give them to Jim,” he said aloud, his eyes lingering on the books and on the shells and curios over the mantel.

With feverish haste he began collecting a few necessities into a traveling-bag. It was packed and strapped when there came a knock at the door. At so unusual an occurrence Hustler Joe started guiltily. Then he crossed the room and threw wide the door.

The bent form of an old woman with two frightened eyes peering out from beneath a worn shawl confronted him.

“Has he been here?” she whispered, stepping into the room and glancing furtively around her.

“He! Who?”

“Then he hasn’t, or you’d know it,” she answered in a relieved tone; but her expression changed almost instantly, and her frail form shook with

terror. "But he may come! You wouldn't give him up—you're Hustler Joe, ain't ye? They say you're good an' kind. Oh, you wouldn't give him up!"

A strange look came into the miner's eyes.

"No, I wouldn't give him up," he said, after a moment. "But who is he? And who are you?"

"I'm his mother, sir. He didn't know anyone was livin' here," she apologized, "an' he sent me a bit of paper sayin' he'd meet me here tonight. Oh, sir, they'd hang him if they got him! Hang him!" she shuddered.

Hustler Joe's lips twitched, then settled into stern lines.

"Ye see," continued the woman, her voice husky with feeling, "his daddy was—was one of them that was killed, an' my boy came back to look once more on his poor dead face today. He said he'd colored his hair an' changed his looks so no one would know him; but oh, they'd hang him—hang my boy!" she finished in a frenzy, wringing her hands and swaying her body from side to side.

Through the window Hustler Joe saw the figure of a man moving among the shadows of the trees near the house. The miner stepped close to the old woman and laid a light hand on her shoulder.

"Listen! I am going away for an hour. When I am out of sight, go out to the trees behind the house and call your boy in. I shall be gone and shall know nothing of it—you can trust me. Do you understand?"

A heartfelt "God bless you!" rang in his ears as he left the house and hurried away.

When he returned an hour later he found these words scrawled on a bit of brown wrapping-paper:

You treated me white. Thanks. You don't know what you saved my mother. It would have broke her heart if they had strung me up. Thanks.

Hustler Joe stared fixedly at the note long after he had read it; then he tore the paper into tiny bits and dropped them into the fireplace. Very slowly he opened the traveling-bag and unpacked one by one the articles

therein. When the bag was empty and the room restored to its spotless order, he drew a long breath.

“Yes, ’twould break her heart; she’s less miserable if I stay where I am,” he murmured. “Poor dear mother, she’s suffered enough through me already!”

VIII

The days that followed were busy ones for Ethel. Company made The Maples gay with fun and laughter; but Ethel did not drop her newly awakened interest in the miners. By her earnest persuasion Miss Fenno had agreed to lengthen her visit, the need of these same miners having been held up by the wary Ethel as good and sufficient reason for her remaining.

A maid, laden with the best the house afforded, always accompanied Dorothy on her frequent visits to the town, and sometimes Ethel herself went. It was after her first trip of this sort that she burst unceremoniously into the library.

“Father, do you do anything for them?” she demanded breathlessly.

“My dear, not being aware of the antecedent of that pronoun, I may not be able to give a very satisfactory answer to your question.”

“What? Oh—sure enough!” laughed Ethel. “I mean the miners, of course.”

“Since when—this philanthropic spirit, my dear?”

“Do you, father?” persisted Ethel, ignoring the question.

“Well,” Mr. Barrington began, putting the tips of his forefingers together impressively, “we think we do considerable. We are not overbearing; we force no ‘company store’ on them, but allow that curious little Pedler Jim full sway. We—However, have you anything to suggest?” he suddenly demanded in mild sarcasm.

Somewhat to his surprise Miss Barrington did have something to suggest, and that something was not particularly to his mind. However, when Miss Barrington set out to have her own way she usually had it, even

with her comfort-loving father—perhaps it was because he was a comfort-loving father that he always succumbed in the end.

At all events, the Candria Mining Company, after the explosion in the Bonanza section, organized a system of relief to which they ever after adhered. The family of each miner killed in the disaster, or dying from its effects, received one thousand dollars cash over and above all medical and burial expenses. The maimed were dealt with according to the extent of their injuries.

The mine was a great source of interest to all of Miss Barrington's friends, and it was accounted a great day among them when a party under careful escort were allowed to "do the mines," as they enthusiastically termed a glimpse of the mine buildings and a short trip through a few underground passages.

Two weeks after the explosion Ethel, with a merry party of ladies and gentlemen led by Mark Hemenway, and duly chaperoned, started for the Beachmont entrance to the mine. The general superintendent was in his element. He explained and exhibited all through the outer buildings, and was about to take his charges into the mine itself when an unavoidable something intervened and claimed his immediate attention. It was with evident reluctance that he therefore handed his party over to Bill Somers, who, having proved himself careful and attentive, had often before been intrusted with the escort of sightseers over the mines.

To Ethel the change was a relief. A vague unrest had lately assailed her whenever in Hemenway's presence and she had almost unconsciously begun to avoid him. Her old indifference to his existence had given way to a growing realization that there was such a being, and the realization was bringing with it an intangible something not quite pleasant.

The feminine portion of the party followed Bill Somers through the strange underground chambers with daintily lifted skirts and with many a shudder and half-smothered shriek. And though they laughed and chatted at times, they cast sidelong glances of mingled curiosity and aversion at the stalwart forms of the begrimed miners.

"Is—is this anywhere near the—accident?" asked Miss Barrington, looking behind her fearfully.

“No, ma’am—oh, no!” reassured Bill Somers quickly. “The Bonanza is a long ways off. We don’t go nowheres near there today, ma’am.”

“Oh, was there an accident?” chimed in a pretty girl with rose-pink cheeks.

“Sure; this was the mine, wasn’t it?” interposed a fussy little man with eyeglasses through which he was peering right and left with his small, near-sighted eyes.

“Tell us about it, please,” begged three or four voices at once; and Bill needed no second bidding.

When they passed Hustler Joe, Somers pointed him out, and as they walked on into the next gallery he told with unconscious power the story of the heroic rescue of the imprisoned men. The shifting shadows and twinkling lights made the telling more impressive, and the dusky forms flitting in and out of the mysterious openings on either side, added a realistic touch to the tale that sobered the gay crowd not a little. Their interest in the earth’s interior waned perceptibly.

“Are—are we on the way out, now?” asked the pretty girl, her cheeks showing white in the gloom.

“No, ma’am; we’re goin’ in deeper. Wa’n’t that what ye wanted?” returned Bill.

“Yes, of course,” murmured the girl, without enthusiasm.

The man with glasses coughed.

“Really, Miss Barrington, this is beastly air. It might be well enough to go back before long.”

Bill Somers took the hint. He knew the type to which the fussy little man belonged. The party turned about, and the pretty girl’s eyes flashed with a grateful glance—a glance which the near-sighted-glassed saw and promptly appropriated.

As they repassed Hustler Joe, Ethel Barrington dropped behind the others and came close to the miner’s side.

“I want to thank you myself,” she said, the crimson staining her cheeks as she impulsively held out a slim, ungloved hand. “I want to tell you how

much I appreciate your courage and bravery at the explosion.”

The man flushed painfully. As he reluctantly touched her finger-tips, she added:

“You must be so happy to have saved so many lives. I knew you were a good man the minute I saw your face!”

Hustler Joe grew white to the lips, dropped her hand rudely and turned away without a word.

Hemenway met the party at the entrance of the mine. He was profuse in apologies for his enforced absence and in offerings of further service, but Miss Barrington dismissed him with a cool “Thank you; nothing more,” and led the way to The Maples.

Miss Barrington was vexed—worse than that, she was vexed because she was vexed. Her pulse quickened and her nostrils dilated as she thought of Hustler Joe and of the way he had met her impulsive greeting.

“The—the rude—boor!” she said to herself, at loss for words to express fittingly that to which she was so little accustomed. A lingering touch or a gentle pressure was the usual fare of Miss Barrington’s graciously extended hand—never this wordless touching of her finger-tips and hasty, rude release. “Not that I care,” she thought, with a disdainful tilt of her head. “But he might have been decently civil!” she added, with a scornful smile as she thought of how differently a score of pampered youths of her acquaintance would have received so signal a mark of favor as she had that afternoon bestowed on an all too unappreciative miner.

When Hustler Joe had left Miss Barrington so abruptly he had attacked his work with a fierceness that even the miners had never seen him show. “A good man—a good man—‘I knew you were a good man!’” he muttered between his teeth. “A ‘good’ man indeed—bah!” he snarled aloud, wielding his pick with long, sweeping strokes. Then he suddenly stood upright. “Great God—am I not a good man? Have fifty lives not a feather’s weight?”

The pick dropped from his relaxed fingers, and his hands went up to his head.

“Ah, no,” he moaned; “father—father—fifty, a hundred—a thousand times a hundred could not tip the scale with your dear, dead self on the other side!”

IX

Exciting days came to Skinner Valley. Gold was discovered far up the creek. A man furnished with funds by Mark Hemenway, who long had expressed faith in the locality, had “struck it rich,” and the general superintendent awoke one day to find himself wealthy.

The effect of this awakening was as immediate as it was startling. His commanding tones took on an added imperiousness, his clothing a new flashiness, and his whole demeanor an importance likely to impress the most casual of beholders. His veiled attentions to Miss Barrington gave way to a devoted homage that was apparent to all men, and so thick was his armor of self-conceit that her daily snubs fell pointless at his feet.

Miss Barrington had never before spent so long a time at The Maples, and Mr. Hemenway’s sudden accession to wealth resulted, as far as she was concerned, in hasty preparations to leave. Her guests were already gone.

On the day before her intended departure she started off by herself to enjoy one more sunset from the clearing beyond the Deerfield woods, the place where she and Dorothy were overtaken by that memorable thunder-shower.

Mark Hemenway did not confine himself so strictly to business these days as had heretofore been his custom, and he was upstairs in his room when he spied Miss Barrington’s lithe figure disappearing in the grove that skirted the grounds on the west.

The general superintendent had lately invested in a tall silk hat, and it was this impressive bit of headgear that he donned as he left the house and followed, at a discreet distance, the form of the woman he meant to marry.

Since Hemenway had become rich this idea of marriage had strengthened wonderfully. In a certain coarse way the man was handsome, and the only class of women with which he had ever come in contact had readily welcomed his attentions. He had supposed the lack of money would

be the only drawback in the eyes of this his latest love, and now that the lack no longer existed he was confident of success.

Miss Barrington followed the path very leisurely, picking a flower or a fern here and there, and softly humming a tune. Upon reaching the clearing she settled herself comfortably under her favorite tree and opened her book to read. It was then that Hemenway approached from the shadows of the path she had just left.

At the snapping of a dry twig Miss Barrington glanced up. Her first impulse was to laugh, so absurd did the checkered trousers, flaming watch-charm and silk hat look to her against the background of the cool green woods. But the laugh was killed at birth by an angry objection that the man should be there at all. Even then she supposed him to be merely passing by and that he might stop for a word or two.

“Ah, good afternoon, Miss Barrington. What a surprise to find you here,” fibbed Hemenway, advancing with easy confidence.

“Good afternoon, Mr. Hemenway.” Miss Barrington moved her book suggestively and lowered her eyes.

“Charming view you have here!” said the man.

No reply.

“You have an interesting book there, Miss Barrington?”

“I don’t know—I’m trying to find out,” replied Miss Barrington, with calm but ineffectual rudeness.

“Um—delightful place to read! Nice day, too.”

No answer.

Mr. Hemenway looked down approvingly at the lowered lids of the girl’s eyes and, blinded by his vast conceit, mistook the flush of annoyance for the blush of maidenly shyness. “I never did like a girl to fling herself in my face,” he mused, coming a little nearer.

“Well,” he said aloud, “if you have no objections, Miss Barrington, I’ll just stop a bit with you and enjoy this breeze,” and he cast himself at her feet in careful imitation of the attitude he had seen the fussy man with glasses assume only the week before.

Miss Barrington was speechless with indignation. Her first instinct was to spring to her feet, but the paralysis of amazement that had struck her dumb had also rendered her, for the moment, incapable of motion. A sudden determination to “teach the man a lesson and stop once for all this insufferable persecution”—as her mind expressed it—followed, and she remained passively quiet.

There was an uncomfortable silence that to any man but Hemenway would have proved embarrassing.

“Er—I believe I haven’t told you,” he finally began, “how kind I thought it was of you to interest yourself as you have in the miners.”

“It is not necessary that you should,” said Ethel icily.

“Very becoming modesty!” thought Hemenway. Aloud he said: “Oh, no, not necessary, perhaps, but I want to do it. It is a pleasure to me.”

“It is not one to me.”

Hemenway frowned. There was such a thing as carrying this modesty too far.

“Your singing, too—it was delightful!” he continued smoothly. “And so kind of you to do it!”

Miss Barrington turned a leaf of her book with an unnecessary rustling of the paper.

“Feigning indifference,” commented Hemenway to himself. “I’ve seen ’em do that before.”

“You looked so tired that night after the funerals. I actually worried about you—you looked sick,” he said next, in what was meant for tender tones.

Miss Barrington’s eyes narrowed ominously as she replied:

“Mr. Hemenway, my actions and my looks can have no possible interest for you. I should be obliged if you would cease to consider them.”

To Hemenway’s perverted fancy this was but a bit of shy bait. He promptly took advantage of it.

“On the contrary, I have the very greatest interest, my dear Miss Barrington—the very warmest interest. I—I—Miss Barrington, as you may be aware, I am a rich man now.”

“That does not concern me in the least,” retorted Ethel sharply.

A strange expression came over Hemenway’s face. For the first time a doubt shook his egotistical content. His eyes grew hard. No maidenly shyness prompted that speech. Still—possibly she had not understood.

“Miss Barrington, it has long been in my mind to ask you to be my wife. I love you, and now I am rich I am confident I can make you——”

“Stop! I won’t even listen to you!” Miss Barrington was on her feet, her eyes blazing.

Hemenway rose and faced her. All his polish dropped like a mask, and the real man looked out from beneath angrily frowning brows.

“You won’t listen, my fine lady? And why not, pray? Ain’t I good enough to speak to you?”

“I hate you—I despise you—oh, I loathe the very sight of you!” shuddered Ethel, losing all control of herself. “Now will you leave me in peace—or must I say more before you quite understand me?”

Hate—despise—loathe; these words Hemenway knew. The delicate shafts of society sarcasm fell powerless against his shield of self-conceit, but these heavier darts struck home and reached a vital point—his pride. His face grew livid.

“Will you go?” repeated Ethel impatiently, not a quiver of fear in the scorn of her eyes—“or shall I?” she added.

“Neither one!” he retorted insolently.

For answer Ethel wheeled and took two steps toward the path. Hemenway was at her side in an instant with a clutch on her wrist that hurt her.

“Coward!” she cried. “Would you force me to scream for protection?”

“Do so, if you like—there’s not a house within earshot, and the inhabitants of this region are not given to walking for pleasure!” He

released her wrist and stepped again in front of her.

The sharp throb of terror that paled Ethel's cheek was followed by one of joy that sent the color back in surging waves—Hustler Joe's shanty just behind those trees! It was after six—he must be there. If worst came to worst——!

“Mr. Hemenway, this is altogether too theatrical. I ask you again—will you let me pass?”

“If you think I am a man to be loathed and hated and despised with impunity, young lady, you are much mistaken. No, I won't let you pass—you'll listen to me. I want none of your airs!” he finished sourly.

Ethel's head bent in a scornful bow.

“Very well, suppose we walk on, then,” she said. “I'm tired of standing.” And she turned about and began walking in the opposite direction from the path that led toward home.

Mark Hemenway was suspicious of this sudden acquiescence. He hurried to her side and looked sharply into her face.

“None of your tricks, young lady! I mean business,” he snarled. “If you ain't willing to hear what I've got to say by fair means, you shall by foul!” he added, bringing a small revolver into view, then slipping it back into his pocket.

Ethel was thoroughly frightened. She thought Hemenway must be mad.

“I should think you had stepped out of a dime novel, Mr. Hemenway,” she began, trying to steady her shaking lips. “Nobody wins a bride at the point of a pistol nowadays!” The trees that hid Hustler Joe's shanty from view were very near now.

“Then you needn't treat me as if I was nothing but the dirt under your feet,” he muttered sullenly, already regretting his absurd threat of a moment before.

Ethel suddenly darted forward and around the edge of the trees, ran across the lawn and sprang up the steps of the shanty. Hemenway was close at her heels when she flung the door open with a bang and stood face to face with Hustler Joe.

“Will you please take me home?” she asked, trying to speak as though she considered it a customary thing to invade a man’s house and demand his escort in this unceremonious fashion. “Mr. Hemenway is—busy and cannot go,” she added, with a cheerful assurance due to the presence of the big-bodied miner at her side.

Hustler Joe instantly accepted the part she had given him to play.

“I shall be glad to be of any service,” he said respectfully, with ready tact, but with a sharp glance at Hemenway.

The general superintendent bowed to Miss Barrington with uplifted hat, then turned and walked away.

“Please do not ask me any questions,” said Miss Barrington hurriedly to Hustler Joe as they left the house. “You had better take me by the path through the woods—it is the nearer way, and will be less embarrassing than the main road would be for—both of us. I know you think my conduct extraordinary, but, believe me, I had good reason for asking your escort. You—you always seem to be around when I need someone!” she concluded, with an hysterical little laugh—the tension to which she had been keyed was beginning to tell on her.

“No apology is needed,” demurred the man gravely. “I think I understand.”

That walk was a strange one. The sun had set and the woods were full of shadows, and of sounds unheard in the daytime. Ethel was faint and nervous. The miner was silent. Once or twice Ethel spoke perfunctorily. His answers were civil but short. At the edge of the private grounds the girl paused.

“Thank you very much; I shall not forget your courtesy,” she said, hesitating a moment, then resolutely offering her hand.

It was not the finger-tips the man touched this time—it was the hand from nail to wrist; and his clasp quite hurt her with its fierceness.

“Miss Barrington, you thought me a brute the other day when you spoke so kindly to me, and no wonder. I can only beg your pardon—your words cut deep. I am going to the mines tomorrow—the gold mines, I mean. I’m

glad I had this chance to speak to you. You were wrong, Miss Barrington—I—I'm not the good man you think!" He dropped her hand and turned away.

"I—I don't believe it!" she called softly, and fled, swift-footed, across the lawn.

Mark Hemenway did not appear at The Maples that night. A message from him received by Mr. Barrington in the evening said that he had been suddenly called away on business connected with his gold mine; that he would return soon, however, and would like immediately to make arrangements whereby he could sever his connection with the Candria Mining Company, as his new interests needed all his attention.

"Humph!" commented Mr. Barrington. "I never saw a little money make such a dam fool of a man as it has of Hemenway!"

Ethel's lips parted, then closed with sudden determination. Twelve hours later she left for Dalton without mentioning to her father her experience of the day before, and within a week she had sailed from New York on a steamer bound for Liverpool.

X

The discovery of gold had made all the miners at Skinner Valley restless, and Hustler Joe was among the first to take his wages and start for the promised bonanza.

Hustler Joe of the coal mines was still "Hustler Joe" of the gold mines. The same ceaseless, untiring energy spurred the man on to constant labor. The claim he staked out proved to be the richest in the place and wealth sought him out and knocked at his cabin door.

Strange to say, Hustler Joe was surprised. He had come to the mines simply because they promised excitement and change. He had thought, too, that possibly they harbored the peace and forgetfulness for which he so longed.

But peace had fled at his approach and wealth had come unasked. Man-like, he regarded the unsought with indifference and gazed only at the

unattainable; whereupon wealth rustled her golden garments to charm his ears and flashed her bright beauty to dazzle his eyes. Still failing to win his heart, she whispered that she—even she—was peace in disguise, and that he had but to embrace her to find what he sought.

It was then that Hustler Joe yielded. In a year he had sold half his claim for a fabulous sum. The other half he retained, and leaving it to be developed under the charge of expert engineers, he left for Skinner Valley.

Hustler Joe had never forgotten the little hunchback pedler, nor the debt of gratitude he owed him. Many a time in the old days at the coal mines he had tried to pay this debt, but always, in his own estimation, he had failed. So it was of Pedler Jim that he first thought when this new power of wealth came into his hands.

The news of Hustler Joe's good luck had not reached Skinner Valley, and the man was in the same rough miner's garb when he pushed open the familiar door of the "Emporium" in search of Pedler Jim.

"Well, if it ain't Hustler Joe!" exclaimed the hunchback delightedly. "You're a sight good fur sore eyes. Come back ter stay?"

"Well, awhile, maybe. How's the world using you these days, Jim?"

"Oh, fair—fair; 'tain't quite 's good as I'd like—but I ain't complainin'."

"I wonder if anything would make you complain—I never heard you," remarked Joe, helping himself to a seat on the counter.

"Well, now that ye mention it, mebbe I don't much—I hain't no need to. My appetite's good an' my conscience is clear; an' a clear conscience is _____"

"Jim," interrupted the miner sharply, "did you ever hear of Aladdin and his lamp?"

"Huh? Oh, the feller that rubbed it an' got what he wanted?"

"That's the chap."

"Well—s'posin' I have?"

"Oh, I only wondered what you'd ask for if you had one to rub."

“Gorry—I wish’t I had!”

“Well, what would you?” persisted Joe, his face alight.

“What would I? Well, I’ll tell ye. I’d buy the big house on the hill——”

“What—Barrington’s?” interrupted Joe.

“Gee whiz, no! I mean the empty one that Rotalick lived in; an’ I’d make it over into a hospital, an’ I’d add to it as I was able.”

“A hospital? Why, there is one.”

“Yes, I know—the company’s; but the boys always have ter quit there long ’fore they’re able. They can’t work, an’ if they laze ’round home it takes furever to git well—what with the noise an’ the children an’ all. They crawl down here to the store, an’ my heart jest aches fur ’em, they’re so peaked-lookin’. I’d have it all fixed up with trees an’ posies an’ places ter set, ye know, where they could take some comfort while they was gittin’ well.”

A moisture came into Joe’s eyes.

“But how about yourself?” he asked. “You haven’t rubbed out anything for yourself, Jim.”

“Fur me? Gorry—if I jest had that lamp, you’d see me rubbin’ out somethin’ fur me, all right. I’ve been wantin’ ter send home a box ter the old folks—’way back in Maine, ye know. Jiminy Christmas, man, there’d be no end ter the black silk dresses and gold-headed canes an’ fixin’s an’ fur-belowes that I’d rub out an’ send to ’em!”

Hustler Joe laughed; then something came into his throat and choked the laugh back.

“But all this isn’t for you, Jim,” he remonstrated.

“Huh? Not fur me? Fur heaven’s sake, man, who is it fur, then?”

The miner laughed again and slid off the counter.

“You’ve got quite a store, Jim. Ever wish you had more room?” he asked abruptly.

Pedler Jim not only nibbled at the bait, but swallowed it.

“Well, ye see, I’m goin’ ter have the place next door when I git money enough and then I’ll jine ’em together. That’ll be somethin’ worth while,” he continued.

Hustler Joe easily kept him talking on this fascinating theme a full ten minutes, then he prepared to take his leave.

“Let’s see,” he mused aloud, “you came from Maine, you say. About where—the town, I mean?”

Jim named it.

“You say the old folks are living there yet?”

Jim nodded.

“Name is Powers, I suppose, same as yours; maybe you were named for your father, eh?”

“No; father’s name was Ebenezer, an’ mother objected—so it’s ‘Jim’ I am. Why? Goin’ ter dig up my family tree by the roots?” asked the little man whimsically.

“Not a bit of it!” laughed the miner, looking strangely embarrassed as he hurried out the door.

“Monte Cristo” had been Hustler Joe’s favorite tale in his boyhood days. He thought of it now, as he left the “Emporium,” and the thought brought a smile to his lips.

A few days later Pedler Jim was dumfounded to receive a call from a Westmont lawyer.

“Well, my friend,” the man began, “I have a few little documents here that demand your attention.”

Pedler Jim eyed the formidable-looking papers with some apprehension.

“Now see here, sir,” he demurred, “my conscience is perfectly clear. I don’t want nothin’ to do with sech devilish-lookin’ things as that!”—his eyes on the big red seal. “I hain’t never harmed no one—’tain’t an arres’, is it?” he added, his voice suddenly failing him.

“Well, hardly!” returned the lawyer, chuckling to himself. “This, my friend, is the deed, filled out in your name, to the Rotalick property on the

hill back here; and this,” he continued, taking up another paper and paying no attention to the little hunchback, who had dropped in limp stupefaction on to a packing-box, “this is the deed—also made out in your name—to the building adjoining this store on the south. Mr. Balch, the present occupant, has a lease which expires in two months. After that the property is at your disposal.”

“But where in thunder did I git it?” demanded Pedler Jim.

“That is not my business, sir,” said the lawyer, with a bow.

“Well, I’ll be jiggered!” murmured the hunchback, gingerly picking up one of the deeds and peering at it.

Pedler Jim was still further astounded to find that to his tiny bank account had been added a sum so large that he scarcely believed his eyes. It was entered under the name “Hospital Fund.”

Following close upon all this came a letter from the folks at home:

Dear Jimmie: What a good, good son we have, and how can we ever thank you! (“Dear Jimmie” looked blank.) The black silk, so soft and rich, will make up into such a beautiful gown—much too fine for your old mother, Jimmie, but I shall be proud of it. Father is already quite puffed up with his lovely gold-topped cane. Nellie and Mary and Tom and John have divided up the pretty ribbons and books and sweetmeats to suit themselves, as long as you didn’t single them out by name. (“No—I’m blest if I did!” murmured Jim.) We were proud and pleased to get the box, Jimmie, both because the things were so beautiful and because you thought to send them. (“I’ll be hanged if I did!” muttered the hunchback, scratching his head in his perplexity.) Why don’t you come on East and see us, dear? We wish you would.

Then followed bits of neighborhood gossip and family news, ending with another burst of thanks which left Pedler Jim helpless with bewilderment.

It was that night that Somers was talking in the store.

“Yes, he’s rich—rich as mud, they say, an’ I ain’t sorry, neither. There ain’t anyone I know that I’d as soon would have a streak o’ luck as Hustler Joe.”

Pedler Jim was across the room, but he heard.

“Rich! Hustler Joe rich!” he demanded, springing to his feet.

“That’s what he is!”

“Jiminy Christmas!” shouted the hunchback. “I’ve found him—he was the lamp himself!”

XI

It was in Dalton, the nearest large city to Skinner Valley, that Hustler Joe began his career as a rich man.

He built him a house—a house so rare and costly that people came from miles around to stare and wonder. Society not only opened its doors to him, but reached out persuasive hands and displayed its most alluring charms. She demanded but one thing—a new name: “Hustler Joe” could scarcely be tolerated in the aristocratic drawing-rooms of the inner circle! He gave her “Westbrook,” and thenceforth “Mr. Joseph Westbrook” was a power in the city.

He was petted by maneuvering mamas, flattered by doting papas, and beamed upon by aspiring daughters; yet the firm lips seldom relaxed in a smile, and his groom told of long night rides when the master would come home in the gray of the morning with his horse covered with mud and foam. But society cared not. Society loves a Mystery—if the Mystery be rich.

When Joseph Westbrook’s mansion was finished and furnished from cellar to garret and placed in the hands of a dignified, black-robed housekeeper at the head of a corps of servants, and when his stables were filled with thoroughbreds and equipped with all things needful, from a gold-tipped whip to a liveried coachman, Mr. Joseph Westbrook himself was as restless and ill at ease as Hustler Joe had been in the renovated shanty on the hillside.

The balls and the dinners—invitations to which poured in upon him—he attended in much the same spirit that Hustler Joe had displayed in loitering in Pedler Jim’s “Emporium”—anywhere to get rid of himself. But if the inner man was the same, the outer certainly was not; and the well-groomed gentleman of leisure bore little resemblance to the miner of a year before.

On the night of the Charity Ball Westbrook had been almost rude in his evasion of various unwelcome advances, and he now stood in the solitude for which he had striven, watching the dancers with sombre eyes. Suddenly his face lighted up; but the flame that leaped to his eyes was instantly quenched by the look of indifference he threw into his countenance. Coming toward him was Ethel Barrington, leaning on the arm of her father.

“Mr. Westbrook,” said the old gentleman genially, “my little girl says she is sure she has seen your face somewhere, so I have brought her over to renew old acquaintance.”

Someone spoke to John Barrington then, and he turned aside, while Westbrook found himself once more clasping a slim firm hand, and looking into a well-remembered pair of blue eyes.

“You are——?”

“Hustler Joe,” he supplied quietly, his eyes never leaving her face.

“I knew it!” she exclaimed, her pleasure frankly shown. “I never could forget your face,” she added impulsively, then colored in confusion as she realized the force of her words.

But his tactful reply put her immediately at ease and they were soon chatting merrily together, closely watched by many curious eyes. Society never had seen Mr. Joseph Westbrook in just this mood before.

“Father did not recognize you,” said Ethel, after a time.

“No; I was introduced to Mr. Barrington at the Essex Club a week ago. I hardly thought he would remember Hustler Joe. You have just returned, Miss Barrington?”

“A month ago—from Europe, I mean; mother is there yet. America looks wonderfully good to me—I have been away from it the greater part of the last two years, you know. When I came home to Dalton I found the

name of Mr. Joseph Westbrook on every lip. You seem to be a very important personage, sir," she laughed.

"A little gilding goes a long way, sometimes," he replied, with a bitter smile.

"But there must have been something to gild!" she challenged. "Mr. Westbrook, for the last two weeks I have been at The Maples—have you been down to Skinner Valley lately?" she asked, with peculiar abruptness.

"Not for some months."

"There are some changes in the village."

"Yes?"

"That poor little deformed storekeeper has bought the Rotalick house and has turned it into the dearest little convalescents' home imaginable."

"Is that so?" murmured Westbrook, meeting Miss Barrington's gaze with a face that was innocently noncommittal. "Pedler Jim always was kind to the boys."

"So it would seem; still—someone must have helped him in this," she suggested, her eyes on his again.

"Do you think so? Possibly! I am wondering, Miss Barrington, if we might not find it cooler over there by the window. Will you allow me to escort you?"

"Perhaps we might," she smilingly assented. "Perhaps we could find some subject of conversation other than Hustler Joe's generosity to Pedler Jim, too—we might try!" She threw him a merry glance, which he answered with a shrug of his shoulders.

"Indeed, Miss Barrington, you quite overestimate anything I may have had to do in the matter. It was entirely Pedler Jim's idea. How about the reading-room?" he suddenly asked, mentioning Miss Barrington's latest gift to the miners, "and the kindergarten class, and the——"

"Ah—please!" interrupted the girl, with hand upraised in laughing protest. "I acknowledge myself vanquished at my own game. I'll talk about—the weather, now, if you like," she finished dutifully.

Westbrook laughed, but before he could reply Miss Barrington was claimed by a tall young fellow for the next dance.

“I wonder,” he mused as he saw them glide gracefully into the waltz —“I wonder if dancing belongs to those things one never forgets. I’ll have to brush up my old steps—and learn some new ones,” he added, after a pause.

From the night of the Charity Ball the world appeared in new colors for Westbrook. He did not stop to question the cause of all this change. If wealth were lifting her disguise and showing a glimpse of peace, he was too rejoiced to care to ask the reason.

“I wish you’d come up to the house some time,” said John Barrington to Westbrook one evening soon after the Charity Ball. “I’d like to talk with you—we can’t make any headway in this infernal racket!”—the “infernal racket” in question being the high C’s and low G’s of some world-famous singers at a particularly exclusive musical.

Westbrook smiled.

“Thank you; I should be only too happy.”

“Then call it tomorrow night—to dinner. Seven o’clock.”

“I will—and thank you,” said Westbrook after a momentary hesitation.

To his daughter John Barrington said a little later:

“Oh, I’ve invited Mr. Westbrook up to dinner tomorrow night.”

“Mr. Westbrook!”

“Why, yes—why not? You seem surprised.”

“Gilding does count, doesn’t it, father dear?”

“Eh? Gilding? My dear, I don’t know what you mean. I know he’s rich as mud—if that’s what you’re talking about; but he’s got more than money—he’s got brains. He knows as much about mines as I do! I like him—he’s worth a dozen of the youths that usually flutter about you.”

“Perhaps he is,” laughed Ethel, the color in her cheeks deepening.

That was but the first of many visits. Barrington was urgent, Ethel charmingly cordial—and Westbrook, nothing loth.

XII

“I’m in search of a good lawyer,” said Westbrook to John Barrington one day. “Can you recommend one to me?”

“Indeed I can. I have in mind the very man—he’s been doing a little work for me, and he is very highly spoken of.”

“That sounds about O. K. Who is he?”

“That’s just the point,” laughed the older man; “the name’s escaped me. He’s from the East—hasn’t been here very long. I’ll tell you what—I’ll bring him into your office tomorrow. Will that do?”

“It will—and thank you.”

Westbrook’s “office” was something new. A life of leisure was becoming wearisome; consequently he invested in various bits of real estate, opened an office, put a man in charge, and of late had himself tended strictly to business, such time as he could spare from his social engagements.

It was into this office that Mr. Barrington came one morning accompanied by a short, smooth-faced man whose garments were irreproachable in style and cut.

“Ah, Westbrook,” began Barrington, “let me introduce Mr. Martin, of Martin & Gray, the lawyer of whom I was telling you yesterday.”

Again the room and all it contained—save the figure of Martin himself—faded from Westbrook’s sight, and he saw the New England street with the lawyer’s sign in the foreground. The next moment the vision was gone, and he had extended a cordial hand.

“I’m very glad to meet Mr. Martin,” he said, looking the lawyer straight in the eye.

“Mr. Westbrook—delighted, I’m sure,” murmured the little man suavely; then, in a puzzled tone, “have I had the honor of meeting you before, Mr. Westbrook? There is something familiar about you.”

“Is there?” began Westbrook, but John Barrington interrupted.

“There, Martin, you’ve hit my case exactly! He’s puzzled me a thousand times with a little turn or twist that’s like someone I’ve seen. Dash it—who is it?”

“My features must be cast in a common mold,” laughed Westbrook, “to remind so many of one they know.”

“Um—ah—well—I shouldn’t want to say quite that!” retorted Barrington. “Well, gentlemen,” he resumed after a pause, “I’ll leave you to your own devices. I’m off—good morning.”

“Good morning, and thank you,” replied Westbrook, rising. “I’ve no doubt Mr. Martin will prove a credit to your introduction,” he concluded as he bowed the elder gentleman out. Then he turned to the lawyer and began the business at hand.

In his own room that night Westbrook carried a small mirror close to the light and scrutinized himself for some minutes.

“H’m,” he mused, “hair rather gray for a man not yet thirty; still—it looks less like that of a youth of twenty.”

He stroked his carefully trimmed beard meditatively.

“Hides the telltale mouth and chin pretty well,” he murmured. “Mr. Joseph Westbrook can stay where he is for the present, I think.”

The next evening Westbrook called at the Barringtons’. He found Ethel and Mr. Martin at the piano singing a duet which they continued at his solicitation. Then the two musicians drifted into a discussion of Martin’s favorite composer, which was like a foreign language to Westbrook.

After a half-hour of this the lawyer took his leave. Westbrook drew a long breath, but it was caught and stifled in half completion by Miss Barrington’s first remark.

“What a fine voice he has!”

“Er—yes, very.”

“And his knowledge of musical matters is most unusual, too.”

“That so?”

“Yes. He says he wanted to make music his profession, but his parents objected; so he took up law.”

“Indeed,” murmured Westbrook without enthusiasm.

“Yes, but he talks of musicians as glibly as though he had read Grove as much as Blackstone. I haven’t had so good a time discussing my pet composers for many a day.”

Westbrook stirred restlessly, and his hostess suddenly became aware of the hopelessly lost look in his eyes. She promptly changed the subject.

It was the very next day that Mr. Joseph Westbrook appeared in the leading book-store of the city.

“I want some lives of musicians,” he announced.

“I beg pardon?”

“Books, I mean—lives of musicians.”

“Oh, certainly, of course,” apologized the clerk. “Which ones?”

“Why—er—the best ones, to be sure.” Westbrook’s voice faltered at first, but it vibrated with the courage of his convictions at the last.

The clerk suddenly turned his back, and when Westbrook next saw his face it was an apoplectic shade of reddish purple.

“Certainly, sir. Bach, Beethoven, Handel, Haydn, Mendelssohn, Mozart, Chopin——”

“Yes, yes, put me up one of each,” interrupted Westbrook hastily; he was growing suspicious of the clerk. He left the store with more dignity than he usually displayed.

The real estate business would have suffered in the next few days had it depended entirely upon Westbrook, for the greater share of his time was spent in poring over the recent addition to his library. At the end of a month he was sadly entangled in a bewildering maze of fugues, sonatas, concertos

and symphonies, in which the names of Bach, Beethoven, Haydn, Handel, Mendelssohn, Mozart and Chopin were hopelessly lost.

XIII

Westbrook often met the lawyer at the Barringtons' after that first visit. Martin's music and Martin's voice seemed to be unfailing attractions in the eyes of Miss Barrington. Westbrook studied his "lives" assiduously, but only once did he venture to take any part in the discussions of composers which were so frequent between Miss Barrington and the lawyer. That once was sufficient to show him how hopeless was the task he had set for himself; and ever after he kept a discreet silence on the subject of music and all that pertained thereto.

As the winter passed, Westbrook was seen more and more frequently in the company of Miss Barrington. His eye had lost its gloom and his step had gained a new springiness. Just why, Westbrook did not stop to consider. Indeed, the considering of anything was what the man most wished to avoid.

It was on a beautiful morning in May that he asked Miss Barrington to drive with him. The air that brushed his cheek was laden with the fragrance of green-growing things, and the girl at his side had never seemed so altogether lovely. He let the reins loosen in his hands as he settled back for an hour of unalloyed enjoyment.

"I am particularly glad to take this drive today," remarked Miss Barrington, smiling into his eyes, "for, as I go away tomorrow, I may not have another opportunity of enjoying one at present."

"What?" demanded Westbrook, suddenly sitting upright.

"I merely said I was going away tomorrow," she returned merrily, picking out with intuitive skill that portion of her remark which had so startled him. Then something in his face made her add—"for the summer, you know."

Westbrook pulled the reins taut and snapped the whip sharply. Going away! Of course; why not? What of it? Yes, what of it, indeed! Long days fraught with sudden emptiness loomed up before him and stretched on into

weeks devoid of charm. He understood it all now—and he a felon! He could hear a girl's voice saying, "I knew you were a good man the minute I saw your face!" Unconsciously he shrank into the corner of the carriage, and was only brought to a realization of his action by a voice—amused, yet slightly piqued—saying:

"Really, Mr. Westbrook, I hardly expected so simple a statement would render you speechless!"

"Speechless? No, oh, no—certainly not! I beg your pardon, I'm sure," he said, talking very fast. "You're going away, you tell me. It is needless to assure you that we shall all miss you very much. Where do you go, if I may ask—and how long are you to remain?" And he turned to her with eyes so full of misery that she could scarcely believe she had heard his words aright.

Before she could answer there came the wild, irregular clattering of unguided horses' feet. Westbrook turned quickly to see two frightened animals rushing toward them dragging a swaying empty carriage. By a swift and skilful turn he just escaped the collision, but Ethel Barrington felt the hot breath of the beasts as they flew past. In another moment their own startled horse had dashed after the runaways with speed scarcely less than their own.

Westbrook brought all his great strength to bear, then—the right rein snapped. The horse swerved sharply, throwing the man to his knees. The next moment he was crawling cautiously, but rapidly, over the dashboard on to the thill, then to the back of the frightened animal, where he could grasp the dangling broken reins. One strong pull, and the horse stopped so suddenly that the man shot over her head to the ground; but he did not relax his hold, and the trembling animal stood conquered.

Westbrook turned to look into the shining eyes of the girl, who had leaped from the carriage and come close to his side.

"Oh, that was wonderful! But—my God! I thought you'd be killed," she cried, holding out two trembling hands, then sinking to the ground and sobbing out her nervousness and relief.

The man looked down at her with yearningly tender eyes. Involuntarily he extended his hand as though to caress the bowed head; but he drew back

shuddering—that hand had forfeited all right to such a touch. The look in her eyes had thrilled him to his finger-tips, but it as quickly stabbed him with the revelation that not he alone would suffer.

“Miss Barrington, don’t, I beg of you,” he said finally, in a voice that was stern with self-control. “You are completely unnerved—and no wonder.” Then he continued more gently, “But see—Firefly is quiet now. Will you dare to drive home behind her if I can manage somehow to mend the reins?”

A vivid color flamed into the girl’s cheeks and she rose unsteadily to her feet.

“Yes, indeed,” she asserted, forcing her trembling lips to speak firmly. “I am ashamed of myself. I hope you will pay no attention to my babyishness, Mr. Westbrook.”

“You were not babyish, Miss Barrington,” objected Westbrook gravely; “on the contrary you were very brave.” But as he helped her into the carriage he averted his eyes and refused to meet her questioning gaze.

All the way home Ethel Barrington talked with a nervous volubility quite unlike herself. Westbrook made an effort to meet her brilliant sallies with something like an adequate return, but after two or three dismal failures he gave it up and lapsed into a gloomy silence broken only by an occasional short reply.

“I expect my friends will come this evening to say good-bye—I shall see you, shall I not?” she asked gaily as she gave him her hand in alighting at her own door.

Before Westbrook fully realized what the question was, he had murmured, “Yes, certainly”; but when he drove away he was muttering, “Fool, what possible good can it be to you now? Just suppose she knew you for what you are?”

Ethel entered her door and slowly climbed the stairs to her room.

“He cares; I know he does!” she exclaimed under her breath. “But why—why couldn’t he—?” Then the conscious red, that was yet half in pique, flamed into her cheeks and she shrugged her shoulders disdainfully.

When Westbrook called that night she gave him a gracious hand and looked frankly into his eyes with the inward determination to “have no more nonsense”; but her eyelids quickly fell before his level gaze and she felt the telltale color burning in her cheeks. She was relieved when her father broke the awkward silence.

“Well, Westbrook, we shall miss you—we’ve got so we depend upon seeing you about once in so often. We shall be in Skinner Valley in August. You must plan to run down to The Maples then and make us a visit. I should like to show you the mines.”

“Thank you,” replied Westbrook, glancing toward the door and, for the first time in his life, welcoming the appearance of Martin.

Martin advanced, smilingly sure of his welcome, nor did he notice that Miss Barrington’s greeting was a shade less cordial than usual. His coming was the signal for an adjournment to the music-room, and there Westbrook sat with clouded eyes and unheeding ears while the air about him rang with melody. After a time he was conscious that the music had stopped and that Ethel was speaking.

“I think I never heard of anything so horrible!” she said.

From Martin’s next words Westbrook gathered that they were talking of a particularly atrocious murder that had been committed in the city the night before. Then the girl spoke again, her voice vibrating with feeling.

“Oh, but Mr. Martin—only think of a human being fiendish enough to attack his own son!”

Westbrook tried to rouse himself, to speak, to move; but he seemed bound by invisible cords. His head was turned away from the speakers, but he saw their reflection in the mirror facing him, and he noticed that the lawyer’s gaze was fixed across the room upon himself with a peculiar intentness as he said:

“Yes, incredible, I grant, Miss Barrington; and yet, in a little New England town of my acquaintance a boy of twenty shot down his own father in cold blood at their own fireside.”

“Oh, don’t, Mr. Martin—the human fiend!” shuddered Ethel.

The lawyer’s eyes did not waver; a strange light was coming into them.

“A human fiend, indeed,” he repeated softly, half rising from his chair.

Something seemed to snap in Westbrook’s brain, and he forced himself to his feet.

“Your music set me to day-dreaming,” he began, with a smile as he crossed the room, “and your creepy murder stories awoke me to a realization that the sweet sounds had stopped. Come”—he looked straight into Martin’s eyes—“some time you may tell me more of this gruesome tale—I am interested in studies of human nature. No doubt you meet with many strange experiences in your business; but now I want you to sing ‘Calvary’ for me. Will you, please? Then I must go.”

Martin rose to his feet with a puzzled frown on his face and picked up a sheet of music from the piano.

“Thank you,” said Westbrook, when the song was finished. Then he turned to Ethel with extended hand. “I hope you will have a pleasant summer,” he said in stilted politeness.

“You are very kind. Shall I wish you the same?”

Her voice and her fingers were icy. Her pride was touched, and she expressed no hope as to their future meeting, and certainly Westbrook dared not. He left the house with a heart that was bitterly rebellious, and the blackness outside seemed to him symbolical of his own despair.

That night, and for long nights afterward, he rode over the hills outside the city. Little by little his life dropped back into the old rut. All the new warmth and brightness faded with the going of Miss Barrington, and he threw himself into business with a zeal that quickly brought “Westbrook & Company” into the front rank and filled his purse with yet greater wealth—wealth which he had come to hate, and for which he had no use.

XIV

One morning, long after sunrise, Westbrook entered the outskirts of the city and allowed his tired beast to slow to a walk. In one of the poorest streets of the tenement district he saw a white-faced woman, a group of half a dozen puny children and a forlorn heap of clothing and furniture. He was off his horse in a moment, and a few kindly questions brought out the

information that they had been evicted for arrears in rent amounting to thirty dollars because the woman had been too ill to work. He straightway paid the sleek little agent not only the amount due, but also a year's rent in advance and rode away, followed by a volley of thanks and blessings from the woman. He did not know that Martin was the landlord and that he came out of the tenement in time to hear the details of the incident fresh from his agent.

As Westbrook turned the corner of the dingy street a curious elation took possession of him. How the sun shone—how exhilarating the air was! How his heart beat in tune with it all! What was this new joy that seemed almost to choke and suffocate him? Was this the shadow of peace at last?

He threw the reins to the groom with so beaming a smile that the man scratched his head meditatively for a full half-minute.

“Faith, an’ what’s got into the master?” he muttered as he led the horse to the stable.

In the days that followed society was treated to a new sensation—the Mystery turned into a Philanthropist. A school, a library and a hospital were under way in a wonderfully short time. Did Westbrook hear of anyone wanting anything—from a toy to a piano or a dinner to an education—he promptly bought and presented it. The result was disastrous. There came a constant stream of beggars to his door, varying from those in rags asking a nickel to bank presidents demanding a million—for “investment,” of course; furthermore, he was obliged to hire two private secretaries to attend to his mail.

In August came a cordial note from Mr. Barrington inviting him to The Maples for a two weeks’ visit. The stiffly worded refusal which Westbrook despatched by return mail threw John Barrington into a state of puzzled dissatisfaction, and John Barrington’s daughter into a feeling of unreasoning anger against the world in general and Joseph Westbrook in particular. The anger was not less when, two months later, Westbrook called on the Barringtons just four weeks after they had come up to their town residence in Dalton.

It was not a pleasant call. Westbrook was stilted, Mr. Barrington plainly ill at ease, and Ethel the personification of chill politeness; yet she became

cordiality itself when Martin appeared a little later. She chatted and laughed with the lawyer and sent merry shafts of wit across the room to Westbrook and her father. But when Westbrook had gone she lapsed into bored indifference and monosyllables.

Mr. Barrington was called from the room after a time, leaving his daughter and Martin alone. The lawyer broached subject after subject with unvarying ill success, even music itself failing to awaken more than a passing interest. At last he said abruptly:

“Queer chap—that Westbrook!”

“Queer? Why?” almost snapped Miss Barrington.

Martin raised his eyebrows.

“How can you ask?” he returned. “You’ve seen him—you know him!”

Miss Barrington gave the lawyer a swift glance. Just what did he mean? Had he noticed the change in Westbrook’s manner—his indifference—his coldness? Did he think that she——?

Miss Barrington laughed softly.

“Indeed, yes, Mr. Martin, I do know him—slightly, perhaps; but ‘queer’ is not the adjective I would have applied to him.”

The lawyer leaned forward.

“Miss Barrington, *what* do you know of him? Did it ever occur to you how very little any of us know of this man?”

The lady stirred uneasily.

“Really, Mr. Martin, I know him for a gentleman, as you do—I might also add that he is quite a noted philanthropist, of late,” she added teasingly.

“‘Philanthropist!’” scorned the lawyer.

Miss Barrington’s manner instantly changed.

“Mr. Westbrook is doing a world of good with his money; I admire him for it,” she said with decision.

“Oh, of course,” returned the man smoothly. “Still, I wonder why—this sudden generosity!”

“Sudden? It’s a long time since I first heard of Mr. Westbrook’s good deeds, Mr. Martin,” replied Miss Barrington, a vision of Pedler Jim and his hospital rising before her eyes.

“H’m-m,” murmured the lawyer, his level gaze on her face, “you knew him before, perhaps—this man they—er—call ‘Westbrook.’”

The lady sprang to her feet and crossed the room to the piano.

“Oh, fie, Mr. Lawyer!” she laughed nervously. “I’m no poor victim on the witness stand. Come—let’s try this duet.”

The man followed her and leaned his elbow on the piano, but he did not pick up the music nor take his eyes from her face.

“You have known him before, then—under his other name, of course,” he hazarded.

A swift red came into Ethel’s cheeks.

“Perhaps—perhaps not! I really do not care to discuss it.” And she wheeled around upon the piano-stool and dashed into the prelude of the duet.

Martin waited until her hands glided into the soft ripple of the accompaniment.

“Then you, of all people, Miss Barrington,” he began again, “should know that this philanthropic mummery is nothing but a salve for his conscience. Admirable, I’m sure!”

The music stopped with a crash.

“What do you mean?” she demanded. “I don’t know what you are talking about, with your miserable innuendoes.”

Martin’s face paled.

“Innuendoes!” he burst out, losing his temper; “then I’ll speak plainly, since you demand it! Since when, Miss Barrington, have you made a practice of shielding—murderers?”

He regretted the word the instant it had left his lips, but he forced himself to meet Miss Barrington’s horrified gaze unflinchingly.

“Murderer!” she gasped. “Hustler Joe was no murderer!”

At that moment Mr. Barrington re-entered the room and Martin turned to him in relief. Five minutes later he had made his adieu and left the house.

XV

Murderer!

Ethel fled to her room and locked the door, but the word laughed at bolts and bars. It looked from the walls and the pictures and peeped at her from the pages of the book she tried to read. She opened the window and gazed up at the stars, but they, too, knew the hated word and spelled it out in twinkling points of light.

Murderer?

Ah, no, it could not be—and yet——

Away back in Ethel’s memory was a picture of the Deerfield woods that skirted the lawn at The Maples. She saw the tall, grave-faced miner and the imperious girl, and even now the words rang in her ears—“I’m not the good man you think, Miss Barrington!” Half-forgotten tales of “Hustler Joe’s queerness” came to her, too, and assumed an appearance of evil.

And was this to be the explanation of that ride—that ride on which she had almost betrayed herself only to be met by stern words of conventionality? Was this the meaning of the infrequent calls, the averted face, the eyes so misery-laden if by chance they met her own?

A murderer?

Ah, no, no! He was so good—so kind—so brave! There were Pedler Jim, the miners whose lives he had saved, and the multitudes of the city’s poor to give the lie to so base a charge; and yet—Martin had said that these very benefactions were but a lullaby to a guilty conscience.

The night brought Ethel no relief. The dark was peopled with horrid shapes; and sleep, when it came, was dream-haunted and unrefreshing. In the morning, weary and heavy-eyed, she awoke to a day of restless

wandering from room to room. Twenty-four hours later her trunk was packed and she was on her way to The Maples.

It was at about this time that Westbrook's philanthropy took a new turn. He began to spend long hours in the city prison while society looked on and shrugged disdainful shoulders. The striped-garbed creatures behind the bars seemed to possess a peculiar fascination for him. He haunted their habitation daily, yet he never failed to shudder at every clang of the iron doors.

Particularly was he kind to those outcasts from human sympathy—the murderers. So far did he carry this branch of his charity that the authorities ventured to remonstrate with the great man one day, telling him that he was putting a premium on the horrible crime. They never forgot the look that came over the beneficent Mr. Joseph Westbrook's face as he turned and walked away.

It was on that night that the servants said he sat up until morning in his library, raging around the room like some mad creature, so that they were all afraid, and one came and listened at the door. There he heard his master cry out:

“My God—is it not enough? Is there no atonement—no peace?” Then there was a long, quivering sigh, and a noise as of a clinched hand striking the desk, and a low muttered, “Oh, the pitiless God of Justice!”

In the morning Westbrook left the house before breakfast and boarded the eight o'clock train for Skinner Valley.

XVI

Westbrook had gone back to Skinner Valley for a talk with Pedler Joe, having it in his mind to tell the little hunchback his life story as that of a friend of his and so get the benefit of sound advice without quite betraying his secret. But the door opened suddenly and Bill Somers burst into the store.

“There's another blow-up at the mine!” he gasped thickly. “An' the old man's daughter—she——”

“What old man's daughter?” demanded Westbrook, his lips white.

“She—Barrington’s girl—is down there in that hell! She went in with her friends at two o’clock. They——”

“Which entrance?” thundered Westbrook, with his hand on the door.

“Beachmont! They——”

Westbrook dashed down the steps and across the sidewalk, whipped out his knife and cut loose a horse from the shafts of a wagon in front of the store. The next moment he had mounted the animal and was urging it into a mad run toward the Beachmont entrance of the Candria mine.

Again did he face a crowd of weeping women and children crazed with terror; but this time there stood among them the bowed form of the great mine-king himself. John Barrington’s lips were stern and set, and only his eyes spoke as he grasped Westbrook’s hand.

Once more did a band of heroic men work their way bit by bit into the mine, fighting the damp at every turn under Westbrook’s directions.

Barrington had looked at the preparations in amazement.

“How comes it that this Westbrook, this millionaire, knows the mine so well?” he stammered.

A woman standing near—Bill Somers’s wife—answered him.

“That’s Hustler Joe, sir,” she said softly.

Hustler Joe! John Barrington drew a deep breath as the memories of the Bonanza catastrophe came to him.

“Thank God for Hustler Joe!” he breathed fervently. “If anyone can save my little girl, ’tis he!”

“You’re right, sir—an’ he’ll do it, too,” returned the little woman, her eyes full of unshed tears.

XVII

Slowly, so slowly, the rescuers worked their way into the mine. One by one the unconscious forms of the miners were borne back to fresh air and safety. But no trace could be found of Miss Barrington and her band of sightseers.

At last, far down a gallery, Westbrook heard a faint cry. With an answering shout of reassurance he dashed ahead of the others and came face to face with Ethel Barrington.

“You!” she cried.

“Yes, yes; you’re not hurt?”

She shook her head and leaned heavily against the wall. The reaction was making her head swim.

“And your friends?”

“Here”—she pointed to the ground almost at her feet. “They’re not hurt—they fainted.”

Stalwart miners poured into the narrow chamber and lifted the prostrate forms, leaving Westbrook to follow with Miss Barrington. That young lady still leaned against the wall.

“I—we should be going; can you—let me help you,” stammered Westbrook.

“Oh, I can walk,” she laughed nervously, making a vain attempt to steady her limbs as she moved slowly away from her support.

Westbrook caught her outstretched hand and passed his disengaged arm around her waist.

“Miss Barrington, you’re quite unnerved,” he said, his voice suddenly firm. “Pardon me, but you must accept my assistance.” And he half carried, half led her down the long gallery, at the end of which they could hear the steps and voices of their companions.

All the misery of the last few days fled from Ethel’s mind. She was conscious only of the strength and bravery and tenderness of the man at her side. Martin’s hated words became as phantoms of a past existence.

“You—you haven’t told me how you came to be here today, Mr. Westbrook,” she began again, a little hysterically. “I thought you were in Dalton.”

“I came down this morning,” he said. Then added softly, “Thank God!”

Ethel was silent for a moment. When she spoke again her voice shook.

“As usual, Mr. Westbrook—you are near when I need you! If I am ever in danger again, I shall promptly look for you. Now see that you do not disappoint me!” she added with assumed playfulness, trying to hide her depth of feeling.

They had almost reached the turn when a distant rumble and vibrating crash shook the walls about them, throwing Westbrook and Miss Barrington to the ground. It was some time before the man could stagger to his feet and help his companion to stand upright.

“What—what was it?” she gasped.

Westbrook advanced two steps only to come sharply against a wall of earth and timbers.

“My God—the roof is fallen!” he cried.

She came close to his side.

“Then there was another explosion?”

“Yes.”

“But they will find us?”

“That wall may be—” he stopped abruptly.

“Many feet in thickness, I know,” she supplied.

“And the damp—if it should enter the gallery from the rear—” his voice choked into silence.

“I know—I understand. But—we are together!” She laid her hand on his arm.

He caught the hand and held it in both his own, then slowly raised it and laid the soft palm against his lips.

“Ethel—Ethel—may God forgive me!” he whispered brokenly.

She swayed dizzily, and he caught and held her close.

“I—I think I am going to faint,” she murmured. “I——”

His arms tightened their clasp and her head drooped until it lay in the hollow of his shoulder.

“Ethel, darling—only one little word! Ah, sweetheart—I’ve loved you so!”

She raised her hand and just touched his cheek with her fingers, then let her arm fall about his neck. His head bent low and his lips closed over hers as she drew a long, quivering sigh.

“May God forgive me,” he breathed, “but ’tis the end—the end!”

XVIII

When Ethel Barrington regained consciousness she was in her own bed at The Maples, but it was a full two days after that before they let her ask the questions that so often came to her lips. It was her father who finally answered her.

“Yes, dear, you were unconscious when the miners found you. Westbrook could barely speak. Why, girlie, when that second crash came and the miners realized that Hustler Joe—as they insist upon calling that remarkable man—was himself imprisoned, they swarmed into that mine like ants and attacked the fallen wall like madmen! Those that had no pickaxe clawed at the dirt and stones with their naked fingers.”

“And—Mr. Westbrook?”

“Is all right and has been here every day to inquire for you and to bring you these,” replied Mr. Barrington, with a wave of his hand toward the sumptuous red roses on the table.

The girl’s eyes lingered on the flowers and her cheeks suddenly glowed with a reflection of their vivid color.

“He is very kind,” she murmured as she turned her face away.

For a week Westbrook and his roses made daily calls. At the end of that time it was reported to him that Miss Barrington was feeling quite like herself. The next morning Westbrook did not appear, but his roses came in charge of a boy together with a note for Miss Barrington.

The missive bore no date, no salutation, but plunged at once into its message.

That I should address you at all is an insult, but my cowardly weakness when we were last together makes it a greater insult for me to keep silence now. I have waited until you were quite recovered before giving you this, for I know that it will give you pain—and that it *will* give you pain is at once my greatest curse and my greatest joy. That I should have dared to love you is despicable, but that I should have allowed you to give me even one tender thought in return is dastardly—and yet, nothing in heaven or hell can take from me the ecstasy of that one moment when your dear lips met mine!

Forgive me—think kindly of me if you can, for—God help me—I am going away, never to look on your face again. I was a boy of twenty when I committed the sin against God and man that has made my life a thing of horror. For years I have sought for peace; adventure, work, wealth, philanthropy—each alike has failed to bring it. I am going now to my boyhood's home to receive my just punishment.

Ah, Ethel, Ethel, my lost love—what can I say to you? I have but words—words—empty words! I can see the horror in your dear eyes. I am not worthy of even the thought of you, and yet, my darling, oh, my darling, were it not for this dread shadow on my life, I swear I would win you for my darling in very truth!

But now—God help me—farewell!

There was no name signed, but this Ethel did not notice until she had read the note three times with her tear-dimmed eyes; then she whispered:

“Poor fellow! He could not sign ‘Westbrook’ and he would not sign—the other.”

Much to John Barrington's amazement, his daughter insisted upon going to town on the noon train that day. In response to his persistent objections she assured him that she felt “perfectly well and quite equal to a journey around the world, if necessary.”

At four o'clock Lawyer Martin was surprised by an urgent note summoning him to the Barringtons' Dalton residence on Howard Avenue. Half an hour afterward he was ushered into the presence of Miss Barrington herself.

The interview was short, sharp and straight to the point. A few hours later Miss Barrington and her maid boarded the eight o'clock express for the East.

XIX

Twenty-four hours passed after Westbrook had sent his letter to Miss Barrington before he could so arrange his affairs as to start for the little New England village of his boyhood. All day and all night he had worked with feverish haste, and the time had flown on wings of the wind; now, when he was at last on the morning "Limited," the hours seemed to drag as though weighted with lead.

He could see it all—the proud new name he had made for himself dragged low in the dust. He knew just how society would wonder and surmise; just how the maneuvering mamas would shake their skirts in virtuous indignation and how the doting papas would nod their heads in congratulation over a miraculous escape.

He knew how the poor and friendless in the great city would first deny the charge, then weep over the truth. He knew, too, the look that would come to the faces of the miners, and he winced at even the thought of this—Hustler Joe had prized his place in the hearts of his miner friends.

There was one on whom he dared not let his thoughts rest for a moment; yet it was that one's face which seemed ever before his eyes, and it was that one's voice which constantly rang in his ears.

Again the sun had set and it was twilight in the little New England village. The street had not changed much—the houses were grayer and the trees taller, perhaps.

As he neared the familiar gate, he saw in the window the face of a silver-haired woman. Was that his mother—his dearly beloved mother of

long ago? She turned her head and he was answered.

After all, would it not be better to pass on and away again, rather than to bow that gray head once more in grief and shame?

His steps lagged and he almost passed the gate. Then he drew a long breath, turned sharply, strode up the path and pulled the bell.

The sweet-faced woman opened the door. The man's dry lips parted, but no sound came, for from an inner room advanced Ethel Barrington with a gray-haired man whose kindly face wore a strangely familiar smile.

"What is it, wife? Is it—Paul?" he asked in tremulous tones.

EPILOGUE

It was long hours afterward that Paul Joseph Weston sat with Ethel alone in the library.

"But yourself, dear—you have not told me yet how you came to be here," he said.

She laughed softly.

"Rash boy! Was there not need of someone's preparing your father and mother for so wonderful a home-coming? I found out by judicious inquiry that you had not yet left the city, so I knew, when I took the train, that I had at least a few hours' start of you."

"But how—what—how could you, dear? Surely I didn't tell——"

Again she laughed, but this time she dimpled into a rosy blush.

"When your very disquieting letter came, sir, I remembered something Mr. Martin had once said to me. I went to town, sent for Mr. Martin and insisted upon his telling me all that he knew of—your youth."

"And that was?"

"That he believed you to be Paul Weston, who had quarreled with his father and run away after apparently killing the poor gentleman. Mr. Martin said that the father did not die, but slowly recovered from his wound and made every possible effort to find his son, even sending Martin himself to seek for him. Once Martin traced the boy to a mining camp, but there he

lost the trail and never regained it until he thought he saw Paul Weston's features in Joseph Westbrook's face."

"Ethel, what did Martin first tell you of me that caused you to go to him for aid?"

"He hinted that you were a—ah, don't make me say it, please!"

The man's face grew stern.

"And he knew all the time it was false!" he cried.

She put a soft finger on his tense lips.

"We just won't think of him—and really, I've forgiven him long ago, for it was he that helped me in the end, you know. Besides, he acknowledged that he didn't really suppose you were Paul Weston. I—I fancy he didn't want me to think too highly of this interesting Mr. Joseph Westbrook!" she added saucily.

The arm that held her tightened its clasp.

"He needn't have worried," she continued, with uptilted chin. "I shall never, never marry Mr. Joseph Westbrook!"

"Ethel!"

"But if Hustler Joe or Paul Weston should ask——"

Her lips were silenced by a kiss and a fervent, "You little fraud of a sweetheart!"

Interludes

THE rich man speaks about how he spends his money,
while his friends speak about how he made it.

You could tell the old-time hero by his medals; the
modern one is known by his collection of loving-cups.

The spendthrift sometimes does more good with his
money than the philanthropist.

The fact that figures won't lie probably accounts for the invention of statistics.

A political job differs from any other kind, inasmuch as you work before you get it, instead of afterward.

The miser holds on to his own money; the millionaire to other people's.

His Cogitation

“WELL, then, amongst others, there's the man who habitually talks to himself,” ruminatingly said the Pruntytown Philosopher the other evening. “If he does it in order to listen to himself, he is a fool; if he does it to avoid listening to his friends, he is a sage; and if he does it to save his friends from listening to him, he is a philanthropist.”

The Safe Side

R EPORTER—Were you quoted correctly in that interview in the morning papers?

S ENATOR—Come around the day after tomorrow. How can I tell until I see how the interview is going to be taken?

An Inference

“M Y wife and I have lived happily together for twenty-five years.”

“Now, tell me, old fellow—in confidence, of course—which one of you has had the other bluffed all this time?”

The Constitution

BY FREDERICK UPHAM ADAMS

*Author of "The Kidnapped Millionaires," "Colonel Monroe's Doctrine,"
"President John Smith," "Shades of the Fathers," etc.*

THE practical man values a house not by its antiquity, but by its conformability to modern standards of construction and equipment. If he purchases an ancient structure he is not required to pay an added price because of its lack of plumbing, its absence of gas and electric lighting fixtures, and he is not entranced that its roof leaks and that its cellar is damp and moldy.

This same man, if he gives the subject a passing thought, will likely assure you that the Constitution of the United States is a perfect document because it is more than one hundred years old. It also is likely that this is the extent of his information concerning that famous document.

The average lack of knowledge concerning our National Constitution is astounding. Like children who have been drilled to repeat the Lord's Prayer without the faintest conception of what the petition means, we have mentally drilled ourselves to believe that our Constitution is perfect, that it was inspired by a superhuman wisdom, and that it is treason to criticize or even discuss its infallible precepts.

In this respect we are the most narrow, bigoted and prejudiced people who pretend to keep in alignment with progress. For more than one hundred years we have been proclaiming the perfection of our free governmental institutions, and calling on other nations to admire us and to follow our example.

Within the past few years the truth has been forced home on us that the officialdom of our townships, villages, cities, counties, states and of the nation is maggoty with corruption; that our local, state and national legislatures are openly controlled by mercenary private interests; that the scandals concerning our judiciary can no longer be smothered or concealed;

that our citizens are powerless to pass laws demanded by the majority, or to defeat those aimed to despoil the majority; that the burdens of taxation are spurned by those who have amassed wealth by means of unfair and oftentimes purchased legislation, and that the domination of corporations and vested interests is so complete as to be apparent to the dullest of the plundered.

This language is not exaggerated. It is impossible to overstate the enormity of the depth to which we have descended in the scale of political morals. Ten years ago any one of the disclosures which now are made from week to week would have aroused the nation; today the repetition of these horrors dazes those who attempt to keep track of them. Not one crime in a hundred ever sees the light in printer's ink. The bigger thieves are so buttressed and protected by the fortifications of wealth, and so secure behind the barbed wire entanglements woven by the courts, that their enraged dupes cannot reach them.

Great Britain is a republic in all save name, yet no such conditions prevail under its government. France is a republic, yet its people are not despoiled by official brigands, neither is the free expression of its electorate crushed beneath the massed weight of its moneyed interests.

I count it a disgrace to be an American so long as these degrading conditions prevail. It is a dishonor to live in a city, community, state or nation where thievery is condoned or tolerated, and it is cowardly weakness for the honest majority to assume that the problem of corruption is past their solving.

The most formidable barrier in the way of permanent redress has been erected and is maintained by those who are checked by it. It consists of the absurd assumption that our material prosperity has been the consequence of the perfect provisions of our National Constitution. It is manifested in the senseless worship of the forefathers, and the ignorant deification of the founders of the document, which for more than a hundred years has served as a model for our state, municipal and local governments.

We have come to recognize the hopelessness of honest majorities when pitted against the machinery of our municipal governments; we no longer deny that the cumbersome machinery of our state governments lends itself to the manipulation of corrupt private interests; the suspicion has dawned on us that our National Congress is more concerned with thwarting public

sentiment than in conforming to it; and despite all this knowledge we steadfastly refuse to direct our gaze to the prime cause of these abuses.

With a hundred monopolies filching from us that which we have created—and doing it under the guise of law and by sanction of the Constitution; with legislatures, executives and courts scorning to put into operation those remedies for which we have legally voted—and declining to do so under the authority of the Constitution; with a system of taxation which places all the burdens on those who are poor because they are producers of wealth, and releasing from taxation those who have become rich because of their exploitation of labor and through the debauching of its representatives—this system being founded on constitutional decisions—we yet cling to the childish delusion that ours is the only perfect government ever bequeathed to mankind.

Compared with the governments of England and France we have only the semblance of self-rule, while they possess the substance. The people of Germany have more direct influence over legislation than have those of the United States. Despite an autocratic emperor, surrounded as he is by a nobility and protected by the most powerful standing army in the world, the people of Germany have made greater progress along the road of democracy within the last twenty years than we have.

If in England there is valid reason to believe that the majority of the people hold an opinion counter to that of the administration in power, Parliament is dissolved and a direct appeal is made to the voters for a new body of representatives. The new Parliament meets and proceeds to pass the laws demanded by the electorate. There is a House of Lords, but it does not dare reject a measure known to be popular. There is a king, but he has not exercised his veto power for more than a century and a half, and one need not be a prophet to hazard that he never will exercise it again. There is no supreme court in England. In that benighted monarchy when the people pass a law it is a law, and not a guess.

To all intents and purposes the same procedure obtains in France and in a score of other countries which might be named. Ours is the only country on earth where the vote of a citizen has no direct significance.

We are not permitted to vote for a President, but are allowed to help choose electors who represent not us, but the state. There is no such thing as

a citizen of the United States, so far as the franchise is concerned. If you have a vote it is by grace of the state in which you reside. The Constitution does not recognize your individual sovereignty in any way. If you doubt this assertion read that document.

The state fixes your qualifications as a voter. It might debar you because of your sex, because of your height, because you were not worth \$100,000, and you would have no redress under the Constitution of the United States. Possibly you did not know this.

In practice you are privileged to vote for members of the Lower House of Congress. That is the beginning and the end of your influence so far as your national government is concerned. You have nothing to do with the selection of senators, and I doubt if you are consulted as to the composition of the Supreme Court.

As I have explained, if the Lower House of the Legislature in England passes a law, it at once becomes a law. Under our Constitution the Senate has the power to amend or defeat it. This is supposed by us to be the quintessence of all earthly legislative wisdom. This is Check Number One on the mandate of the foolish people. In passing, I desire to repeat that this is the only alleged republic or constitutional monarchy yet remaining on earth which assumes that its majorities are unfit to influence legislation.

If the measure demanded by the people be so fortunate as to pass the House and Senate, the President may veto it. This is Check Number Two on the mandate of the foolish people. If the President sign the measure the Supreme Court may declare it unconstitutional, and that is the end of it, unless a subsequent infallible Supreme Court should overrule the decision of the first infallible Supreme Court. This is Check Number Three on the mandate of a free and enlightened people. In the event that the Supreme Court should decide that a law is a law, the financial interests adversely affected may and do defeat its enforcement by legal quibbles as to details, or may and do resort to the bribery of the officials charged with the execution of the law. These are Checks Numbers Four and Five on the will of the people in this, the one perfect system of popular government ever designed in all history.

We are the most corrupt nation on earth because of “our peculiar form of Government”; because of the exactions and limitations of a Constitution

which was designed to protect and conserve the interests of property rather than of citizenship. Those who are astounded or offended at this statement need only read the record of the convention which drafted the Constitution in order to satisfy themselves as to its moderation. I do not mean to insinuate that the fifty-five delegates who met in Philadelphia in 1787 had any idea of establishing a system which would foster corruption, but the records absolutely prove that they deliberately planned to suppress the rule of the majority in order that popular clamor might not menace property interests. The train of abuses from which we now suffer flow logically from the checks they then provided; checks which place selfish and corrupt wealth beyond the reach of public redress.

Those foolish persons who have been taught in school and in the public prints that the founders of our Constitution were sincerely desirous of establishing a system of government in which the will of the people should find free expression, will be shocked and undeceived when they read its debates and proceedings as recorded by James Madison, one of the delegates from Virginia. When one comes to learn of these fifty-five delegates that not more than ten are on record as voicing the slightest degree of confidence in the wisdom of the people or their fitness to rule, he is likely to take a new view of the Constitution framed by them, and he is able to account for the innumerable ills which we are compelled to suffer.

I will quote a few expressions of opinion from delegates who wielded the greater influence in the construction of the Constitution:

Roger Sherman—"The people should have as little to do as may be about the Government."

Elbridge Gerry—"The evils we experience flow from an excess of democracy, the worst of all possible evils."

John Dickinson—"A limited monarchy is one of the best governments in the world."

Rufus King—"It is immaterial to the people by what government they are possessed, provided they be well employed."

Alexander Hamilton—"The British monarchy is the best government in the world," and he doubted if anything short of it would do in America. "Their House of Lords is a most noble institution."

Alexander Hamilton—He acknowledged himself not to think favorably of republican government. “Inequality in property constitutes the great and fundamental distinction in society.”

Gunning Bedford—“Are we to act with greater purity than the rest of mankind? Our votes are actuated by interest and ambition.”

Gouverneur Morris—“The Senate must have great personal property; it must have the aristocratic spirit; it must love to lord it through pride. To make it independent it should be for life. Property is the main object of society.”

John Rutledge—“Property certainly is the principal object of society.”

Pierce Butler—“Slaves should have an equal representation in a government which is instituted principally for the protection of property, and is of itself to be supported by property.”

Charles C. Pinckney—“Property in slaves should not be exposed to danger in a government instituted for the protection of property.”

George Mason—“It would be as unnatural to refer the choice of a proper character for President to the people as to refer a test of colors to a blind man.”

James Madison—“In future times a great majority of the people will not only be without landed but any sort of property. If they combine, the rights of property will not be safe in their hands.”

James Ellsworth—“As population grows, poor laborers will be so plenty as to render slaves useless.”

The thirteen delegates, from whom I have quoted were the dominating characters in that convention, and it is possible to cite innumerable passages expressing the same distrust and contempt for the people. It should be understood that the great mass of the people had no representation in that secret conclave, and that half a century passed before its proceedings were made public by Act of Congress.

I have touched on these facts for the purpose of indicating clearly that the right to ignore the majority is inherent in the Constitution. The Senate was provided for the special benefit of property interests, and at one time a clause was adopted, decreeing that no one could be elected a Senator of the

United States unless he was worth \$50,000 or more. This cautious provision was abandoned because there were states which had no men with that amount of property. Having provided a Senate they continued to pile up checks against the people, until such aristocrats as Gerry, Randolph and Mason attempted to call a halt, declaring that the people would be so stripped of power that the last of their rights would disappear. Their warnings were disregarded, and they absolutely refused to sign their names to the document.

With these facts within access of every citizen of the United States, the vast majority of us still adhere to the myths and falsehoods contained in our school books and uttered by ignorant demagogues and editors.

It is likely that the aristocratic delegates who framed the Constitution had just reason to fear the people it was intended to hold in check. The average citizen of 1787 was a savage compared with the average voter of today. He knew of no world beyond the narrow limit of his horizon. He was ignorant, prejudiced, suspicious and envious. The builders of the Constitution regretted that it was necessary to grant him even the shadow of political power and were consumed by the dread that the Lower House of Congress would overawe all other branches of the new government.

In that day wealth had little influence as a mass, but it was strong in its instinct of self-preservation. It trembled lest the poor should combine at the polls in a crusade for the legal despoiling of the rich. Having absolute control of the convention it was free to design a document which would include every possible check against the aggressions of the dreaded masses, and it rightly conjectured that the magic of the name of Washington would induce the people to consent to the provisions aimed against them.

We of today are caught in the trap set for those who lived more than a hundred years ago. Not until after the nation had been plunged into a civil war between two factions—each of which claimed strict allegiance to the Constitution—did conditions arise which afforded a fair test of the restrictive features of that document. So long as the wealth of the nation was so distributed as to prevent the formation of conspiracies in its behalf, the masses were able to conserve their rights, despite all of the checks and restrictions in the Constitution. It was this fairly maintained state of

equilibrium which half a century ago gave rise to the worship of our system of government.

When the first unscrupulous man found himself in possession of millions of dollars the Constitution became not his master but his tool. When the officials of our first great corporation found it practical to bribe legislation, the trap set by the forefathers was sprung. I do not mean to hint that the founders of the Constitution foresaw any such outcome. They constructed a device to protect themselves, and their bones had crumbled into dust before wealth was sufficiently armed and equipped to take advantage of their mistakes.

Wealth seized upon the senates, state and national. It found in the judiciary a natural ally, and it did not hesitate to invoke the aid of partisanship and the unblushing use of corrupt influences, direct and indirect, in order to subject the courts to its domination. This is a blunt statement, but the time has arrived when the courts can no longer be covered with a machine-made robe of sanctity. There are good judges and bad judges, but the decisions of the latter are as binding as those of the former. A corporation judge is not a priest; he is a low type of politician.

Our aristocratic forefathers designed a Constitution intended to protect themselves against a majority. Our modern corporations and vested interests have discovered that the same machinery oiled with bribery can be used by the minority for the purpose of plundering the majority. Our forefathers invented checks; our trusts have converted them into bludgeons. Our forefathers constructed constitutional ramparts, behind which they hoped to be safe from the attacks of the majority; our vested interests have bristled them with guns, behind which they demand and receive tribute.

NOTE—In the May number Mr. Adams will treat of the necessity for the revision of the Constitution, and consider how it may legally be accomplished.

In Absence

BY EUGENE C. DOLSON

WITH miles between us—miles of land and sea,
However far my wandering footsteps roam,
Still memory ever backward turns to thee—
Queen of my heart and home.

In Outline

“MANY a man complains that he lost his health in business, although he was not in business for his health.”

“The quickest way to get to the top in this world is to have someone let you in on the ground floor.”

“Money often fails to bring happiness, on account of the way it has been made.”

“The world may owe you a living, but you have to work hard to collect the debt.”

“One-half the world doesn’t care how the other half lives.”

“The man who courts an investigation has generally been making love to other people’s money.”

Not Guilty

TAVERN LOUNGER—That ’ere smooth-shaved, horse-faced feller jest goin’ into the dinin’-room looks like an actor.

LANDLORD—Yes; but you bet yer life he ain’t one! He came day before yesterday, paid his bill in advance, and ain’t kicked about anything yet!

A Discovery

“**I** HAVE looked the matter over with reasonable care,” said the Pruntytown Philosopher, with his usual acridity, “and I have reached the conclusion that it is not absolutely necessary to send boys to college in order to have ’em act the fool.”

A One-Sided Alliance

JUDSON—Do you think capital and labor will ever work together?

BUDSON—It looks that way. At the present time the landlord and the tenants seem to be both engaged in raising the rent.

At the Zoo

THE PARROT—The eagle says he has been bald ever since he can remember.

THE COCKATOO—Gee-whiz! Those eagles marry very young, don't they?

The Gray Weed

AN EXTRACT FROM THE "LONDON TIMES" OF FEBRUARY 8, 1909

BY OWEN OLIVER

OWING to the lamented death of Professor Newton, to whose wisdom and courage the world owes its deliverance, I have been asked to contribute to the first newspaper issued in the new era some account of the terrible weed which overran the earth, and threatened to stifle out mankind.

The professor had intended dealing with the origin of the weed, its relations to ordinary plants, the nature of its growth, so far as this proceeded, and the forms which it would ultimately have assumed. Unfortunately his notes upon these points are so abbreviated and technical as to be unintelligible to me; and personally I possess no qualifications for dealing with the scientific aspects of the case. So I must confine myself to a plain narrative of the occurrences which I witnessed.

It was nine o'clock in the evening of November 10, 1908, when I left my office in Norfolk Street, letting myself out with a duplicate key which the hall-porter had intrusted to me. I thought at first that it was snowing; but when I put out my hand and caught a few of the particles, I found that they were flimsy white seeds, something like those of melons, only less substantial. Where they lay in heaps—as I thought—in the road, their color appeared to be gray. At the Embankment end of the street the "heaps" were larger; and when I came to them I discovered that they were not seeds, but a growth of gray weed, which fastened round my shoes as I tried to walk over it.

I stooped and took hold of a piece to examine it; but, when I attempted to pluck it, it stretched like elastic, without breaking off. The tendrils were round, and about one-fourth of an inch in diameter when not stretched.

They had, at intervals, spherical bulges which, at a distance, bore the appearance of small berries. These appeared to be of the same substance as the tendrils. The latter began twining round my fingers, and I had some difficulty in releasing them. The road and the Embankment were deserted by people, but three or four horses at the cab stand were plunging with fright as the weed wound round their legs. It had grown perceptibly in the few minutes that I had been observing it, and, feeling somewhat alarmed, I made my way back along Norfolk Street.

The weed had spread a good deal there also; and I noticed that wherever a white seed fell a fresh plant sprang up, and grew with marvelous rapidity. In the Strand the weed was nearly a yard high. The 'bus drivers were whipping their frightened horses in a vain attempt to drive over it. The foot-passengers were unable to move, except a big man, who, with a small axe, hacked a passage through the growth for himself, his wife and his daughter—a pretty girl of about nineteen.

They were making their way down to the Embankment, but I warned them that the weed was thick there. The young lady then suggested that they should try to get into one of the houses, and I invited them to come to my offices. The tendrils were seizing people and pulling them down and binding them like flies in a spider's web. We could hear cries and screams all along the Strand, and a cab was upset by the struggles of the horse. The weed had spread over Norfolk Street, while we were talking, and it clung to our feet as we ran. The lady tripped and fell. The tendrils seized her immediately, and we had great difficulty in freeing her. When we had entered the door of the house we could not close it until we had chopped away the tendrils that followed us.

I turned on the electric light in the halls, and took my new friends to my rooms, which were on the fifth floor. The elder lady was faint, and I gave her some brandy and soda and biscuits. I had a good stock of these fortunately.

The gentleman's name was George Baker, his wife was Marian Baker, and the girl was Viva. They had been buying curiosities in the Strand, and the axe—a roughly engraved Moorish instrument—was fortunately among their purchases. Some people whom they met in the streets had told them that the weed was growing all over London, and that the Guards had been

ordered out to cut it away. A learned old gentleman had conjectured that the seeds were the atoms of some dissipated planet, or the elements of some world that was to be, and that they contained the raw elements of life, which set them growing when they came into contact with suitable matter.

“It’s diabolical!” Mr. Baker said furiously. “The vestries ought to send round water-carts with weed-killer, or—or something. I don’t know what they ought to do; but they ought to do something.” He wiped his face excitedly with his handkerchief. “Diabolical!” he repeated. “It grows through the flagstones, the wood paving, everything. It—it seizes people!”

“Seizes people!” his wife repeated, wringing her hands. “We saw it.”

“It clings to you,” the girl added tremulously. “*Clings* to you. If it goes on growing——!”

Her mother gave a sharp scream, and her father groaned.

“If it goes on growing——!” they said together.

“It won’t,” I assured them, with an indifferent appearance of confidence. “Those things that grow like—like fungi—never do. It will shrivel up suddenly, and let people go again. I don’t suppose they’re really hurt, only frightened. In an hour or so you’ll be on your way home, and laughing about it; and I shall be thanking the—the fungus—for some pleasant acquaintances. I look upon this as a little surprise party.”

The girl wiped her eyes and forced a smile.

“A little surprise party,” she agreed. “What are you going to do for our entertainment, Mr. Adamson?—I saw the name on the door-plate.”

“Henry Adamson,” I said, “and very much at your service, Miss Viva—I have some cards, but——”

I paused doubtfully. Her mother held up a trembling hand, and her father shook his head.

“We won’t have any fool’s games,” he said. “Let’s talk.”

Viva and I talked in broken sentences, and her mother and father in monosyllables. We kept glancing at the window, but no one had the courage to draw up the blind for nearly an hour. Then we opened the window and looked out. The weed was fully six feet high in the street, and higher in the

Strand. It had overrun the 'bus that stood at the opening. If there were people on the 'bus, it had overrun them, too.

"It doesn't seem to hurt," I said. "There's no screaming now." I shuddered as soon as I had said it.

"There is no screaming now," Viva repeated. "I suppose they—they are all——"

Her voice broke. Her father shut the window sharply and drew her away.

"It will be gone in the morning," he asserted, "as—as our friend said. We shall have to impose on your hospitality for the night, I am afraid, Mr. Adamson."

"There is no question of imposing," I assured him. "I cannot say how glad I am to have your company."

We made a couch for the ladies by putting several hearth-rugs on the table in the clerks' room, and laying two rugs of mine to cover them. Mr. Baker and I dozed in front of the fire in my room in chairs. Toward the morning I fell into a sounder sleep. When I woke he had pulled up the blind.

"It's fifteen feet high at least," he told me. "Halfway up the second windows. God help us!"

I joined him and saw the roadway filled with a sea of gray weeds. They looked like india-rubber reeds. The largest were as thick as my little finger, and the bulges were the size of damsons. We opened the window and listened. Presently a caretaker opened a window nearly opposite and called to his wife.

"Here's a rum go, Mary," he shouted, with a laugh. "Bulrushes growing to the street! We sha'n't have any clerks pestering us today."

The woman joined him, and they laughed together because they would have a holiday. They treated the matter as a joke, and evidently disbelieved us when we told them of the terrible events of the preceding night. So we closed the window and called the ladies. I made some tea on my ring-burner, and we breakfasted on that and biscuits. The ladies avoided the window, and so did I, but Mr. Baker went to it every few minutes. After

each visit he whispered to me that it was still growing. Mrs. Baker seemed in a stupor, but Viva tried hard to cheer us. She sang little snatches of song under her breath as she washed the tea-cups; and once she said that it was great “fun.” Her mouth trembled when I looked reproachfully at her.

“Mother is so nervous,” she whispered. “I have to pretend, to cheer her. Do you think it will—grow?”

“Heaven knows!” I said. “But you are very brave.”

After this, she and I sat at the window, watching the tendrils growing and growing, and clutching incessantly at the air. I thought, at first, that they were swaying in the wind, but there was no breeze. Also there was an indescribable air of purpose about their movement. A number of long branches spread themselves over a window opposite. Their swaying ceased, and they pressed on it steadily, till at last it broke with a dull crash. Mrs. Baker fainted, and her husband lifted her on to the sofa. Viva clung to my arm. The malicious tendrils broke down the window-frame, piece by piece, and spread slowly into the room, winding themselves round the tables and chairs.

“If anyone had been there,” Viva cried hoarsely. “If—if—” She looked at me. Her eyes were big with fright.

“They must be doing something to stop it,” I said—“the—the authorities. If we could find out! I’ll try the telephone.”

After several calls I obtained an answer. It was a girl’s voice. Six of them had stayed all night in the exchange, she said. They were in communication with the police and the Government Offices. The soldiers had been out since the previous evening, and had cut their passage from Chelsea Barracks to Victoria Street, and along this almost to Westminster Bridge. They had intended coming on to Whitehall and the Strand; but the stuff grew almost as quickly as it was cut down, and had overpowered many of them. Over a hundred had been crushed to death by it, and they had sent for gun-cotton to try and blow it up, as a last resort. It was known, through the telegraph, that the weed had appeared all over England and on the Continent. It was also growing out of the sea. The English Channel was choked in places, and several vessels had been bound by the weed in sight

of the coast. "It's alive!" she wailed; "alive! Its eyes are watching us through the windows!" (The bulges had the appearance of eyes.)

I was unable to obtain any further answers, although I tried the telephone several times. By one o'clock the third-story windows were covered. The thickest tendrils were then nearly the diameter of a florin, with the bulges the size and shape of exceedingly large plums. The stems and bulges seemed to be of one homogeneous material. There were no leaves or fruit or flowers at this time, but branches were beginning to sprout from the main stems. There did not appear to be any communication between one stem and another; but, according to Professor Newton's notes, this undoubtedly took place at the roots, which interlaced so as to form a gigantic nervous system or brain.

We made another meal of tea and biscuits. Mrs. Baker seemed stupefied with horror, and her husband was evidently overcome by his anxiety for her, and scarcely spoke. Viva and I tried to talk, but our voices broke off in the middle of words. We listened vainly for any explosions, and concluded that the attempt at rescue had failed. By four o'clock the weed was up to the window-sill. Mrs. Baker was in a prolonged faint. Her husband sat beside her, with his head on his hand. He did not look up when I suggested carrying her out on the roof.

"The cold would rouse her," he said. "It is best as it is. You're a good chap, I think. Do what you can for my little girl."

I put on my overcoat, crammed the pockets with biscuits and a flask, and persuaded Viva to accompany me to the roof to look for a way of escape, for us and for her parents. We never saw them again.

Some people from neighboring houses were on the adjoining roofs already, two old caretakers, a man and a lad. We saw about twenty more on the roofs in other streets. Some of them were raving and singing. The caretakers who had spoken to us in the morning flung their window open. They were laughing as if they had been drinking. They brought two pailfuls of boiling water and emptied it upon the weed. There was a soft hissing sound. Then two—four—six quivering tendrils reached slowly toward them. The man and woman seemed fascinated. They did not attempt to move, only screamed. The tendrils seized them; bound them round and round. Viva buried her head on my shoulder, and I shut my eyes. It was

about half a minute, I think, before the screams ceased. Then there was crash after crash as windows were broken in. The weed had its passions, it seemed.

“Take me back to my mother and father,” Viva begged. “We can all die together—if you would rather die with us?”

“Yes. I would rather die with you, Viva,” I said. “I should have liked you very much if we had lived.”

We returned to the trap-door, but the staircase was choked with the weed. As we looked down it seemed to be a pit of twirling gray snakes. We called to her mother and father, but there was no answer. Viva would have flung herself among the weed, but I held her and carried her back to the roof. The weed was beginning to crawl over the gutters. Long rope-like filaments were surrounding the other people who were on the roofs. They huddled together and did not attempt to escape. The tendrils overran them and bound them round and round. I think they had mostly fainted. There was only one cry.

The tendrils lashed one another and fought over their prey. Their struggles made a repulsive, “scrooping” noise—a noise like the sound of stroking silk, only louder. There was also a sound of crunching bones.

I did not notice the weed closing round us till Viva clutched my arm.

“Hold me,” she begged. “Hold me tight! I thought life had only just begun——”

I supported her on one arm, and backed toward the Strand end of the roof, where the weed had encroached less. We stumbled against a skylight. The attic below was empty. I opened the frame, lowered Viva and jumped down after her. We crouched in a corner watching the window. One—two minutes passed. Then the gray weed, with the bulges that simulated eyes, pressed upon it. The glass shivered upon the floor. I lifted Viva in my arms—she was too faint to walk—and carried her out on the landing.

The light was bad, and I saw no weed till we reached the next landing. Then it stretched toward us from the broken window-frame. A dozen gray ropes crept toward us from the stairs when we approached them. The lift was standing open. I pushed Viva in, jumped after her, slid the steel railing to and lowered us. A tendril caught at the lift as we started. I heard it snap.

In my excitement I lowered the lift too fast. We were thrown against the sides and almost stunned when it stopped. There was barely a glimmer of light, and we did not know if we had reached the bottom of the shaft or had been stopped by the weed. We listened for a long while and heard nothing. Then we let ourselves out and advanced a few inches at a time, feeling round us with our hands. We seemed to be in the hall of the basement. We came upon a table and found a tray on it with biscuits and milk. We drank the milk and Viva stuffed the biscuits in her pockets, as mine were full. There was a dim, barely perceptible light from an area window. We peered up through the grating into the forest of huge weeds. The trunks, which had grown to the size of young elms, only swayed a little; but the branches above twisted and twined incessantly. Viva shuddered when she saw them, and I took her away.

“We are safe down here,” I assured her; but she pressed her hand over my mouth.

“Hush!” she whispered. “Hush! It may hear.”

We wandered about in the darkness till we found a caretaker’s room. We sat there on a sofa, holding hands. We never lost touch of each other all the time. I do not know how long it was. It seemed years. The basement was very quiet, but the sound of the india-rubbery motion came down to us. Once or twice we thought we heard a human cry. Once a mouse squeaked, and a spider dropped on the couch beside us with a thud. We were always listening.

After an unknown time we groped our way into the scullery to get water. We had just drunk when we heard the sound of india-rubbery tentacles dragging themselves over the walls. Something clung to my hand. Something held her skirt. It tore as I pulled her from it. Something was in the way when we tried to close the door. It followed us across the room and into the passage. We felt along the walls for the door that we thought led to the cellars—found it—fastened it after us—groped down the stairs. It was darker than the darkness of the basement above—darkness that could be felt. We stumbled over some coals—and a rough, hoarse voice came out of the darkness.

“Give us your hand, guv’nor,” it said, “just a touch of your hand. I’ve been alone here for—for a thousand years!”

Something staggered toward us—stumbled against us; and a huge rough hand gripped my arm.

I put myself between him and Viva and pressed her arm for silence. The voice and grip were not reassuring, and I hoped he did not know she was there.

“Here is my hand,” I said.

“And mine,” said Viva eagerly. “You are a friend—of course you are a friend. God bless you.”

“God bless you, lady.” The rough voice softened strangely. “I—I’m sorry to intrude.”

He drew back a little way from us and sat down. I could not see him, but I could hear him breathe. Another unknown time passed. Then Viva whispered that she was thirsty.

“There’s a pail of water,” the man said, “if I can find it.” He moved about in the darkness till he kicked it. Then he brought it to us. We drank from the pail and ate a few biscuits. I offered him some, but he said that he had a crust left. Viva and I explored the cellar and found a shovel and a pick. I suggested that we should try to break through into the next cellar, on the chance of finding food; but Viva and the man feared that the weed might hear us.

She and I sat on an empty packing-case, and she laid her head on my shoulder and slept. After a time I slept too. The man woke us.

“There’s something moving, guv’nor,” he said hoarsely. “I think it’s growing out of the floor. Strike a match, and give me the shovel.”

We found forty or fifty weed plants growing. He beat some down with the shovel, but others clutched him round the legs. He was a strong, rough-looking man and he fought furiously, but they pulled him down. I gave Viva the matches and went to his rescue with the pick. The weeds seized me too, but he cut us both free with a clasp-knife, and at length we destroyed them all.

We saw by the matchlight that the wall was cracking in one place. So we resolved to try to get through it. The man dislodged a few bricks with

the pick, and we pulled others away till our fingers bled and the last match gave out. At length he managed to crawl through.

“You come next, sir,” he proposed. “The lady would be frightened of me.”

“Dear friend,” Viva said, “I am not in the least afraid of you.”

So he helped her through, and I followed. We discovered a passage, and along the passage another doorway—and people. I do not remember our words when we found one another in the dark—only the gladness of it.

There were about twenty of them—men, women and children. They had food and drink which they had collected before they fled to the cellar. Professor Newton was among them. He seemed acknowledged as their leader, and he proposed me as his second. He wanted the aid of an intelligent and educated man, he whispered, in fighting the weed.

“We *must* fight it,” he declared, tapping me on the arm with his finger, “but I don’t know how. I—don’t—know—how!—I can’t even guess what it is; still less what it is going to be. It may be mere vegetable life—a man-eating plant. It may be brute animal life—a *carnivorous* animal! It may be intelligent—diabolical intelligence. Whatever it is, it will develop as it grows, develop new organs and new powers, new strength and new weaknesses. We must strike *there*. What weaknesses? Ah-h! I don’t know! It may outgrow itself and wither. It may perish from the little microbes of the earth, like the Martians in Wells’s romance. We thought that an idle fancy *then*. It may grow into an intelligent—devil! It may be one now and merely lack the organs to carry out fully its evil will. On the other hand, its malevolence may be purposeless—a blind restlessness that it will outgrow—after we have stifled in the darkness at its feet. We must fight it anyhow. To fight it we must understand it. To understand it we must study it. Will you risk your life with me?”

“Yes,” I said.

Viva cried softly when I told her I must go; but she did not try to keep me from my duty. The professor and I crawled up the stairs into the basement, and finding nothing there went up in the lift in the dark. We heard the weed moving about on the second landing. I jumped out, turned on the electric light, and jumped in again. The tendrils followed me and

clutched at the steel curtain, but could not break it. We hacked with our pen-knives at those that crept through. The juice which ran out from them had an oily smell. They beat furiously on the curtain. The professor studied them calmly with a microscope. The bulges were the beginning of eyes, he thought. He pronounced some feathery sprays sprouting from them to be the rudiments of organs like hands. I do not know whether he was right, but he always maintained that they would develop organs of sense. Anyhow the character of the weed was clearly changing. It had grown harder and drier, but without losing its flexibility or strength.

After a time the professor decided that I should return to the others. He went up again in the lift when he had lowered me. Viva was waiting for me in the dark just inside the door.

I had obtained some candles. We lit one and stuck it in a bottle. I shall never forget the group in the low, wide cellar, huddled together on boxes or on the floor. The man we met first was nursing an ailing child. Lady Evelyn Angell had gathered a young flower-girl under her opera cloak. A policeman was binding up a wounded hand with his handkerchief. A shivering old match-seller wore his cape. Viva took a little boy on her lap and told him about Jack and the Beanstalk. Steel—a card sharper, I learned afterward—who had been indefatigable in helping everyone, was chatting to Lady Evelyn. Some ill-clad youths had draped themselves in sacking. A rouged and gaudily dressed woman was mothering some younger ones. She had comforted Viva while I was away, I heard, and had offered to accompany her in a search for me, but the others had persuaded them that they would only be a hindrance to us.

After a couple of hours—I had wound my watch again—the professor reappeared. His clothes were torn and his face and hands were bleeding.

“They broke the steel curtain at last,” he explained, “but I got away. Good heavens, how it grows! I can’t make up my mind about it.”

After a time, when most of us were dozing, a portion of the roof and the wall fell in. The growth of the roots under the street had pressed the earth upon it, the professor conjectured. A faint light streamed down the tall weeds and through the opening. The branches overhead were still moving, but the lower stems seemed inert. The professor decided to venture among

them in search of knowledge. I went with him. There was just room enough between the weeds for us to pass.

The houses upon the other side of the street were all down. So were many in the Strand. In Fleet Street we saw the way it was done. The huge weeds leaned upon them, till they fell with a crash. The Law Courts went so. We found the clock among the weeds. Sometimes the branches pushed themselves through the windows and walls of houses which were still standing. Once or twice we heard human cries. We found a woman, with a baby and a dog, walking among the weed-trees, and took them with us.

The light which straggled down through the waving branches overhead was feeble and patchy, and we lost our way for a time. At length we found Norfolk Street; but as we were entering it, some of the tendrils, which seemed to be fighting one another viciously overhead, broke off and dropped at our feet. They writhed upon the ground like huge gray snakes, and wound themselves round the weed-trees and lashed out blindly. One of them caught the woman and dashed her against a trunk. We pulled her away from the tendril as its violence lessened, but she was dead. The baby was not hurt and still slept. I carried it in my arms.

A moment later a broken tendril dropped right upon the dog. He howled loudly, and in his fright bit at an unbroken tendril hanging down among the trees. (There were a good many such, but we had succeeded in avoiding them hitherto.) It shook as if with rage and pain, wrapped its extremity round the dog, and bore him aloft, still howling. Hundreds of tendrils stretched toward it, and fought with it for the dog. They still fought after his cries ceased; and other tendrils began reaching downward, in every direction round us, as if searching for further prey. The professor watched them intently, oblivious of danger.

"They make a different sound now," he remarked abstractedly. "It is no longer the scroop-scroop of clammy india-rubber—they *rustle*. It doesn't seem like decay. They are stronger—stronger. There is always weakness in excess of anything—even strength. Let me think!"

"Quick!" I cried. "Quick! They are falling upon us. Run!"

We dodged rapidly among the weed-trunks. He was slow and I pushed him. Tendril after tendril rustled downward, and the trunks themselves

swayed. Two almost fixed the professor between them—he was a stout man—but I dragged him through. The light from above was entirely shut out by the descending tendrils, and we must have been lost but for an electric lamp burning in one of the houses. As it was, the descending tendrils must have caught us but for their struggles among themselves. Broken pieces dropped and wriggled madly all round us, and we had to dodge them. One caught at my foot, and dragged my shoe off as I pulled myself away. Several touched us as we slid down the debris into the cellar. They followed us there.

A few of the people screamed. A few fainted. The rest backed in a huddled, wide-eyed crowd toward the farthest wall. Lady Evelyn stood in front of the children, holding out her arms as if to shelter them. Steel came and stood in front of her.

“Dear lady,” he said, “these have been the best days of my life—since we met. I should have been a better man if I had met you before.” She smiled very sweetly at him.

“I like you greatly, Mr. Steel,” she said.

The rouged woman came and took the baby from me, and I tried to pull the professor back; but he would not come. Viva ran out from the crowd and put her arms round me. The tendrils drew nearer and nearer. Some came along the ceiling, hanging their heads like snakes. Others crawled along the floor, raising themselves as if to dart at us. I do not know whether they saw us, heard us or smelt us, or how they knew where we were; but they knew.

They were within a yard of the professor, and still he did not move; only took the burning candle from the bottle, and railed at them as if they could hear. I thought that he had gone mad.

“Do you think man has learned nothing in his thousand generations?” he shouted. “That you can crush him with the brute strength of a few days? Come and see! Come and see!”

The foremost tentacle wound round him; began to lift him. He felt it carefully with his hands. “It is dry,” he shouted—“*dry!*”

Then he put the candle to it!

There was a wilderness of white light. Then a purple darkness. I heard the professor fall. When our eyes recovered from their dazed blindness the weed was utterly gone. The daylight was streaming into the hole in the wall, and the professor was picking himself up from the floor. His hair and beard were badly singed, and his eyebrows were gone.

“It dried too fast,” he told us, with a queer angry chuckle. “That was its weakness. It dried—dried——”

He kept on repeating the word in a dull, aimless tone. The rest repeated it vacantly after him. Viva was the first to speak coherently—a faint whisper in my ear.

“My dear!” she said. “My *dear!*”

Lady Evelyn spoke next—to ex-card sharper Steel.

“The world begins afresh,” she said; “and—you *have* met me, Mr. Steel.”

The tears rolled down her cheek and his, and they stood smiling at each other.

“The world begins afresh,” the professor called in a loud voice. “Come with me and make it a better world.” He strode toward the light, but some held back.

“The weed!” they cried timorously.

“The weed has gone—burned in an instant, from the end of the world to the end of the world!” he assured them. “Follow me.”

We followed him out of the darkness into the sunlight. It was a mild, bright day for November, and a pleasant air.

The weed had disappeared entirely, as the professor predicted; and, speaking generally, the conflagration had been too sudden to do much harm; but most of the buildings had subsided upon the sudden destruction of the weed-roots which had undermined them. Here and there houses, stones and timber had caught fire; and in many districts the fire spread, and lasted for days.

The statistics, which are being prepared in the New Department for the Service of the People, over which I have the honor to preside, are not yet

quite complete; but I may mention that seventeen per cent. of the buildings on the north of the Thames are found to have been destroyed, and ninety-three per cent. on the south—the wind having blown mainly in that direction; and that the destruction of property in Great Britain and Ireland generally is roughly estimated at fifty-five per cent.

The adventures of our little band, after we came out from our hiding-place, scarcely belong to this story; but I must set down a few events which stand out in red letters in our calendar of the world after the Gray Weed.

Upon the first afternoon we learned that there were other survivors—which we had not dared to hope—by finding a man, woman and child nearly dead with hunger and fright, hiding in a basement. We formed ourselves at once into small parties to go round London, wherever houses yet stood, and rang the church bells, and blew trumpets, and beat drums, and shouted to all those who remained to come out. Here and there frightened groups of white-faced, famished, disheveled people answered the call. As our numbers increased we sent parties to search the cellars and other hiding-places, and rescued many at their last gasp. The total number of survivors in London, where the percentage of deaths was highest, amounts to some 35,000.

Upon the second day we obtained several replies to our calls by telegraph to the provinces; and the next day we were in telegraphic communication with most parts of the United Kingdom and even the Continent. In almost all towns at least one or two persons had escaped. In some parts the Gray Weed had left open spaces, or a few houses, to which people could flee, and only a portion of those who reached them had died from starvation. In a few instances it was alleged to have refrained from injuring those with whom it came in contact. Also it failed to crush many of the ships which it seized at sea—the sea-growths generally being less virulent than those on land. So far as our statistics go at present, we hope that nearly one-eighth of the population of Europe has survived.

On the fourth day the first train from the provinces to London was run; and several ships, which the weed had overgrown without injuring, came into port. After this, traffic was rapidly re-established.

A fortnight later our present government was provisionally established. The professor, whom all hailed as their deliverer, refused office himself; but

upon his nomination I was appointed to my present position. Several of our little band were assigned important posts, including Steel—now known by another name, and married to Lady Evelyn—and Viva, who is presiding over the London Homes for Orphans, until our marriage. The day after tomorrow a newspaper appears.

We have toiled unremittingly to reconstruct the social and commercial life of the country, and not without success. We have few luxuries, but no wants; fewer workers, but no drones; fewer to love—but we love more—I think the world will go well, now, because we love one another so much.

“The Gray Weed has solved the problems of poverty, envy, crime and strife, which have puzzled mankind for ages,” the professor said, just before he died. “Don’t cry, little Viva. Ah! But I felt a tear on my hand! There is nothing to cry about, my child. *They* have gone; and *I* am going; but *you* have learned to love. It is all for the best!”

“All—for—the—best,” he repeated at the last, and smiled. That is his message to you to whom I write, dear friends.

With Caste Against Him

BY HUGH PENDEXTER

TIBERIUS Smith in love was a spectacle I had never conjured up. Billy Campbell, the strolling actor and his patron's Boswell, had pictured the old showman to me as being arrested for a spy in Russia, for a madman in France, for a too active Carlist in Spain and for smuggling opium in China, but he had never hinted at sentiment. I had taken it for granted that Smith's many wanderings over the face of the earth with his various theatrical enterprises and circuses had eliminated any inclination for love-sickness, and it seems it had until he met the lord's daughter.

That was like Smith. It was impossible to conceive of him as married and settled down, and when he did fall in love it was his characteristic to indulge in a hopeless passion. For all that, the lord's daughter was forced to see him at his best, sturdy and resourceful, when others failed her, and I doubt not but that this knowledge was sadly sweet to the old showman, and that in after years he enjoyed diagnosing the climax and realizing it was superbly dramatic. If she ignored his existence at first, he had the keen pleasure of knowing she had only him to rely on at a most critical finale and that her world was better, much better, for his having lived.

Possibly the trick could have been turned without him, turned in a prosaic manner with some bloodshed and a great waste of gunpowder. But when a lovely girl is the stake, be she a lord's daughter or a queen from the masses, it is sometimes advisable to finesse. And Tiberius, if slightly melodramatic, solved the problem as he could only do, and as only he could do—that is, in an unusual manner. Campbell used to style him the “assassin of adversity,” and his peculiar faculty of rescuing the weak from undesirable situations was, perhaps, never better demonstrated than when, with cutter bars down, he restored the English girl to her people and incidentally introduced the uses and abuses of modern farming implements to some unsophisticated savages in a lonely Pacific isle.

I had recurred to the time when Tiberius piloted an Uncle Tom's Cabin company up and down the land, and Billy, gazing sadly into my open grate, irrelevantly observed:

"Yes; and that was when Tib ought to have won her and settled down. He was clear daffy over that girl, and I'll admit she was a hummer; one, you know, that would make a man abandon his grandmother in a blinding snowstorm if it pleased her. But I reckon Fate had other work cut out for Tiberius besides spooning, love in a cottage and no money for the iceman and all that sort of stuff. Yes, it was fully ten years ago that the *Kalanke* broke her propeller."

"You are speaking of a boat?" I inquired.

"Lord bless you, yes. The *Kalanke* was one of Lord Blam's boats; ran from the Coast to Australia. You see, Tib got the bee that an Uncle Thomas show would take in Australia like four squaws in a no-limit game; and once he had outlined the bill of fare, there were plenty of us come-ons pushing out our plates and begging for a helping. I suppose that when it came to the realm of pure "con" there wasn't a hypnotist doing a mail order business that could lay it on quite so succulent and plausible as he. Lord, we *had* to believe him. He believed in himself.

"'Why, Harriet,' he cried, drawing up his dear, fat old form and looking more honest than any real estate dealer you ever kenned; 'why, Harriet, don't linger over the paltry twelve dollars a week I'm supposed to pay you. Don't even hesitate. Forget that part of it. Imagine you are paying me for the chance to go. Picture, if you please, Opportunity, clean-shaven and bald-headed, gliding by your door in a seventy-eight horse-power gasoline romp-about at the mirk hour of midnight with you chloroformed and locked in your gilded cage. Picture me with a jiu-jitsu strangle hold on Oppo, detaining him until you can come to, slip into your Horse Show gown and come down and relieve me. Then you are feasting your magnetic orbs on truth. Why, the people down there will be so worked up over your "Papa, dear papa, set Uncle Tom free," that they'll wreck your hotel with showers of gold.'

"She was a slim, ingrowing woman, who always played the Little Eva parts and was the teariest thing ever between the wings. Clarence, her husband, booked for Legree, balked a little and said he'd stand a blankety,

blank, all blanks, nice chance of getting his showers in lead after he'd massacred Thomas. But Tib poured a little balm into his wounds, and that was how we came to hop the *Kalanke* for Australia.

"The boat was one of Lord Blam's new line and was fixed up regardless. Besides the passengers, she did quite a freight business and carried our lots of horses and farm implements. Our troupe traveled second class except Tib, who always went the limit—or walked. Besides the company there weren't many passengers aboard, as it was in the dull season; but we hadn't cuffed the deep blue for more than two days before Tib met his fate.

"She was the English girl, all blue eyes, and peaches for complexion; and Tib haunted her usual promenade like a mosquito. She was the lord's only daughter and was making a flying trip to Sydney, where her father lay ill. She had hurried from Washington to 'Frisco and caught the boat with her maid. The Captain was the rest of her bodyguard. But Tib had the Captain solid at the go-in, and through him and his own gall he managed to speak to Miss Mary.

"She was about as approachable as the Eiffel Tower. She was the first bit of peerage I had ever seen traveling alone, and I would prefer trying to get chummy with an iceberg to speaking to her. But a man or a woman had to be armor plate to withstand Tib when he put himself out, and at the end of one day he had made her laugh; then she got a bit interested in him and I knew he was spinning romance.

"When he got to giving his Vermont family an old chateau environment and spoke of the good old days at 'The Oaks,' and his father's pack of hounds, aristocracy wanted to crawl into a safe deposit vault and slam the door or get scalped. He could jam more poetry and *pâté de foie gras* breeding into his round form and look more dreamy passion from his pleading eyes than any man that ever made a house believe a bum show was a good one. He was all right, I tell you, and if Little Eva hadn't butted in when we were doing things to the equator, and asked him to come down and play stud-poker in the smoking-room, I reckoned he'd have won a few plighted troths anyway. I shall always believe he had her clinging to the ropes when Eva made the fatal stab.

“‘Do you know those people in the second cabin?’ demanded Her Lordship with an eighty-two degrees north voice.

“Tib groaned and tore his brown hair and admitted he owned us. ‘The vase is broken,’ he cried. ‘I’ve got the bell and it’s back to the barriers.’

“Well, he felt so bad over that girl that he almost wept. It wa’n’t her titled papa, or the coat of arms; it was just a case of She. When he was talking to her he forgot he was merely a showman. He believed all about the old ivy-covered manse and the hounds. Why, I’ve even heard him call the pups by name. And his father never owned anything more blue-blooded than a sheepdog.

“‘Billy,’ he said to me as we smoked down aft, ‘I never met a girl yet I felt so soft over. I know I’m older than she by some years, but I keep my age locked up in the baggage-room and we might have been happy if not for Little Eva.’

“And Miss English was mad. She scolded the Captain for presenting Tib, and told him her father would do things once we’d sighted old earth. And the Captain was on the anxious seat, for her father was his meal ticket and had delegated him to fetch out his daughter O. K. But on the next night we began to forget it, when we steamed into the heart of a flying wedge of terrific winds.

“I decided that if ever we got ashore it would be to have the folks come down to the beach and look at us and say, ‘How natural they look.’ Some of the gingerbread works were carried away the first night of the blow, and whenever the wind let up a bit the live stock would throw in a few *ensembles* that made one pray for more breeze. Yet the boat behaved well, and if something hadn’t happened to the propeller we’d have come through in rare form. But when the chief engineer began to parade out his kit and try to mend things while standing on his head I knew the game was getting serious. Now we were bumped by every billow, and I heard a petty officer whisper that we were being driven far from our course.

“At last the kick stopped, or else we’d slipped out of the storm zone, and at about three o’clock in the morning we dropped anchor near a dear little island that the Captain couldn’t name with any great degree of exactness.

“The anchorage was so good and the water so smooth that our engineer said it would be easy to take the boat to pieces and put it together without losing even a shingle nail. Well, you can indulge in a small wager that we were all up and happy when we came near enough to smell the land. The sky was clear and peppered over with incandescent lights, and Tib felt so good that he waltzed up to the *She Saxon* and observed: ‘I regret you have been inconvenienced by the storm.’

“Say, she just turned and dragged her two sapphires up and down his anatomy as if he were a seven-leaf clover. Then she stabbed him four times with as many glances and turned and walked forward to the Captain. Cap wheeled around with his lips pursed up to say something unwholesome, but seeing who it was he swallowed it, and it hurt. Then she asked something in a low voice and he shook his head slowly. Then she stamped her hoof and he seemed to give way. At last he called a man to him and gave some orders. The next thing we knew a boat was dropped and she was being rowed ashore by four sailors.

“‘Isn’t it rather dangerous to let the lady go ashore?’ asked Tib of the Captain.

“This gave the Captain a fine chance to ease his mind, and he did it by pouring out his whole heart to Tib in a comprehensive flow of profanity. He cursed Tib up hill and down, but Tib was so round it all glanced off. Cap told him that Miss Mary had gone ashore to get rid of his presence. Tib shuddered. Then the Cap reminded him that a British skipper takes sass from no one except the owners, and ordered him back with the rest of us. Another gilt braid sneaked up and told Tib the Cap meant nothing, that he was only feeling cross at being delayed. As to Miss Mary, he swore she was as safe when guarded by the four tars as she would be on her father’s deck. Besides, the island was probably vacant, he added, and she would take a short stroll on the beach beneath the stars and then return. But Tib was uneasy. He said no one could ever diagnose the disposition of the average cut-up residing on an oceanian isle. ‘Billy,’ he concluded, ‘I’m cut to the heart. She won’t even look at the same ocean with me.’

“In about an hour’s time, just as the sun was lazily crawling out of his bed of blue—say, old chap, that sounds voluptuous as well as poetic, doesn’t it?—well, as the sun appeared there came to our ears a loud cry

from the beach, and we could see some dots bobbing up and down trying to act intelligent. In two jumps the Captain shot off in a boat, and, without seeming to touch land, was back again on the run.

“The lord’s daughter had been carried off by the natives, was the startling intelligence he fed out to his officers. It seems she wanted to walk up a little hill and get a view of the sea, and, although the sailors protested, she had ordered them to remain behind; and, like idiots, they obeyed her. Then they heard a smothered scream and ran to the rescue, only to meet with a shower of spears and clubs and to witness a large band of barefooted taxpayers making off with the skirts. One of the sailors had his arm broken, another had a spear through his shoulder, and all were badly bruised and battered. The Captain was crazy. He ordered his men to arm and rush to the rescue. At first he was going to lead them, but some of his officers soothed him down a bit and made him see his place was with the boat. It was not only necessary to rescue Miss Mary, but the tub must be in condition to carry her away when she was recovered.

“But when Tib asked permission to join the posse the Captain broke loose again and swore he’d have the boss in irons. If it hadn’t been for Tib it never would have happened, he cried. I chipped in then and reminded him Her Lordship was too high and mighty to hunt for an exit just to avoid a mere man, and I closed with the Stars and Stripes and our consul in Australia. This distracted his attention a bit, for he forgot Tib in swearing at our consular service.

“‘Billy,’ groaned Tib, ‘I guess the Cap is right, and I’m to blame for her going ashore. But these volunteers will never get her by hunting the brownies with a brass band.’

“Well, we put in several long hours of waiting, and then two men returned and said reinforcements were needed, as the men had discovered a large village a few miles inland, which they didn’t dare to attack alone.

“‘Guess you’d better let some of the passengers chip into this game now,’ advised Tib.

“The Captain began to rave again, but, seeing that the men left were needed in making repairs, he had to give in. Just then some more of the

crew came back to the beach and, once aboard, panted that the colored folk were getting aggressive and wouldn't even wait to be attacked.

“‘To the boats, men!’ cried the Captain, while the steward served out howitzers.

“Before the order could be obeyed the officers and the rest of the gang rushed down to the beach. Their news was worst of all. They said the heathens had produced Her Lordship in view of all and had threatened to kill her if her friends didn't beat a retreat.

“‘If we show violence she's lost,’ sobbed one of the men.

“The Captain was dazed. He was brave enough and would gladly fight to the last gasp; but he didn't want to recover Miss Mary dead. He tried to mumble something about strategy, and Tib caught it. It was the psychological moment for him.

“‘If you'll turn the management of this show over to me I'll go and get her,’ he said simply.

“Some jeered him in wild anger, some eyed him in amazement, and others were ready to grasp at any suggestion.

“‘I mean it,’ he repeated firmly, drawing up his fat form and beginning to radiate heart waves. ‘Force will avail nothing, except to kill the lady. Do as I say and let the galleries back me and a few of my men, and I honestly believe we can turn the raffle.’

“Discipline was lost sight of as all clamored for pointers. ‘Hoist up a few mowing machines from the hold, drop twice as many horses over into the surf, while the carpenters are knocking together a float. Then ferry the grass clippers ashore and have your mechanics put them together. That's the scenario.’

“Some said he was crazy, but I believed he could fill his hand if they let him alone, and the Captain asked if he intended to palm off the mowers as machine guns.

“‘If they can't recognize a mowing machine you don't expect 'em to be conversant with Maxims, do you?’ groaned Tib. ‘No; I'll play 'em as mowing machines and win out at that. I believe they'll be big medicine with the natives.’

“Of course the Captain pooh-poohed the scheme. He said the niggers would kill the lass before the paraphernalia could be thrown together.

“‘And while you’re doing nothing and can think of nothing to do, they may kill her,’ cried Tib. ‘And her blood be upon your head! Mine is the only plan that’s been advanced, and it is practical. It’s unusual, but you can’t impress these folks with shotguns. It’s got to be something new in the way of scenic effect. If I had an airship I’d use that. But I haven’t. We can use the mowing machines and stagger the banditti. We can start in three hours if you’ll only give the word. Besides, I shall want the full chorus to follow with their batteries. You lose nothing, unless it be me and some of my friends and the machines.’

“‘Hoist ’em up,’ commanded the Captain, and the gang caught Tib’s enthusiasm.

“‘Now, who’s game for a little romp?’ asked Tib gently of us actors, his brown eyes collecting in two needle points. ‘I want my own men for the leading parts in this deal. Now, who’s game?’

“Of course I said I was, as I owed him poker money. Little Eva’s husband said if he could have one more drink he’d play tag with the devil, and Uncle Tom was on if he didn’t have to black up. Tib wanted one more operator, and a young fellow that was coming out to hold down a stool in his father’s branch house in Sydney agreed to chip in if he could have time to write something sad to his parents. Tib reminded him the postman wouldn’t have time to collect the mail before we returned, and so the five of us made ready. The Captain ached to go, but Tib reminded him he must take command of the rear-guard.

“I was for grabbing up a papaw root and dashing blindly into the weeds, but Tib held us all back as he outlined his scheme more fully. The mowing machines would dazzle the natives, he contended, and while he and his men were trifling with the aborigines’ superstitions the Captain and his bullies were to rush in, surround the captive, or else cover Tib’s retreat, once he had rescued her. And say! You never saw men work as did those boys on the *Kalanke*. The donkey engine was mounted in a trice and the big crates, containing the mowing machines, intended for peaceful pastoral scenes, were yanked out on deck. By that time the carpenters had put a raft together and the clippers were soon ashore with a bevy of mechanics impatiently

waiting to get in their work. When the different parts of the machines had been assembled and joined each to his neighbor, some half-crazed draft horses came through the surf and were promptly caught. Then boxes of harness were ripped open, and there we were, as gay a cluster of charioteers as you would meet with outside a star production of 'Ben Hur.'

"Tib, as the head Mazeppa, jumped onto the first auto completed and tested the gearing. Then with his hat tipped jauntily over his right ear he reminded the Captain that the crew should loiter not too far in the rear, but always out of sight of the enemy, until we gave the signal to advance, three pistol shots. Then he cried, 'Cutter bars up!' and away we clanked around the base of the low hill.

"We had received tips as to the course to take, and it would have done your heart good, sir, could you have seen us in that bringing-in-the-sheaves effect. We only needed wide-brimmed straw hats, with handkerchiefs knotted carelessly about our throats, to be the village heroes in the average rural melodrama.

"The land, lucky for us, lay flat and hard baked by the sun, once we were around the hill. Then Tib's good sense in picking his own men was demonstrated. Always in the lead as we trundled over the hard ground, he had only to move his hand to cause us to catch the signal and obey. Back of us, scuttling through the occasional brush, was our bodyguard, and the glint of the sun on the gun metal was a wonderful antidote for homesickness. In advance a fringe of woods told where the English girl was held captive. We expected to encounter outposts, but I reckon the foe measured our love for a woman by their own standard and couldn't conceive of a man risking his life to save a squaw.

"At last we struck the shade and sure enough found a broad avenue between the trees, just as the boatswain had mapped out. Then came another level stretch, only not so long as the first, bounded by a slight rise. It was just beyond this that the village was located. We approached as slyly as we could and cautiously gained the top without being interrupted. Just below us was the encampment, consisting of several scores of low huts. They were arranged like the spokes of a wheel, with broad streets radiating from the centre. The voters were having a big powwow, and they made so much noise that they had failed to catch the sound of our steeds or wheels.

“‘Now, children, list,’ commanded Tib. ‘I’m going to drive straight ahead. Billy will wend his way to the right and pick up the first spoor, followed by Simon Legree, who takes the second trail. Uncle Tom takes the first left aisle, followed by young Add Six and Carry Two. And we’ll form a cluster, God willing, in the centre of the exposition, where there seems to be a commodious green. Attention! Cutter bars down! Forward, trot!’

“And we five chauffeurs dashed into the hippodrome in the most ridiculous fashion. Tib bounced up and down like a rubber ball, and to fall from the seat meant a badly sliced up white man. But the effect was stupendous. I reckon the brunettes never before gazed on such wags as we must have appeared to be. Bang! Smash! we rode through their rotten village, and the machines needed oiling. Of all the rasping, clattering noises you ever heard, sir! Black nightmares rushed to get out of the way as we cleaned out the lanes.

“Snip! snip! and Tib had shaved off the corner of a mud villa. Crunch! and Simon picked up a totem pole. Every tooth in those five cutter bars was working and the collateral we chewed up didn’t do ’em a bit of good. But, as Tib said, it was only a one-night stand and our game was to sell tickets and ramble away. So on we careened, the horses wild with fright, now and then the shears picking up a brown toe as some devotee fell prostrate in his flight and babbled a cast-iron prayer to some burglar-proof god. It simply swept them off their feet, sir. Before they woke up we had entered the middle square.

“And if there wasn’t Her Lordship, trussed up between two poles, white as death!

“‘If you’ll pardon the bucolic style of my turnout, dear lady, I should be felicitated to have you accompany me back to the ship,’ cried Tib cheerily as he slashed her free and held her so she would not fall. And during it all he was apparently oblivious to the frescoes of black faces staring in stupid awe in the background.

“‘Can it be I’m saved!’ she whimpered, brushing back her twenty-two-carat hair with an uncertain gesture.

“‘Tut, tut,’ cried Tib heartily as he took her hand and tripped a merry morris toward his chariot. ‘I guess there’s no danger. These people are

simply crude in their deportment and evidently believed you some wandering goddess and would detain you awhile.'

"'You are a brave and a good man,' she choked.

"'I guess your hosts think me the devil. Excuse me, lady,' salaamed Tib.

"'Never a man took greater risk,' she murmured.

"'An Uncle Tom's Cabin company, lady, will take any risk, or anything outside a church,' replied Tib. 'Whoa, Montezuma. Now hop up here on my knee. These bronze pieces will come to their senses in a second.'

"And when Her Lordship jumped up into his arms the wonder-stricken gang gave a howl and came out of their trance. We countermarched in those rigs so that Tib had the lead when we quit the plaza, but not before one big buck, attired in a war club and a workmanlike spear, gave a grunt of disapproval and raised his trowel behind Tib's back. I had been expecting one of them would draw to that card, and while his arm was pulled back I pinked him from the hip, and the sunlight was turned off so far as he was concerned. But they didn't mind crowding into hell so long as they could regain the woman, and my shot took the Japanese out of only one of them. And as we swarmed up the slight rise they came yowling along behind us, disturbing the peace in a variety of ways. But just as Simon Legree fired three shots in quick succession a fringe of strained-faced tars popped over the crest in front, preceded by the busy end of their repeaters. Under cover of their diversion we gained the top and bounced down on the other side with the neighbors renewing their pursuit.

"Just as everything began to look cozy and homelike my pair of Jaspers decided they were afraid of the ocean, and, hang me, if they didn't turn about and caper back right in the face of the dancing spearmen. I couldn't hold 'em, and so I just dropped the cutter bar and pulled out my junk, only expecting to muss a few of 'em up before I was registered. My friends began to howl behind me, and I tossed a glance over my shoulder and beheld old Tiberius coming along after me like a madman, his machine jumping and swaying, and he with a big gun in each hand yelling like a fiend. He had tossed Her Lordship to the sailors and was back to play in my drama. Then the heat of it got into my blood, and as Tib drew up beside me I gave a war cry and urged the brutes onward still faster.

“I knew if we tried to turn we were down and out, and that our only show was to put up a bold front and scare the enemy off the ridge. The sailors were now popping away merrily, and just as we had gone the limit the foe threw up the sponge and scampered back down the other side of the rise.

“Maybe we were several hours retreating to the beach! When we got there the whole bunch fell on Tib’s neck and pawed his round form affectionately, the Captain leading in the demonstration. Tib drove them away, but when we got aboard and Her Lordship rushed upon him and throwing both arms about his neck, pressed her red lips with a resounding and most plebeian smack on his chin, you could have heard him blush. It was the first time I had ever known him to lose his nerve. He made a clean break-away and bowing low said something in a murmur and it was all over. Of course she thanked us all, but she realized that Tib was the guiding light.

“To ring off; we left the machines and horses for the natives to get up guessing parties with, and with our machinery repaired steamed out to the open water. Tib never made any advances to Her Lordship after once aboard, although she eyed him with a soft look whenever they met on deck during the run to port.

“‘My old heart got foolish, boy,’ he remarked to me the night we landed, ‘but it’s beating all right now.’ Yet he always kept a handkerchief she dropped.

“And wherever the show played Tib coined money by the barrel, for Her Lordship’s people boomed his game early and late. But Tib got to believing it was because the show was so good. For, you see, he’d explain to me as he counted the receipts, ‘Little Eva is dying better every night.’”

Corrupt Practices in Elections

BY HON. LUCIUS F. C. GARVIN

Ex-Governor of Rhode Island

EFFORTS to expose bribery and other corrupt practices in elections are met with the cry, You are defaming the state! If there are governmental evils, we are told, prove them to the bottom and correct them quietly. Such a course may be feasible if applied to a private business, but in public affairs, in the nature of the case, it cannot be successful. Certainly none of the persons who directly profit by such practices will correct them—not the “respectable” men of means who furnish the funds and who do so with a view to recouping themselves in some way as a result of the election; not the workers who handle the corruption fund, taking good care to see that they themselves are rewarded for the trouble and risk involved; not the individuals who pocket the money disbursed, and in this way become always morally, and often criminally, confederates; nor, finally, the few who secure the offices through fraudulent methods. In fact, nothing has been found effective outside of that strongest of all influences in a free country, the force of public opinion. The many, who are made aware of the iniquity by suffering from it, have every inducement to end it.

Over and over again, in great crises, the American people have shown themselves to be patriotic, honest and wise. This has happened whenever the masses have been aroused by serious threats of danger, either external or internal.

The real danger to our institutions lies, not in great crises, but rather in a gradual, almost insensible, deterioration of the government, due either to a lack of vigilance on the part of the people or to a paralysis of their latent powers.

While it is possible that the immense fund of good will and good sense possessed by the American people may be expended in private pursuits and thus diverted from a control of their own government, the far greater danger

is that the mighty influences being put forth at almost every election will rupture completely the natural dependence of public officials upon the electorate.

In order to cure any wrongdoing it is needful, first, to ascertain definitely wherein the wrong consists, and, secondly, to fix with equal definiteness upon an adequate remedy.

The crudest, the most demoralizing and the most common method of withholding the hands of the sovereign people from the control of their government is the direct bribery of voters. This means of thwarting the wishes of the majority dates back to the early history of the country. Our system of so-called majority election by districts, placing, as it often does, the balance of power in a small minority of the electorate, invites the purchase of the votes of individuals. It has proved easy both to estimate the number of votes needed to turn the scale and to find out the particular voters who can be so influenced.

Upon the original plan of buying individual voters at retail, the improvement has been made of purchasing *en bloc*—the money to be paid over only in case of delivery of the goods. In this modern bribery by wholesale the venal voters organize, choose an agent to conduct negotiations and sell the entire block of votes to the highest bidder. When success is achieved, as shown by the count of the ballots, hundreds of dollars are paid to the agent and by him distributed to the members of the gang.

But, whatever the details of the transaction, a long experience has shown that, in a multitude of small constituencies a few dollars placed in the hand of a voter are sufficient to outweigh every consideration of patriotism or enlightened self-interest. Wherever this habitually occurs, the rule of a few moneyed men has been substituted for a government by the people.

In the elections of large cities, of populous states and of the nation at large, it can seldom happen that bribery of voters, either by retail or wholesale, is sufficient to alter the result. To supply this deficiency other means are more and more being resorted to. To assure success, where the number of voters renders the simpler measure for overcoming the people's will unreliable, party managers now make use of finesse and fraud.

The finesse consists in “packing” the primary meetings and conventions of the rival party for the purpose of nominating weak opposing candidates. Nearly every local party may be differentiated into two factions, both desirous of success, but the one occupying morally a very much higher plane than the other. The rich party, taking advantage of this division in the ranks of its opponents, furnishes funds and votes to aid the baser faction, upon condition, of course, that, having gained control of the nomination, candidates will be put up of such a character as to drive away the better element from their support.

In consequence of these manipulations, when election day comes around, the poorer party is found with a so-called “yellow dog” ticket in the field—that is to say, a ticket composed of unfit and unknown men, clearly inferior to the pliant respectabilities who have been placed in nomination by the richer party.

It sometimes happens that even this political trick fails to assure success. Either the better faction of the opposing party wins, or, notwithstanding the inferiority of the ticket named, it may promise to receive a majority of the votes cast. In this exigency the managers of the party which is fully supplied with the sinews of war do not hesitate at direct fraud. That is to say, they expend large sums of money in hiring election officials to betray their trusts at the risk of going to jail.

One method adopted, where the law provides an official ballot, is to get from the officials having charge of the ballots one or more to be marked for the voter by heelers outside of the polling-room. This furnishes a sure method of bribery, for the venal voter, after depositing the ballot thus prepared for him, returns an unmarked ballot to the briber, as a guarantee of good faith, to be marked by him for the use of the next person bought. In this way one or more endless chains of purchased votes may be run all day, through the connivance of some election officer. This was done in Pawtucket, R. I., and at other places in that state, on the eighth of last November.

But as the number of venal voters in a polling precinct is limited, so there is a limit to the effect attainable by giving out to heelers the official ballots designed for use in the voting booth only.

What more, then, can be done in the way of modern chicanery and criminality?

Election officers may be bought, and are bought, to defraud their fellow-citizens in a variety of ways. For instance, there is a very considerable percentage of illiterate voters in most states, many of whom desire to give their suffrage to the candidates of one of the poorer parties. But the richest party has paid the election officials, who assist the illiterate voters, to mark all such ballots for its candidates. Evidence exists that this was done systematically at the recent Presidential and state election in the city of Providence, R. I., a sufficient number of voters thus being deceived to turn the scale in the filling of one or more important offices.

Inasmuch as there is a limit to the number of illiterate voters, even that base fraud, added to direct bribery, may not effect the desired reversal of the people's will. But the moneyed party has other resources.

In order to annul votes already cast for opposing candidates, it may hire the election officers to make additional marks upon the ballots before they are counted. In this way in the city of Providence, R. I., at the last election many votes for Augustus S. Meller, the Democratic candidate for mayor, were rendered void—fortunately, however, not in sufficient numbers to prevent his election.

And not even yet has the corrupted election officer reached the full extent of his ability to defraud. It still is possible for him to miscount votes; or he may announce the result falsely—for example, by revising the total number of votes given to the candidates, when the real majority proves to be adverse to his suborned wishes.

In case there is a Returning Board, whose duty it is to make a second and final count of the votes cast, as is the law in the city of Providence and the state of Rhode Island, that board, too, or its controlling members, may be partisan and corrupt.

At the late election in Rhode Island all the ballots for state officers and for Presidential electors were in possession of a partisan Returning Board, of which the chairman of the Republican State Central Committee was the head, for a period of three full weeks before the counting began. If there were miscounts in certain voting districts on election day, it was easily

possible for members of that Returning Board to open the sealed packages of ballots, make such changes as were necessary in order to have the ballots conform roughly to the previously announced figures, and then to reseal without the fraud being detected.

But, it may be asked, where are the courts while such frauds are being perpetrated? Why are not these criminal election officers punished? Unfortunately, the courts, too, are frequently partisan, especially the lower courts, before which the cases are first brought.

After the election of last November in Rhode Island, three cases were brought before the inferior courts—one for bribery, one for posing as an illiterate voter and one against an election officer in charge of a ballot-box for allowing the deposit by voters of sham instead of official ballots. Each of these causes was brought before a different local judge, and all were thrown out of court. Several days before election it was known that immunity had been promised to hesitating and apprehensive election officers. “The Republican Party controls the courts,” they were told, “and would see that no punishment was meted out to them for unlawful acts.”

It is needless to say that, if corrupt practices in elections continue to increase, the end of popular government in this country is in sight. Already there exists a widespread and deep-seated distrust of the result of elections. Instances could be given, occurring within the past ten years, in which a very large proportion of the voters interested, perhaps a majority of those voting, believe that the wrong candidate was inducted into office.

Certainly no duty is more pressing than to see to it that in every election the unbiased and unbought will of the people be recorded.

Is there a remedy? And, if so, what is it? My conviction is, that we only need to carry out the intent of the founders of this government. They blazed the way; we must make a clear and beaten track along that way.

By a republican form of government the Revolutionary statesmen meant two things, which now are not carried out. They meant that every state, and the nation as well, should possess a legislative body, representative of the will of the people. Nowhere does this exist, not even where honest elections assure a free ballot and a fair count. Neither in ability nor in opinion do state legislatures by their acts represent a majority of their constituents,

except by accident. Nor will they represent the people until each political party, whether large or small, elects its due proportion of the members. That is to say, a party which casts forty-five per cent. of the total vote for representatives must have forty per cent. of the legislature, and the party which casts five per cent. of the total vote must have five per cent. of the legislature. Then only will statute law be framed in accordance with the will of a majority of the people.

The other part of our republican form of government, as understood and intended by American statesmen of the eighteenth century, was that a majority of the people should directly control the organic law. To this end they had the state constitutions framed by the people, acting through delegates chosen to conventions for that sole purpose, but not in effect until submitted to the electors and adopted by a majority of the votes cast for and against. In like manner the referendum was provided for in case of subsequent amendments.

It was thought, also, that a popular initiative for constitutional changes was created, in the authority given to legislatures to submit amendments; but, alas, time has shown that those legislatures, being unrepresentative of the people, refuse to submit amendments, however extensively demanded by public sentiment.

Hence the necessity of giving the power to propose constitutional amendments, as has lately been done in South Dakota, Utah and Oregon, to a reasonable minority (in those states eight per cent.) of the voters. When the popular initiative shall thus have been added to the referendum already existing for making changes in the organic law of our states, all else will take care of itself.

The amendment pending in the Rhode Island Legislature, and known there as the constitutional initiative, reads in substance as follows:

Eight per cent. of the legal voters of the state may propose specific and particular amendments to this constitution by filing with the Secretary of State, not less than three months nor more than nine months prior to any state election, a petition that the electors may, at such election, cast their ballots for or against such amendments. Any proposition thus made shall be submitted to the electors

by the Secretary of State at said election, and, if then approved by a majority of the electors of the state present and voting thereon, it shall, ninety days thereafter, become a part of the Constitution of the state.

To elect a legislature in any state committed to such an amendment calls for not only a widespread but an aggressive public sentiment in its favor. As a rule the organization of the party dominant in the state will strenuously oppose the adoption of the amendment.

A party continuously in power, no matter what its name or avowed principles, is sure to frown upon radical measures. The complete control of the organic law of a state by a majority of its voters means a future political situation hitherto unknown. The effect upon present party leaders and upon partisan organizations cannot be foreseen in full, but that it will be tremendous no one can doubt.

But if the individuals, who are enjoying the state offices, are opposed to a political upheaval of any kind, the parties which are permanently in the minority feel very differently. Their organizations and their members will welcome any reasonable reform which promises to alter materially the existing unsatisfactory situation. Also in sympathy with a reform so meritorious and non-partisan would undoubtedly be found a considerable portion of the adherents of the dominant party.

Yet even with a clear majority of the voters of any state earnestly in favor of a given amendment to the constitution, it does not follow that its adoption would be easy. In every state, with scarcely an exception, it is the party whose membership comprises nine-tenths of the total wealth, which, with few brief and partial interruptions, controls every department of the government. For the past decade this has been the situation more than ever before, and every year finds the power of money to determine the results of elections gaining in strength—notwithstanding a rising public sentiment against abuses which are ignored, if not encouraged, by the authorities.

The situation seems almost hopeless, as is very near being the case, if the reforming elements pursue for the future the same course as in the past.

If the leader of the party in power were permitted to dictate the action of opponents, his command would be: “Divide your forces.” Its boss would

say: "Split among yourselves into several separate and distinct parties, attack one another with the same virulence that you attack me. Call yourselves Democrats, Populists, Socialists, Prohibitionists, Labor, and have whatever platforms or principles you please. In fact, the stronger and nobler the men and the issues over which the small parties wave their banners the better I am pleased, for the more minute will be the subdivision and the more attractive and combative each fractional part."

And these hopelessly minor parties offer few inducements to the dissatisfied members of the major party to change their political affiliations. Such a transfer is altogether too much like removing one's bed on a bitter cold night from a warm room to a vacant lot. Discomforts, and even hardships, patriotic citizens may be willing to endure, but they can scarcely be blamed for refusing to embrace them merely for the fun of being come-outers.

In order to contend successfully against the party in power, however well known its abuses, there must be a co-operation of the dissatisfied and antagonistic voters. By co-operation it is not meant that an attempt should be made to create a single party with a platform composed of the planks of half a dozen parties. Such a composite is but a rope of sand; and, in fact, the stringing together of a collection of unrelated questions, such as prohibition, socialism and labor, is quite as likely to end in mutual hostilities as in a combined charge upon the common enemy.

The use of money for carrying a state election by corrupt practices can only be offset by the exercise of great wisdom on the part of those who depend upon other agencies. The second party, which in the Northern states generally means the Democratic, must furnish the nucleus about which the third, fourth and fifth parties gather. Indeed, it devolves upon the second party to invite the other minor parties to join forces with it. And, in order to have such invitation accepted, it must fix upon one or two paramount issues so fundamental and important as to attract strongly all who are offended with the doings of the party in power. If two issues are elected, one of them may well be a constitutional amendment such as has been outlined in this article, the other might be a legislative measure—such, for instance, as direct primaries, which serve excellently the purpose of a corrupt practices act.

Each of the minor parties, besides educational work, wishes to preserve its organization and to measure its strength at each succeeding election by the number of votes cast in its support. The wish is natural and proper; but the objects aimed at can be accomplished in a state election without putting full tickets into the field. The nomination and support of a single candidate for a minor state office will fully answer both purposes.

The means of stopping most surely and speedily corrupt practices by the party in power, lies in an open and aboveboard fusion of all its opponents upon a few issues, together with a united support of one set of candidates for all offices whose incumbents can aid or hinder the adoption of the measures agreed upon. This, I believe, offers the best chance of accomplishing the very difficult task of establishing in a state good and pure government.

Pole Baker

BY WILL N. HARBEN

Author of "The Georgians," "Abner Daniel," etc.

CHAPTER I

THE planter alighted from the dusty little train under the crumbling brick car-shed at Darley, turned his heavy hand-luggage over to the negro porter and walked across the grass to the steps of the Johnston House. Here he was met by Jim Thornton, the dapper young clerk, who always had a curled mustache and hair smoothed flatly down over his brow.

"Oh, here you are, right side up, Captain Duncan!" he cried. "You can't stay away from those level acres of yours very long at a time."

"No, Jim." The short, thick-set man smiled as he took the extended hand. "As soon as I heard spring had opened up here we left Florida. I had a bad case of homesickness. My wife and daughter came a week ago. I had to stop on business in Jacksonville. I always want to be here in planting season; my men never seem to know exactly what I want done when I am away. Jim, I've got a lot of land out there between the river and the mountains."

"I reckon you have," laughed the clerk as he led his guest into the hotel office. "There's a neighbor of yours over there at the stove, old Tom Mayhew, who runs the big store—Mayhew & Floyd's—at Springtown."

"Oh, I know him mighty well," said Duncan. "How are you, Mayhew? What are you doing away from your beat? I thought you'd be behind your counter such fine weather as this."

"Trade's dull," said the merchant, who was a tall, spare-made man about sixty-five years of age, with iron-gray hair and beard. "Farmers are all at the plow, and that's where they ought to be if they expect to pay anything on their debts this fall. I had to lay in some stock, and so I ran down to Atlanta

day before yesterday. My young partner, Nelson Floyd, usually does the replenishing, but the books got out of whack, and I left him to tussle with them; he's got a better head for figures than I have. I've just sent to the livery-stable for a horse and buggy to take me out; how are you going?"

"Why, I hardly know," answered the planter as he took off his straw hat and wiped his bald head with a silk handkerchief. "I telegraphed Lawson, my head overseer, to send somebody to meet me, and I was just wondering _____"

"Oh, you'll be attended to all right, Captain Duncan!" said the clerk, with a laugh as he stood at the register behind the counter. "Pole Baker was in here last night asking if you had arrived. He said he had brought a buggy and was going to drive you back. You will make it all right if Pole sobers up long enough to get out of town. He was thoroughly 'how-come-you-so' last night. He was in Askew's bar raising holy Cain. The marshal ordered Billy to close at twelve, but Pole wouldn't hear to it, and they were within an inch of having a fight. I believe they would if Mrs. Johnston hadn't heard them and come down. Pole has more respect for women than most men, and as soon as he saw her at the door he hushed up and went to bed."

"He's as straight as a shingle this morning, Captain," put in Charlie Smith, a mulatto porter, who was rolling a pair of trucks across the room laden with a drummer's enormous brass-bound trunk. "He was up before day asking if you got in durin' the night."

"Well, I'm glad he's sobered up if he's to take me out," said the planter. "He's about the biggest daredevil out our way. You know him, don't you, Mayhew?"

"Know him? Humph! to the extent of over three hundred dollars. Floyd thinks the sun rises and sets in him and never will close down on him. They are great friends. Floyd will fight for him at the drop of a hat. He says Pole has more manhood in him to the square inch than any man in the county, white or black. He saw him in a knock-down-and-drag-out row in the public square last election. They say Pole whipped three bigger men than he is all in a bunch, and bare-handed at that. Nobody knows to this day how it started. Nelson doesn't, but I heard it was some remark one of the fellows made about Nelson himself. You know my partner had a rather strange start

in life—a poor boy with nobody to see to his bringing up, but that’s a subject that his best friends don’t mention to him.”

The Captain nodded understandingly. “They tell me Pole used to be a moonshiner,” he said, “and I have heard that he was the shrewdest one in the mountains. His wife got him to quit it. I understand he fairly worships the ground she walks on, and there never was a better father to his children.”

“He thinks well enough of them when he’s at himself,” said Mayhew, “but when he’s drinking he neglects them awfully. I’ve known the neighbors to feed them two weeks on a stretch. He’s got enemies out our way. When he quit moonshining he helped some of the government officers find some stills over there. That was funny. Pole held off from the job that was offered him for a month, during which time he sent word everywhere through the mountains that he would give all his old friends plenty of time to shut up and quit making whisky, but after his month was up he intended to do all he could against law-breakers. He had to testify against several, and they now certainly have it in for him. He’d have been shot long ago if his enemies weren’t afraid of him.”

“I see him coming now, Mr. Mayhew,” said the clerk. “Captain, he walks steady enough. I reckon he’ll take you through safe.”

The tall countryman, about thirty-five years of age, without a coat, his coarse cotton shirt open at the neck, a slouch hat on his massive head and his tattered trousers stuffed into the tops of his high boots, came in. He had a brown, sweeping mustache, and his eyebrows were unusually heavy. On the heel of his right foot he wore an old riding-spur, very loosely strapped.

“How are you, Captain Duncan?” he said to the planter as he extended his brawny hand. “You’ve come back to God’s country, eh?”

“Yes, Baker,” the planter returned with a genial smile; “I had to see what sort of chance you fellows stand for a crop this year. I understand Lawson sent you over for me and my baggage. I’m certainly glad he engaged a man about whom I have heard such good reports.”

“Well, I don’t know about that, Captain,” said Pole, his bushy brows meeting in a frown of displeasure and his dark eyes flashing. “I don’t know as I’m runnin’ a hack-line, or totin’ trunks about for the upper-ten set of

humanity. I'm a farmer myself, in a sort of way—smaller'n you are, but a farmer. I was comin' this way yesterday, and was about to take my own hoss out o' the field, where he had plenty to do, when Lawson said, said he, 'Baker, bein' as you are goin' to make the trip anyways, I'd feel under obligations ef you'd take my rig and fetch Captain Duncan back when you come.' By gum, to tell you the truth, I've just come in to tell you, old hoss, if you are ready right now, we'll ride out together, if not I'll leave you an' go out with Nathan Porter. Engaged, the devil! I'm not goin' to get any money out o' this job."

"Oh, I meant no offense at all, Baker," said the planter in no little embarrassment, for the group was smiling.

"Well, I reckon you didn't," said Pole, slightly mollified, "but it's always a good idea fer two men to know exactly where they stand, and I'm here to say I don't take off my hat to no man on earth."

"That's the right spirit," Duncan said admiringly. "Now, I'm ready if you are, and it's time we were on the move. Those two valises are mine and that big overcoat tied in a bundle."

"Here, Charlie!" Pole called out to the porter, "put them things o' Duncan's in the back end o' the buggy, an' I'll throw you a dime the next time I'm in town."

"All right, boss," the mulatto said, with a knowing wink and smile at Mayhew. "They'll be in by the time you get there."

While the planter was at the counter, saying good-bye to the clerk, Pole looked down at Mayhew. "When are *you* goin' out?" he asked.

"In an hour or so," answered the merchant as he spat into a cuspidor. "I'm waiting now for a turnout, and I've got some business to attend to."

"Collections to make, I'll bet my hat," Pole laughed. "I thought mighty few folks was out on Main Street jest now; they know you are abroad in the land an' want to save the'r socks."

"Do you reckon that's it, Pole?" said Mayhew as he spat again. "I thought maybe it was because they was afraid you'd paint the town, and wanted to keep their skins whole."

The clerk and the planter laughed. "He got you that time, Baker," the latter said, with a smile.

"I'll acknowledge the corn," and the mountaineer joined in the laugh good-naturedly. "To look at the old skinflint, settin' half asleep all the time, a body wouldn't think his tongue had any life to it. I've seed the dern thing wiggle before, but it was mostly when thar was a trade up."

CHAPTER II

As they were driving into the country road, just beyond the straggling houses in the outskirts of the town, going toward the mountains, which lay along the western horizon like blue clouds nestling against the earth, the planter said:

"I've seen you fishing and hunting with Mayhew's young partner, Nelson Floyd. You and he are rather intimate, are you not?"

"Jest about as friendly as two men can be," said Pole, "when one's rising in the world an' t'other is eternally at a standstill, or goin' down like a round rock on the side of a mountain. Or maybe, I ought to say, when one of 'em has had the pluck to educate hisself an' t'other hardly knows B from a bull's foot. I don't know, Captain, why Nelson Floyd's friendly to me. I like him beca'se he is a man from his toe-nails to the end o' the longest hair on his head."

"I've heard a lot of good things about him," remarked the planter, "and I understand, too, that he has his faults."

"They're part of his manhood," said Pole philosophically. "Show me a feller without faults and I'll show you one that's too weak to have 'em. Nelson's got some o' the dust o' the broad road on his coat, an' yet I'd take his place in the general bust-up when old Gabe blows his trumpet at the millennium a sight quicker than I'd stand in the shoes o' some o' these jack-leg preachers. I tell you, Captain Duncan, ef the Lord's goin' to make favorites o' some o' the long-face hypocrites I know, that is robbin' widows an' orphans in the week an' prayin' an' shoutin' on Sunday to pull the wool over folkses' eyes, me an' Him won't gee in the hereafter. You know some'n about that boy's start in life, don't you, Captain?"

“Not much, I must own,” answered the planter.

“Thar it is!” said Pole, with a condemning sneer; “ef the pore boy had belonged to one o’ the big families in yore ring out in Murray—the high an’ mighty sort, that owned niggers, you’d ’a’ heard all about him. Captain, nobody on earth knows how that feller has suffered. All his life he’s wanted to make some’n of hisself an’ has absolutely to my certain knowledge had more to contend with than any man alive today. He don’t even know the exact date of his birth, an’ ain’t plumb sure that his name really is Floyd. You see, jest at the close of the war a woman—so sick she could hardly walk—come through the Union lines in East Tennessee with a baby in her arms. The report is that she claimed that her name was Floyd, an’ that she called the baby ‘Nelson.’ She put up at a mountain cabin for the night, a shack where some pore razor-back whites lived by the name o’ Perdue. Old man Perdue was a lyin’, treacherous scamp, a bushwhacker and a mountain outlaw, an’ his wife was a good mate to him. Nelson’s mammy, as I say, was tuck in, but thar wasn’t no doctor nigh, an’ very little to eat, an’ the next mornin’ she was ravin’ out of her head, and late that day she died. I’m tellin’ you now all that Nelson Floyd ever was able to find out, as it came down to him from one person’s recollection to another’s. Well, the woman was buried som’ers, nobody knows whar, an’ old Mrs. Perdue kept the baby more beca’she she was afeared to put it out o’ the way than fer any pity fer it. She had a whole litter of brats of her own goin’ about winter an’ summer in the’r shirt-tails, an’ so they left Nelson to scratch fer hisself. Then the authorities made it hot fer Perdue on some charges agin ’im, and he left the child with another pore mountain family by name o’ Scott and moved clean out o’ the country. The Scotts couldn’t remember much more than hearsay about how Nelson got thar an’ they didn’t care, though they tried to raise the boy along with three of their own. He had a tough time of it, for he was a plucky little devil and had a fight mighty nigh every day with somebody. And as he growed up he naturally fell into bad company, or it fell into him, like everything else did, an’ he tuck to drinkin’ an’ become a regular young outlaw; he was a bloodthirsty rowdy before he was fifteen; shot at one man fer some cause or other an’ barely escaped bein’ put up fer life—nothin’ but bein’ so young got ’im off. But one day—now I’m givin’ it to you jest as Nelson told me—one day he said he got to thinkin’ about the way he was a-goin’, and of his own accord he made up his mind to call a halt. He wanted to cut clean off from his old set, an’ so he went to Mayhew and told him he

wanted to git work in the store. Old Mayhew would skin a flea fer its hide an' tallow, an' seein' his money in the boy, he bound 'im to an agreement to work fer his bare board an' clothes fer three years."

"Low enough wages, certainly!" exclaimed the planter.

"Yes, but Nelson didn't grumble, and Mayhew will tell you hisself that thar never was sech a worker sence the world was made. He was a general hand at ever'thing, and as bright as a new dollar and as quick as a steel trap. The Lord only knows when or how he did it, fer nobody ever seed a book in his hands in business hours, but he l'arned to read and write and figure. An' that wasn't all. Mayhew was sech an old skinflint, and so hard on folks who got in his debt, that nobody traded at his shebang except them that couldn't go anywhars else; but lo and behold! Nelson made so many friends that they flocked around 'im from all directions an' the business of the house was more than doubled at a jump. Mayhew knowed the cause of it, fer lots o' customers throwed it up to 'im. The prosperity was almost too much fer the old skunk; in fact, he got mighty nigh scared at it and actually tried to dam the stream o' profit. To keep up such a business big credit had to be extended, and it was a new venture fer the cautious old scamp. But Nelson had perfect faith in all his friends, and thar it stood—a beardless boy holdin' forth that it was the old man's chance fer a lifetime to git rich, and old Mayhew half believin' it, crazy to act on Nelson's judgment, an' yet afraid it would be ruination. That was at the close of the boy's three-year contract. He was then about twenty year old, and I was in the store and heard the talk between 'em. We was all a-settin' at the big wood stove in the back end, me an' the old man, an' Nelson and Joe Peters, a clerk, who is still with the firm. I shall never forgit that night as long as I live. I gloried in the boy's spunk to sech an extent I could 'a' throwed up my hat an' hollered.

"'I've been waitin' to have a talk with you, Mr. Mayhew,' Nelson said. 'Our contract is out today, and you an' me disagree so much about runnin' the business that I hardly know what I ought to do an' not stand in my own light. We've got to make a fresh contract anyway.'

"'I knowed that was comin',' old Mayhew said, with one o' his big, hoggish grunts. 'People for miles around have made it the'r particular business to fill you up with ideas about what you are wuth. I've thought

some about lettin' you go an' see ef me an' Joe cayn't keep things a-movin', but you know the trade round here, an' I want to do the fair thing. What do you think yore time's wuth?" Pole laughed. "The old skunk was usin' exactly the same words he'd 'a' used ef he was startin' in to buy a load o' produce an' wanted to kill expectation at the outset.

"I want fifty dollars a month, under certain conditions,' the boy said, lookin' the old skinflint straight in the eye.

"Fifty—huh! yo're crazy, stark' starin' crazy—plumb off yore base!' the old man said, his lip twisted up like it is when he's mad. 'I see myse'f payin' a beardless boy a Broadway salary to work in a shack like this out here in the mountains.'

"Well, I'll jest be obliged to quit you then,' Nelson said as steady as a millpond on a hot day in August, 'an' I'd sorter hate to do it. Moore & Trotter, at Darley, offer me that fer the fust six months, with an increase later.'

"Moore & Trotter!' the old skunk grunted loud enough to be heard clean to the court-house. They was the only firm in this end o' the state that controlled as much custom as Mayhew did, an' it struck the old chap under the ribs. He got up from his chair an' walked clean down to the front door. It was shet an' locked, but thar was a lamp on the show-case nigh whar he stopped, an' I could see his old face a-workin' under the influence o' good an' evil. Purty soon he grunted, an' come back, thumpin' his old stick agin barrels an' boxes along the way.

"How am I goin' to know whether they offered you that much or not?' he axed.

"Beca'se I said so,' Nelson told 'im, an' his dark eyes was flashin' like lightnin'. He stood up an' faced the old codger. 'I'll tell you one thing, Mr. Mayhew,' he let fly at 'im, 'ef you don't know whether I'm tellin' the truth or not you'd better let me go, fer a man that will lie will steal. I say they offered me fifty dollars. I've got the'r written proposition in my pocket, but I'll be hanged ef I show it to you.'

"Good!" exclaimed Duncan.

"Well, it knocked the old man clean off his feet," Pole went on. "He sat down in his chair again, all of a tremble an' white about the mouth. Stingy

people git scared to death at the very idea o' payin' out money, anyway, an' stingy don't fit that old cuss. Ef Noah Webster had known him he'd 'a' made another word fer that meanin'. I don't know but he'd simply 'a' spelled out the old man's name an' 'a' been done with it."

"What answer did Mayhew give the young man, Baker?" asked the planter in a tone which indicated no little interest.

"Why, he jest set still for awhile," said Pole, "an' me an' Joe Peters was a-wonderin' what he'd say. He never did do anything sudden. Ef he ever gits thar he'll feel his way through heaven's gate. I seed 'im keep a woman standin' in the store once from breakfast to dinner-time while he was lookin' fer a paper o' needles she'd called fer. Every now an' then he'd quit huntin' fer the needles an' go an' wait on some other customer, an' then come back to 'er. She was a timid sort o' thing, an' didn't seem to think she had the right to leave, bein' as she had started the search. Whenever she'd go towards the door to see ef her hoss was standin', he'd call 'er back an' ax 'er about 'er crap an' tell 'er not to be in a hurry—that Rome wasn't built in a day, an' the like. You know the old cuss has some education. Finally he found the needles an' tuck another half an hour to select a scrap o' paper little enough to wrap 'em up in. But you axed me what Mayhew said to 'im. You bet the boy was too good a trader to push a matter like that to a head. He'd throwed down the bars, an' he jest waited fer the old man to go through of his own accord. Finally Mayhew axed, as indifferent as he could under all his excitement, 'When do you intend to answer the letter you say you got from Moore & Trotter?'

"'I've already answered it,' Nelson said. 'I told 'em I appreciated the'r offer an' would run over an' see 'em day after tomorrow.'"

"Good, very well said, Baker!" laughed Captain Duncan. "No wonder the young man's become rich. You can't keep talent like that down. But what did old Mayhew say?"

"It was like pullin' eye-teeth," answered Pole, "but he finally come across. 'Well,' said he, 'I reckon you kin make yorese'f as useful to me as you kin to them, an' ef you are bent on ridin' me to death, after I picked you up an' give you a start an' I arnt you how to do business, I reckon I'll have to put up with it.'

“‘I don’t feel like I owe you anything,’ said Nelson as plucky as a banker demandin’ good security on a loan. ‘I’ve worked for you like a slave for three years for my bare livin’ an’ my experience, an’ from now on I am goin’ to work for Number One. I said that I’d stay for fifty dollars a month on certain conditions.’

“‘Conditions?’ the old man growled. ‘What conditions do you mean?’

“‘Why, it’s jest this,’ said Nelson. ‘I’ve had my feelin’s, an’ the feelin’s o’ my friends, hurt time after time by you turnin’ folks off without credit when I knowed they would meet the’r obligations. Now, ef I stay with you it is with the distinct understandin’ that I have the authority to give or refuse credit whenever I see fit.’

“That knocked the old man off his perch agin. He wilted an’ sat thar as limp as a dish-rag. Joe Peters worships the ground Nelson walks on, an’ as ’feard as he was o’ the old man, he busted out in a big chuckle, an’ rubbed his hands together. Besides he knowed the boy was talkin’ fer the interest o’ the business. He’d seed no end o’ good customers sent off fer no reason in the world than that Mayhew was scared o’ his shadow.

“‘I’ll never consent to *that!*’ Mayhew said, mighty nigh clean whipped out.

“‘Well, Moore & Trotter *will*,’ Nelson said. ‘That’s one o’ the things laid down in the’r proposition.’ An’ the boy went to the desk an’ drewed out a sheet o’ paper an’ dipped his pen in the ink. The old man set quivering awhile, an’ then got up an’ went an’ stood behind the boy. ‘Put down yore pen,’ said he, with a sigh from away down inside of ’im. ‘It would ruin me fer you to go to Darley—half the trade would follow you. Go ahead; I’ll keep you an’ run the risk.’”

The planter had been listening attentively, and he now said admiringly: “Even at that early age the boy was showing what developed later. It wasn’t long after that before he became the old man’s partner, I believe.”

“The next year,” answered Pole. “He saved every dollar of his wages, and made some good investments that turned out money. It wasn’t a big slice of the business at fust, but he now owns a half, an’, countin’ his outside interests, he’s wuth a great deal more than old Mayhew. He’s rich already, Captain.”

“So I’ve heard the women say,” smiled the planter. “Women always keep track of well-to-do unmarried men.”

“It hain’t spiled Nelson one bit, though,” added Baker. “He’s the same unselfish friend to me as he ever was, and I hain’t hardly got a roof to cover me an’ mine. But, as solid as he always was, he had a serious back-set about three years ago, and all his well-wishers thought it was goin’ to do him up.”

“You mean when he took to drinking,” said Captain Duncan interrogatively.

“Yes, that’s what I mean. He’d formed the habit when he was a boy, and, along with his prosperity an’ late work hours, it begun to fasten its claws on ’im like it has on some other folks I know, Captain. He had a lot o’ night work to do, an’ Thigpen’s bar was right j’inin’ the store. Nelson used to slide in at the back door whenever the notion struck ’im, and he made the trail hot, I tell you. Old Mayhew kept a sharp eye on ’im, an’ ever’ now and then he’d git powerful blue over the way things was a-goin’. Finally the old cuss got desperate an’ called a halt. He had a straight talk with Nelson, an’ told ’im they would have to divide the’r interests, that he wasn’t a drinkin’ man hisse’f, an’ he didn’t want to be yoked to one that was soaked half the time. It fetched the boy to his senses. He come over to my house that night an’ called me out to the fence.

“‘I want to make a deal with you, Pole,’ said he.

“‘With me?’ says I. ‘What sort of a deal?’

“‘Why,’ said he, ‘I’ve made up my mind to swear off fer good an’ all, an’ I want you to j’ine me.’

“I agreed all right,” Pole laughed. “In fact, I was sorter in that business. I’d promised every preacher an’ temperance worker in the county to quit, an’ I couldn’t refuse a friend what I was dispensin’ so freely right an’ left. So I said, said I, ‘All right, Nelson; I’m with you.’”

“And how did it come out?” questioned the planter as he bowed to a wagon full of farmers going in an opposite direction.

“His vaccination tuck,” Pole smiled. “He had a mighty sore arm fer a week or so, but he held out. As fer me, I was so dern glad to see his success in abstainin’ that I started in to celebrate. I did try at fust, though. One

mornin' I went in the store an' seed Nelson have sech a clean, prosperous look an' so well satisfied with his stand that I went out with fresh resolutions. What did I do? I went to the barroom an' bought four pint bottles o' red rye an' tuck 'em home with me. I set 'em all in a straight row on the mantel-shelf, nigh the edge, in front o' the clock, an' was standin' lookin' at 'em when Sally, my wife, come in. She seed the display an' jest set kerflop down in her chair an' begun to whimper.

“‘You hold on,’ said I; ‘don’t you cross a foot-log till the tree’s down. I’m tryin’ a new dicker. I’ve always heard that familiarity breeds contempt, an’ I’ve also heard that the hair o’ the dog is good fer the bite. Now, I’ve tried my level best to quit liquor by stayin’ away from it an’ I’m a-goin’ to see ef I cayn’t do it with its red eye on me all the time.’ Well, Captain, the sweet little woman—she’s a sweet, dear little creature, Captain Duncan, ef I do say it myself.”

“I’ve always heard so, Baker,” the planter said. “She’s very popular with your neighbors.”

“An’ I’m jest t’other way,” said Pole. “Well, Sally, she got up an’ kissed me, an’ said that somehow she felt like my plan would work.”

“And did it—I mean,” the Captain recalled Pole’s spree of only the night before, “I mean did it work for any length of time?”

“I was goin’ on to tell you,” answered the mountaineer. “That night fer the fust time sence my marriage I woke smack dab in the middle o’ the night, an’ as I laid thar in the room filled with moonlight I couldn’t see a blessed thing but that row o’ bottles, an’ then my mouth set in to waterin’ at sech a rate that I got afeard I’d ketch my death from sleepin’ on a wet pillow. It was certainly a struggle with the flesh. I’d put my thirst, when she’s good an’ dry, agin any that ever tickled a human throat. It ’ud take the blue ribbon at a state fair. It’s a rail thing; it kin walk an’ talk an’ kick an’ squirm, but it won’t be dictated to. Finally Sally woke up an’ said:

“‘What’s the matter, Pole? Hain’t you comfortable?’

“‘Comfortable, the devil!’ said I. I’m usually polite to Sally, but I felt like that wasn’t no time an’ place to talk about little matters. ‘Comfortable, nothin’,’ said I; ‘Sally, ef you don’t take that “dog-hair” out o’ this house an’ hide it, I’ll be as drunk as a b’iled owl in ten minutes.’

““Dog-hair?”” said she, an’ then the little woman remembered an’ got up. I heard the bottles tinkle like sorrowful good-bye bells callin’ wanderin’ friends back to the fold as she tuck ’em up an’ left. Captain, I felt jest like”—Pole laughed good-naturedly—“I felt like thar was a plot agin the best friends I ever had. I actually felt sorry fer them bottles, an’ I got up an’ stood at the window an’ watched Sally as she tuck ’em away out in the lonely moonlight to the barn. I seed ’er climb over the fence o’ the cow-lot an’ go in the side whar I kept my hay an’ fodder an’ roughness fer my cattle. Then I laid down in bed agin.”

“That was certainly a courageous thing to do,” said the planter, “and you deserve credit for putting your foot down so firmly on what you felt was so injurious, even, even—” the Captain came back again to reality —“even if you did not remain firm very long afterward.”

“Well, I’ll tell you one thing,” the ex-moonshiner laughed again, and his eyes twinkled in subtle enjoyment, “it tuck Sally longer, it seemed to me, to git to sleep after she got back than it ever had in all her life. Of all times on earth she wanted to talk. But I shet ’er off. I made like I was breathin’ good an’ deep an’ then she set in too. What did I do? Captain Duncan, I spent the best half o’ that night out in the barn lookin’ fer hens’ nests. I found two an’ had to be put to bed at sun-up.”

The planter laughed heartily. “There is one good thing about the situation, Baker,” he said, “and that is, your making a joke of it. I believe you will get the under-hold on the thing some day and throw it over. Coming back to your friend Floyd; it’s a fact that he gave up whisky, but if reports are true, he has another fault that is almost as bad.”

“Oh, you mean all that talk about Jeff Wade’s sister,” answered the mountaineer.

“Yes, Baker, a reputation of that sort is not a desirable thing in any community. I know that many brainy and successful men hold that kind of thing lightly, but it will down anybody who tampers with it.”

“Now, look here, Captain,” Pole said sharply, “don’t you be plumb foolish! Ain’t you got more sense ’an to swallow everything that passes amongst idle women in these mountains? Nelson Floyd, I’ll admit, has got a backbone full o’ the fire o’ youth an’ strong-blooded manhood, but he’s, to

my positive knowledge, one o' the cleanest young men I ever come across. To tell you the truth, I don't believe he ever made but that one slip. It got out, an' beca'se he was rich an' prominent, it raised a regular whirlwind o' gossip an' exaggeration. If the same thing had happened to half a dozen other young men round about here, not a word would 'a' been said."

"Oh, I see!" smiled the planter. "He's not as black as he's painted, then?"

"Not by a jugful!" said the farmer. "I tell you he's all right, Captain, an' folks will know it 'fore long."

CHAPTER III

Springtown was about twelve miles west of Darley, only a mile from Captain Duncan's house, and half a mile from Pole Baker's humble cottage and small farm. The village had a population of about two hundred souls. It was the county seat; and the court-house, a simple, ante-bellum brick structure, stood in the centre of the public square, round which were clustered the one-storied shops, lawyers' offices, cotton warehouses, hotel and general stores.

Chief among the last mentioned was the well-known establishment of Mayhew & Floyd. It was a long frame building, once white but now a murky gray, a tone which nothing but the brush of time and weather could have given it.

It was only a week since Captain Duncan's talk with Pole Baker, and a bright, inspiring morning, well suited to the breaking of the soil and the planting of seed. The village was agog with the spirit of hope. The post-office was filled with men who had come for their mail, and they stood and chatted about the crops on the long veranda of the hotel and in the front part of Mayhew & Floyd's store. Pole Baker was in the store talking with Joe Peters, the clerk, about seed-potatoes, when a tall countryman in the neighborhood of forty-five years of age slouched in and leaned heavily against the counter.

"I want a box o' forty-four cartridges," he said, drawing out a long revolver and rapping on the counter with the butt of it.

“What! you goin’ squirrel huntin’?” Peters laughed and winked at Pole. “That gun’s got a long enough barrel to reach the top o’ the highest tree in these mountains.”

“You slide around behind thar an’ git me them cartridges!” retorted the customer. “Do yore talkin’ to somebody else. I’ll hunt what an’ whar I want to, I reckon.”

“Oh, come off yore perch, Jeff Wade!” the clerk said, with another easy laugh. “You hain’t nobody’s daddy. But here you are. Forty cents a box, full count, every one warranted to make a hole an’ a noise. Want me to charge ’em?”

“No, I don’t; by God—I don’t! An’ what’s more, I want to know exactly how much I owe this house. I went to a dozen money lenders ’fore I found what I wanted, but I got it an’ I want to pay what I owe Mayhew & Floyd.”

Just then Pole Baker stepped up to the man’s side and, peering under the broad brim of his hat, said:

“Looky here, Jeff Wade, what you shootin’ off yore mouth fer? I ’lowed at fust that you was full, but you hain’t drinkin’; at least, you don’t seem that way to me.”

“Drinkin’, hell! No, I’m not drinkin’, an’ what’s more, I don’t intend to let a drap pass down my throat till I’ve done my duty to me an’ mine. Say, you look an’ see ef I’m drinkin’. See ef you think a man that’s in liquor would have as steady a nerve as I’ve got. You watch me! Maybe it’ll show you what I’m able to do.”

Turning, he stalked out of the store, and Peters and Pole followed, watching him in wonder. He strode across the street to the court-house, loading his revolver as he went. Reaching the closed door of the public building he took an envelope from his pocket and fastened it to the panel by thrusting the blade of his big pocket-knife into it several times. The spectators heard the hollow, resounding blows like the strokes of a carpenter’s hammer, and then Wade turned and came back toward them.

“By gum, he’s off his nut!” said Peters seriously. “He’s as crazy as a bedbug.”

“It’s my opinion he’s jest comin’ to his senses,” Pole mused, a thoughtful look in his eyes. “Yes, that’s about it; he’s jest wakin’ up, an’ the whole county will know it, too. By gum, I hate this—I hate it!”

“You hate what?” asked Peters, his eyes on the farmer, who was now quite near them. Pole made no reply, for Wade was by his side on the brick walk beneath the wooden shed in front of the store, his revolver swinging at his side.

“You fellows keep yore eye on that envelope,” said Wade, and he cocked his revolver.

“Look here, don’t make a dern fool o’ yorese’f,” said Pole Baker, and he laid a remonstrating hand on the tense arm of the gaunt mountaineer. “You know it’s agin the ordinance. You know you’ll git into trouble; you listen to the advice of a friend. Put that gun up an’ go home.”

“I’m my own boss!” snarled the man with the weapon.

“You’re a blamed fool too,” answered Baker.

“Well, that’s my lookout.” Wade glared over his shoulder and raised his voice significantly: “I want to show this town how easy it will be fer me to put three balls into the blackest heart that ever pumped human blood.”

“You’d better mind what yo’re about, Jeff Wade.” Pole Baker was pale, his lips were tight, his eyes flashing.

“I know what I’m about. I’m tryin’ to draw a coward from his lair. I’m not shore—I’m not *dead* shore, mind you, but I’m mighty nigh it. Ef the guilty stand an’ hear what I’m a-sayin’ an’ don’t take it up, they are wuss than hell-tainted. You watch that white mark.”

The bystanders, several comprehending, stood rigid. Pole Baker stared. Wade raised his revolver, aimed steadily at the mark and fired three shots in quick succession.

“Thar!” said the marksman, with grim triumph, “as bad as my sight is, I kin see ’em from here.”

“By gum, they are thar!” exclaimed Peters, with a strange look into Pole Baker’s set face. “They are thar, Pole.”

“You bet they are thar, an’ some’ll be in another spot ’fore long,” said Wade. “Now, Peters, you go in the house an’ bring me my account. I’ve got the money.”

Wonderingly the clerk obeyed. Pole went into the store behind him, and, as Peters stood at the big ledger figuring, Pole stepped up to Nelson Floyd, who sat near a window in the rear with a newspaper in front of him.

“Did you hear all that, Nelson?” the farmer asked.

“Did I? Of course I did; wasn’t it intended for—?” The young merchant glanced furtively at Peters and paused. His handsome, dark face was set as from some inward struggle.

There was a pause. Peters went toward the front, a written account drying in the air as he waved it to and fro.

“I was about to ask you if—?” the young merchant started to say, but he was interrupted by Baker.

“Hush, listen!”

There was the sound of clinking coin on the counter below. The bell on the cash-drawer rang as the clerk put the money away.

“Thar, I’m even with this dirty shebang!” It was Jeff Wade’s raised voice. “An’ I kin act when the proper time comes. Oh, you all know what I’m talkin’ about! Nobody kin hide a thing in these mountains. But you’ll all understand it better ef it ever comes into yore families. I never had but one little sister—she was all the Lord ever allowed me to have. Well, she was married not more’n a month ago, an’ went off to Texas with a man who believes in ’er an’ swears he will make her a good husband an’ protector. But no sooner was the pore little thing gone than the talk set in. It was writ out to her, an’ she writ back to me to stop it. She admitted it was true, but wouldn’t lay the blame. Folks say they know, but they won’t talk. They are afeared o’ the influence o’ money an’ power, I reckon, but it will git out. I have my suspicions, but I’m not dead sure, but I will be, an’ what I done fer that scrap o’ paper I will do fer that man, ef God don’t paralyze this right arm. Ef the black-hearted devil is within the sound o’ my voice at this minute, an’ stays still, he’s not only the thief of a woman’s happiness, but he’s wuss than a coward. He’s a sneakin’ son——”

Nelson Floyd, his face rigid, sprang up and went into Joe Peters's little bedroom, which was cut off in one corner of the store. Opening the top drawer of an old bureau, he took out a revolver. Turning, he met the stalwart form of Pole Baker in the doorway.

"Put down that gun, Nelson; put it down!" Pole commanded. "Jeff Wade's deliberately set this trap to draw you into it, an' the minute you walk down thar it will be a public acknowledgment, an' he'll kill you 'fore you can bat an eye."

"No doubt," said Nelson Floyd; "but the fellow has his rights. I could never draw a free breath if this passes. I owe it to the poor devil, Pole, and I'll pay. That has always been my rule. I'll pay. Stand aside!"

"I'll be damned ef I do!" Pole stood his ground firmly. "You must listen to reason. It's deliberate death."

"Stand out of the way, Pole; don't make me mad," said Floyd. "I'm goin' down. I'd expect him to pay me, and I shall him."

"Stop! you are a fool—you are a hot-headed idiot, Nelson Floyd! Listen to me"—Pole caught the revolver and held on to the barrel of it, while the young merchant clutched the butt—"listen to me, I say. Are you a-goin' back on a helpless little woman who gets married to a man who believes in her an' goes away off an' is on a fair road to happiness—are you, I say, a-goin' to publicly advertise her shame, an', no doubt, bust up a contented home?"

"Great God, Pole!" exclaimed Floyd as he sank on to the edge of Peters's bed, "do you think, if I give him satisfaction, it will——?"

"Will it? It will be in every paper from Maine to California. Meddlesome devils will mark the articles an' mail 'em to the gal's husband. A lot o' folks did the'r level best to bust up the match anyway, by talkin' to him about you an' others."

Nelson Floyd stared at the floor and slowly nodded his head.

"He's caught me in a more degrading trap than the other would have been, Pole," he declared bitterly. "My conduct has branded me as a coward and left me without power to vindicate myself. That's one of the ways

Providence has of punishing a poor devil. He may have a good impulse, but can't act upon it owing to the restrictions laid on him by his very sins."

Pole looked down into the store.

"Never mind," he said gloomily. "Wade's gone."

Floyd dropped the revolver into the drawer of the bureau and went back to his desk.

"It's only a question of time, Pole," he said. "He suspects me now, but is not sure. It won't be long before the full story will reach him, and then we'll have to meet. As far as I am concerned, I'd rather have had it out with him. I've swallowed a bitter pill this mornin', Pole."

"Well, it wasn't a lead one." Baker's habitual sense of humor was rising to the surface. "Most any sort o' physic is better'n cold metal shoved into the system the wrong way."

There was a step in the store. Pole looked down again.

"It's old Mayhew," he said. "I'm powerful glad he was late this mornin', Nelson. The old codger would have seed through that talk."

"Yes, he would have seen through it," answered Floyd despondently as he opened a big ledger and bent over it.

Mayhew trudged toward them, his heavy cane knocking against the long dry-goods counter.

"I'll have the law on that fellow!" he growled as he hung his stick on its accustomed nail behind the stove. "No rampageous daredevil like that can stand right in my door and shoot for mere amusement at the county courthouse. This isn't a fort yet, and the war is over, thank the Lord."

Pole glanced at Floyd.

"Oh, he's jest a little hilarious this mornin', Mr. Mayhew," he said. "He must 'a' met a mountain whisky wagon on his way to town. Anyways, you needn't complain; he come in here jest now an' paid off his account in full."

"What? Paid off? Is that so, Nelson?"

Floyd nodded, and then bent more closely over the ledger. "Yes, he paid up to date."

“Well, that’s queer—or I am, one or the other. Why, boys, I had that fellow on my dead-list. I didn’t think he’d ever raise any money, and if he did I had no idea it would drift our way.”

Floyd left the desk and reached for his hat. Pole was watching him closely.

“Post-office?” he asked.

“Yes.” The two walked part of the way to the front door and paused. Joe Peters was attending a man on the grocery side of the house, and a young woman neatly dressed, with a pretty figure and graceful movement, stood waiting her turn.

“By gum,” Pole exclaimed under his breath, “that’s my little neighbor, Cynthia Porter—the purtiest, neatest an’ best little trick that ever wore a bonnet. I needn’t tell you that, though, you old scamp. You’ve already found it out. Go wait on ’er, Nelson. Don’t keep ’er standin’ thar.”

Pole sat on a bag of coffee and his friend went to the girl.

“Good morning, Miss Cynthia,” he said, his hat in his hand. “Peters seems busy. I don’t know much about the stock, but if you’ll tell me what you want I’ll look for it.”

Turning, she stared at him, her big brown eyes under their long lashes wide open as if in surprise.

“Why—why—” She seemed to be making a valiant effort at self-control, and then he noticed that her voice was quivering and that she was quite pale.

“I really didn’t want to buy anything,” she said. “Mother sent me to tell Mr. Peters that she couldn’t possibly have the butter ready before tomorrow.”

“Oh, the butter!” Floyd said, studying her face and manner in perplexity.

“Yes,” the girl went on, “she promised to have ten pounds ready to send to Darley, but the calves got to the cows and spoiled everything. That threw her at least a day behind.”

“Oh, that don’t make a bit o’ difference to us, Miss Cynthia,” the clerk cried out from the scales, where he was weighing a parcel of sugar. “Our wagon ain’t going over till Saturday, nohow.”

“Well, she will certainly be glad,” the girl returned in a tone of relief, and she moved toward the door. Floyd, still wondering, went with her to the sidewalk.

“You look pale,” he said tentatively, “and—and, well, the truth is, I have never seen you just this way, Cynthia. Have you been having more trouble at home? Is your mother still determined that we sha’n’t have any more of those delightful buggy-rides?”

“It wasn’t that—*today*,” she said, her eyes raised to his in a glance that, somehow, went straight to his heart. “I’ll tell you. As I came on, I had just reached Sim Tompkins’s field, where he was planting corn and burning stumps, when a negro—one of Captain Duncan’s hands—passed on a mule. I didn’t hear what he said, but when I came to Sim he had stopped plowing and was leaning over the fence saying, ‘Awful, horrible!’ and so on. I asked him what had happened and he told me—” she dropped her eyes, her words hung in her throat and she put a slender, tapering, though firm and sun-browned, hand to her lips.

“Go on,” Floyd urged her, “Tompkins said——”

“He said,” the girl swallowed, “that you and Jeff Wade had had words in front of the store and that Wade had shot and killed you. I—I—didn’t stop to inquire of anyone—I thought it was true—and came on here. When I saw you just then absolutely unharmed I—I—of course—it surprised me—or—I mean——”

“How ridiculous!” He laughed mechanically. “There must be some mistake, Cynthia. People always get things crooked. That shows how little truth there is in reports. Wade came in here and paid his bill, and did not even speak to me or I to him.”

“But I heard pistol shots myself away down the road,” said the girl, “and as I came in I saw a group of men right there. They were pointing down at the sidewalk, and one of them said, ‘He stood right there and fired three times.’”

Floyd laughed again, while her lynx eyes slowly probed his face. He pointed at the court-house door. "Cynthia, do you see that envelope? Wade was shooting at it. I haven't been over to see yet, but they say he put three balls close together in its centre. We ought to incorporate this place into a town so that a thing of that sort wouldn't be allowed."

"Oh, that was it!" Cynthia exclaimed in a full breath of relief. "I suppose you think I'm a goose to be so scared at nothing."

Floyd's face clouded over, his eyes went down. A customer was going into the store, and he walked on to the street corner with her before replying. Then he said tenderly: "I'm glad, though, Cynthia, that you felt badly, as I see you did, when you thought I was done for. Good-bye; I shall see you again some way, I hope, before long, even if your mother does object."

As they walked away out of his sight Pole Baker lowered his shaggy head to his brawny hands, his elbows resting on his knees.

"Fool!" he exclaimed. "Right now with his head in the very jaws o' death he goes on talkin' sweet stuff to women. A purty face, a soft voice an' a pair o' dreamy eyes would lead that man right into the fire o' hell itself. But that hain't the p'int. Pole Baker, he's yore friend, an' Jeff Wade is a-goin' to kill 'im jest as shore as preachin'."

When Pole left the store he saw nothing of Floyd, but he noticed something else. He was passing Thigpen's bar and through the open doorway he caught sight of a row of bottles behind the counter. A seductive, soothing odor greeted him; there was a merry clicking of billiard balls in the rear, the joyous thumping of cues on the floor and merry laughter. Pole hesitated and then plunged in. At any rate, he told himself, one drink would steady his nerves and show him some way, perhaps, to rescue Floyd from his overhanging peril. Pole took his drink and sat down. Then a friend came in and gave him two or three more. Another of Pole's sprees was beginning.

(To be continued.)

When Beauty Is a Fatal Gift

CRAWFORD—It seems to be impossible to convict a pretty woman of a capital crime.

CRABSHAW—It wouldn't be if they allowed women to serve on the jury.

Still Hope

JAGGLES—Even the doctors can't kill off the mosquitoes.

WAGGLES—Perhaps they haven't tried the same methods they use on the human race.

All for the Best

S MITH—What do you think of the outcry against the childless rich?

BROWN—I don't blame them. Look how their children turn out.

How I Dined With President Grant

BY B. F. RILEY

IT was in November, 1875. At that time I was a student in Crozer Theological Seminary, near Philadelphia. The country was just rallying from the effects of a long and disastrous war, and as the centenary of the nation would occur the following year, preparations were being made for the celebration of the event by a great exposition, which was to be held the next year in the City of Brotherly Love. This was the first of our great American expositions. It will be remembered that this was called the Centennial Exposition.

General Hawley, now a senator from Connecticut, was made the superintendent of this first great national undertaking in the way of expositions. In order to procure an adequate appropriation from Congress, General Hawley and the Centennial Commission conceived the plan of bringing to Philadelphia all the dignitaries and celebrities from Washington. They were to be shown the grounds and the unfinished buildings, as well as the scope of the mammoth undertaking. It was further proposed that the people of Philadelphia should give a banquet to the distinguished visitors from Washington. This banquet was given in Horticultural Hall, the only building that was sufficiently completed for such a function. The sound of thousands of hammers and the swish of many saws resounded throughout the Centennial grounds in Fairmount Park.

A magnificent train was to bring the distinguished guests from Washington, and it was to arrive in Philadelphia at a given hour of the evening. President Grant and his Cabinet, both branches of Congress and the judges of the Supreme Court were to constitute the excursion. They were of course the guests of the city of Philadelphia, and on their arrival were driven direct to the hotels. As might naturally be expected, such an event and occasion set the city all agog, and the Philadelphia press was filled with the manner of their coming as well as the purpose. Public

excitement ran high, and the excursion was the subject of universal comment.

At that time I was an occasional correspondent of two Alabama papers, one a religious journal and the other a secular one. Aware that this was the most favorable opportunity I should ever have for seeing so many of our distinguished men, I resolved to go to Philadelphia, and, if possible, come into contact with them. No better plan was suggested than to present myself as a member of the press. I imagined that there would not be the slightest difficulty in accomplishing this, and that all that was needed was to represent myself as such, and the opportunity sought of mingling with the great would be at once afforded. Decking myself in my best garb, which was none the better for its long service, I hied away to the city, fifteen miles distant, on reaching which the suggestion of a lean purse was followed in going to a cheap boarding-house.

After a scanty supper I went to the chief hotels where the great guests were already arriving, bought an evening paper for two cents, and found that a committee of citizens had been appointed to give information to all strangers relative to the trip and the banquet of the next day, which committee was to be known by the red rosettes which they wore. I threaded my way as best I could through the jammed corridors of the hotel, jostling with army officers in brilliant uniforms, and elegantly dressed statesmen, until one of the committee wearing a rosette was found.

Without apology, and perhaps in rather an assertive way, I began in a direct manner, telling him who I was, what I was, and what I wanted as a representative of the Southern press. In reply to his question as to what papers I represented, I frankly told him, when he asked for my credentials. But these were in the vocative, and so I could produce none. He eyed me very closely and with a distrustful look while I sought to atone for the absence of credentials by telling him that, being in the city at the time of learning fully of the event, I had not the means of obtaining the desired credentials. After hearing my statement he told me that he feared nothing could be done, and bluntly gave me to understand that he could do nothing. Once again I met him in the jam, but he declined to notice me, of course.

Going across the street to the other hotel, I mingled with the crowd, and came upon two members of the committee standing together. I presented

my request to them, and they said that they were members of the Philadelphia press and gave me a most cordial reception. When they asked for my authority to represent the Southern papers, and I had none, they requested my card, but I had not even a card. They were evidently embarrassed, for they showed a willingness to aid me, but found themselves unable to do so. After some courteous explanation they expressed regret at being unable to serve me, and one of them handed me his card and asked me to apply at Centennial headquarters, on Walnut Street, the next morning, at eight o'clock, and said that if anything could be done, they were sure the Commission would be glad to do it.

Some time before eight I was at the Commission headquarters the next morning, and when the doors were opened I strode in, asking for the gentleman whose name had been given me the night before, and when I was presented to him he looked at me with a gaze of curiosity. I told my story as it had been now several times repeated; he listened with some impatience, and asked for the credentials. He listened to my explanation with a frown, which indicated that he thought me a fraud, and saying that he could do nothing under the circumstances, swung his chair around and gave me no more heed, until I more than hinted that perhaps I would be the only correspondent present from the South, and that I felt some consideration was due me, especially if the Commission cared to have the people of the South attend on the forthcoming exposition. The question of the North and South was a sensitive one at that time, and he replied that the South could come if it desired, and suggested that if I wished to remain away he did not object. I replied that the South was clearly being discriminated against in the matter, as representatives of the North were accorded the consideration which I sought. He demolished me with a single blow when he said that they came properly accredited.

Nothing seemed left now but to hasten to the hotels and see what could be done there. I accosted another member of the committee of citizens, but in no wise succeeded. Already the carriages were drawn up along the side of the street for several blocks, awaiting the pleasure of the visitors from Washington to go out to Fairmount Park, where the buildings were going up. Baffled at every point here, I stepped into the street-car and reached the park in advance of the procession. Here I met a medical student from the

University of Pennsylvania whom I had met before, and I told him of my ups and downs, very much to his amusement.

I had now practically given up the hope of being thrown with the national magnates, but when they began filing through the great incomplete buildings, and I stood with many others staring at them, without distinguishing one from the other, there came an hour of growing anxiety, stronger than before, to know them, at least, by sight. I still felt within myself that I might succeed in getting into the banquet hall. I mentioned it to my companion, who sought to dissuade me from any further effort, and said that it was folly to attempt it. But when I saw the horses' heads turn toward the Horticultural Hall, I bade the medical student good-bye, and scudded across the park through the cutting November wind toward Horticultural Hall, fully half a mile away. When I reached it, I found it strongly guarded by three cordons of policemen, standing about twenty yards apart, and surrounding the building. This did not inspire much encouragement, and nothing seemed so far away as the possibility of getting into the hall. Meanwhile the carriages were arriving, and the distinguished guests were alighting, and going rapidly into the hall. An eager crowd of gazers stood near where the carriages stopped and were looking for dear life at everyone as he stepped from the carriages. One Congressman raised a loud laugh when he leaped out and said:

"That other fellow is Grant!"

While I was thinking what I might do next, several members of the committee wearing rosettes were seen coming toward the hall. With some difficulty I reached them, and the many-times-told tale was repeated about my being a correspondent from the South, to which they listened with interest, and said:

"Why don't you go along in?"

"The policemen," I said.

"Have you a badge?"

"No," I innocently replied.

"We are out of them, or we would give you one," one of the group said.

“Come along with us, and we will take you within the first line and send someone out to show you in.”

Within the first line of policemen they left me, promising to see to it that I at once be shown in. Several minutes, that seemed hours, passed, and apprehensions began to arise that at last I might slip in my arrangements. My anxiety was quickened by a burly Irish policeman approaching me with his club, demanding to know what I was doing there. I assumed a great deal of courage and replied that one of the committee had left me there on business; and when he threatened to put me out, I replied rather stoutly that he might get himself into trouble by tinkering with the official matters of the commission. He used some ugly language, and said that he knew his business, and that he would let me stay only a few minutes longer and turned away on his beat. He again approached me and hinted that I had misled him by my statement, and that I must “get out right away.”

Just at that moment a gentleman wearing a rosette, and one whom I had not before seen, appeared at the entrance of the hall and was giving some directions to policemen about the door, when I hailed him rather unceremoniously and laughingly told him that I was in a fix and he must help me out, that I was where the owl had the hen, where I could neither back nor squall. His face was a perfect interrogation point as he approached me, and he evidently thought fast while I told him that this was a funny predicament for a correspondent to be in. He listened to me throughout and said:

“Why, yes, this will never do,” and, laying his hand on my shoulder, led me within the first door, and sent someone for somebody else to escort me into the banquet hall.

A gentleman soon appeared on the scene and asked for that correspondent who wanted to get in. I told him I was the one, and he took my arm and led me straight into the hall of banquet. As I passed through suddenly I came wellnigh coming into collision with President Grant, who was standing over a grate warming his feet. He stared at me as though he was afraid I might run over him, and I caught a snatch of a conversation between himself and another gentleman, who was obviously twitting the President on the size of his feet by relating an anecdote of a Congressman on the streets of Washington, who was trying to trade with a bootblack for a

polish, and the shiner of shoes said that the job was such a big one he would have to take it by separate contracts. At this bit of pleasantry Grant grimly smiled and said nothing.

The improvised banquet hall was a scene of splendor. The walls were festooned with flags and bunting and pictures, and the floors at the base of the walls were adorned with flowers and evergreens, while the long tables were covered with gold and silver plate, cut-glass and branching golden candelabra. Running parallel with the wall on the left, on a raised platform, was a long table with sumptuous adornments stretching at right angles to the tables below. The seats of this elevated table fronted those occupying the seats on the floor. Immediately in the centre of the table was the chair in which John Hancock sat when he presided over the convention which adopted the Declaration of Independence. This antique and high-backed piece of furniture was overhung with silken banners woven into appropriate designs and a field of stars. This was the seat provided for the President. Just in front of him was an immense silver laver filled with perfumes, while in the centre was a beautifully dressed roasted pig.

When the band began playing the guests took their seats, and I sat on the seat within easiest reach. When I looked over the hall I saw that I was the only one without a badge or decoration of some sort. Luckily for me I had a seat near a Congressman from Arkansas, a gentleman who had been a Confederate brigadier. He was warm in his greetings to a young Southerner and took great pains to point out to me the most distinguished of the guests. While we were admiring the dainty souvenirs a negro waiter borrowed one of mine, promising to return it soon, and when he disappeared the Congressman said:

“You shouldn’t have allowed that rascal to fool you; he is not going to bring that back, but wants it for someone else.”

He was correct, for I haven’t seen the negro waiter since.

The banquet lasted more than an hour, and the effects of the champagne were soon manifest from the increased boisterousness of the guests. So far as I could observe, I was the only one who declined the wine. When the cigars were passed the guests dived their hands deep into the boxes and took hands full and filled their pockets. As I did not smoke, I took mine to the boys at the seminary who did.

The banquet being over, the toasts began. After a neat speech by the toastmaster, he announced the first toast: "The President of the United States."

It was intended that this should be responded to by Grant, but he sat as unmoved as a statue. Cheer after cheer rang out, and Grant was called for in deafening chorus, but he was imperturbable still. My Congressman neighbor remarked in a whisper:

"Now, wouldn't I feel ashamed to be unable to say a word in response to such a demonstration as this!"

As the President would not reply, the other toasts were responded to by Chief Justice Waite, the historian Bancroft, James G. Blaine, Senator Oliver P. Morton and one or two others of less distinction.

The scene ended amid vociferous songs, oaths and other expressions of drunken disorder, which were not calculated to inspire much respect in the young theological student for the law-makers and statesmen of the country.

Making my way out of the hall, I found that it was already dark on the outside. I boarded a street-car and was soon on board a train going toward Crozer, and at nine o'clock was in my room surrounded by a host of the boys, to whom I related the experiences of the day, while the smokers in the crowd smoked my fine cigars.

And that is the way I dined with President Grant.

The New York Children's Court

BY HON. JOSEPH M. DEUEL

Author of the legislation creating the Court and a Justice therein

A TRIBUNAL with an age-limit for jurisdiction is a modern innovation. For two years one of that character has been passing through an experimental stage in the city of New York. It has fully justified its creation. It is experimental still, in the sense that two years have been insufficient to exploit all its useful possibilities. They are illimitable. More than any in the world, the success of this Court depends upon the personality of the individual who wields its powers; and, however capable, resourceful and aspiring, he cannot be eminently successful unless back of him stands a strong, healthy and encouraging public sentiment. This is rapidly developing as parents come to know that each justice is a willing and enthusiastic ally, ready at all times to join heartily with them to correct and encourage the boy or girl who has been tempted to go wrong, rather than an ordinary minister of justice who measures each infraction of law with statutory precision.

When it is widely known that the primary object is not one of punishment, but of municipal and communal salvage, its possibilities for good will be greatly enhanced. No one has ever sat with its presiding justice through an entire session without some expression of satisfaction with the Court and the controlling policy in dealing with wayward youth. Said a minister of the Gospel recently, at the close of a forenoon session: "You are doing more good than all the ministers in the city." This exaggerated commendation is cited simply to show that the experimental stage cannot be on the wrong tack when, after careful observation, men of intelligence give utterance to such convictions. But every member of the community cannot see and judge for himself, and this article is designed to give to all a correct idea of the Court, why created, and its policy in dealing with offenders. Many strangers, upon information not first-hand, have been somewhat

severe in criticism of a supposed sentimental leniency; they have become warm supporters when brought into close range with its operations.

No useful purpose will be served by tracing the origin of the Court or singling out and naming those who were instrumental in its creation. It came naturally by the process of evolution in the matter of juvenile legislation. Its advent was timely, for our civic conditions, three years ago, were breeding criminals more rapidly than at any other time in our history; and a court to deal solely with the source of criminal supply was imperatively demanded. One of the strongest arguments at Albany for the bill was based upon these conditions, and it was urged that when fairly in progress the prophylactic value of the Court would be manifested in a reduced crime rate for the city.

No one then anticipated the volume and character of immigrants that have since deluged our ports. Parents with large families of growing children have edged into overcrowded tenement centres, where their native tongue is almost exclusively spoken, and have produced unwholesome social conditions, that destroy the American theory of home, by packing men, women and children into one or two small and ill-ventilated rooms. They are without means of subsistence. The market demand for their labor is already supplied. No employment at wages can be found, and, however abundant in that respect may be the prospects in other localities, here the parents find themselves, and here they insist on staying and taking chances. Children swarm the streets, not only to get sunlight and air, but to pick up pennies, from whatever source available, to pay rent and buy food. And they are to become American citizens under such circumstances.

The fault is not with parents, who are lured here by golden hopes, held before them by competing transportation agents, but is with the governmental policy that permits immigration to go on without intelligent direction. Possibly these people cannot be induced to go to parts of the country where there is a demand for the kind of labor they can give, but their crowding into New York is working endless mischief in the men and women produced.

The records show that boys and girls who have lived here but a short time, many less than a year, others one, two and three years, get into difficulties and find their way to the Children's Court, some for serious

crimes and others for contravening state or local regulations of which both parents and child are ignorant. The child stays away from school to peddle, or beg, or get money in other ways, and, if he or she succeeds in evading the police, is hunted by a truant officer or runs foul of a "Gerry" agent. Be the infractions serious or trifling, they add materially to the volume of child prisoners, swell the inmates of reformatories, increase the expense of city government and furnish material for keeping up the army of criminals.

Dr. David Blaustein estimates that the square mile of territory bounded by the Bowery, Mangin, East Houston and Cherry Streets contains a Jewish population of 350,000, largely composed of Russian immigrants. If it contained no other races there would be a superficial area for light, ventilation, business, recreation and living less than three yards square for each individual. Now for results. Mr. Coulter, Deputy Clerk of the Children's Court, in a published article recently stated that twenty-six per cent. of child prisoners were of Russian parents, ninety-eight per cent. of them coming from the lower East Side and the largest majority from the square mile above mentioned.

The Italian contingent is estimated at 400,000, which yields twenty-four per cent. of the juvenile arrests. Russian and Italian immigrants have a predilection for hiving like bees rather than for living like Americans. They have no inclination to go to those parts of the city where room, light and ventilation are in abundance, but select a locality where others speaking the same tongue have settled. Then begins the crowding process which drives other races from the neighborhood. Children run wild in the streets, form undesirable associations and become easy victims to rapacious Fagins everywhere abounding. The parents do not learn our language with any degree of efficiency, and acquire slight knowledge of our government, its policies or ideals. Instances occur daily of witnesses that have lived here fifteen to twenty years who require an official interpreter to give testimony.

Russian and Italian nationalities furnish more than half of the business of the Children's Court. It is not wholly racial, because ordinarily the Jew is devoted to his family, is law abiding and is not prone to active crime. Upon this point Mr. Coulter calls attention to the fact that with an estimated population of 75,000 Jews in the Bronx that borough furnishes but few juvenile criminals of this race. He might have added that such as came were

of a mischievous or trivial character except when boys from the congested centres made predatory excursions to that neighborhood.

The statistics gathered at the Court do not furnish data from which to compute the length of time delinquents have been in the city. This is generally brought out in the course of trial or investigation. I have before me the trial record of several cases of recent occurrence. In December last Mrs. Rosie Rosenthal, of No. 329 Stanton street, brought Isidore Weinstein into Court and asked that he be committed as incorrigible and ungovernable. In the course of the proceedings it was developed that the boy was so bad at home in Hungary that his parents sent him here to get rid of him. He came in September, 1904, with a man living in Nashville, Tenn., stopped one night with the aunt and then went South. Six weeks later the man shipped the boy back to the aunt because he was hopeless. Instead of committing him to an institution at an expense of two dollars a week to the taxpayers, the whole power and influence of the Court were bent on having him returned to Europe.

Another case was Robert Pries, who pleaded guilty, January 13, to stealing jewelry valued at one hundred and fifty dollars from a guest in a city hotel where the boy was employed. He came from Germany alone last August and had no relatives in this country. He had been a bell-boy at the hotel three days and used a pass key to commit the offense.

Raffael Basignano, illegitimate, came from Italy last July with a friend. He was brought up in San Malino by a woman, not his mother, known as Philomena. She came here, settled at Flushing and then sent money to pay his passage. She died before his arrival; he drifted to New York, and then reached the Children's Court. Efforts to deport these last two are in progress.

These are types of many coming to this Court for disposition. Taken in connection with the localities whence comes the largest amount of business, it may be concluded that two factors are producing prisoners to an extent dangerously menacing the future good order of this city: Immigration laws and congested tenement centres. If there be any fault with the former or in their administration the remedy lies with Congress; as to defects in the latter we must look both to Albany and the local government for relief. The Children's Court is battling against odds not anticipated when created, and

with creditable success. Scarcely a session passes without definite results, and a parole day never goes by without some demonstration of the Court's usefulness.

When the bill to create the Court was pending, its theoretical value had to be appraised by contrast with the system to be displaced. Its practical value is better understood by the same method. In fact, no true conception of its potency and usefulness otherwise can be realized. Formerly all children charged with crime, delinquency, want of proper guardianship or found in a state of destitution were taken to the various police courts. In the matter of guardianship, destitution and some of the minor offenses the magistrates had power to hear and determine. In cases of felony and misdemeanor the police court was simply a sieve to separate those crimes and to send the former to General Sessions and the latter to Special Sessions for trial. In General Sessions the cases had to be submitted to a grand jury and, if indicted, a trial followed before a petty jury.

There were discouraging delays. Few were indicted and scarcely any convicted. Those youthful offenders on returning home unscathed became heroes in the estimation of companions; in their own minds they were immune to punishment because of superior skill and deftness. They did not understand that escape was due to sympathy. Each became a missionary in crime to corrupt others; became a chief of admiring associates and spent his time and energy in devising methods of pillage and robbery. In consequence organized bands of youthful desperadoes sprang up in various parts of the city which were known as "de gang." A vicious boy with goodly sums of money in his pockets to flash before and spend upon impecunious associates can do more moral damage in a week than Sunday schools can correct in a year.

Ten years ago pickpockets in the teens were a rarity; a few years later frequent arrests made the subject somewhat conspicuous; in 1900 the arraignment of several in one day in the Essex Market Court was quite usual. Several youngsters acted in concert, each performed some important part in the process, and all shared in the spoils: a small percentage satisfied the younger lads who had slight experience in handling money. Ready money for theatres and cigarettes, besides something to quiet parental inquisitiveness, is an alluring bait to a child with slight moral supervision and guidance—far more fascinating than hard work or school drudgery and

with promises of more freedom and luxury. And it is such a simple matter to deceive unsuspecting parents who are unable to speak our language. Besides, the young culprit knows how to weave fairy tales about some alleged employer that head off all investigations.

It is charitable to assume that confiding parents in their simple trustfulness have no conception of the temptations to which their children are subjected, but the facts far too frequently indicate supreme indifference. I have known fathers of girls just verging into womanhood to appear in Court and testify that a disorderly house next door, or in the same building one flight down, was not a nuisance. A father of this character whose child, boy or girl brings home money never cares to know its source. If the money comes no questions are asked, or, if asked, the answers are never verified.

This kind of parent is typical of many now coming here, and it is he or she whose progeny furnishes business for the Children's Court and recruits for the criminal ranks. The youngster having started in with some weekly amount to carry home had to maintain it. If it was not available when Saturday came desperate chances were taken which often resulted in detection and arrest. But conviction and punishment were rare. Fagins multiplied and recruits were plentiful. Picking pockets with so many pickers at work was a little overdone and larceny in all its forms was studied and operated. We soon had the youthful burglar, highway robber, forger, till-tapper, wagon thief and pilfering employee.

The old system was making no headway against crime, for the simple reason that it did not effectively operate against the source and lacked the requisite machinery for dealing therewith. Sympathetic leniency was too prevalent; the time and thought of judges were taken up with adult cases; little attention could be given to restraint and supervision. Even if these judges had the time and the inclination they were powerless because grand jurors failed to indict and petty jurors could not be persuaded to convict.

Only recently a grand juror, speaking of his work, criticized a magistrate for sending a boy of seventeen to trial for larceny because the amount stolen was but a few dollars; it did not dawn upon him that the boy was not at fault for stealing so little; he probably took all he could. It is the thieving propensity in the young, not the amount stolen, that most vitally concerns the community. The amount, by statute and by Court custom, is one factor

in measuring sentence in adult cases; with juveniles it is inconsequential, and in no way decisive of treatment after conviction. This is the spirit of the law also that permits felonious acts to be tried as misdemeanors if committed by children under sixteen.

Treatment wisely can be determined only with some insight of the boy's disposition, knowledge of his tendencies and information of home environment. In other words, thieving to some extent is a preventable evil, and the treatment several boys should have may vary as much as a physician's prescriptions among an equal number afflicted with a like physical ailment. The old judicial plan, as it had continued for years, sent the youngster home without a reprimand or a warning, kept it up until all too late a hardened and confirmed criminal was the result, and upon him were visited punitive and vindictive powers. Criminal propensities are akin to physical appetites in that they become habits by indulgence. It is easier to keep a boy from smoking cigarettes than to break him of the habit after long practice. On the same principle a youthful offender may be checked much easier than a hardened criminal can be redeemed.

Such were the conditions when the Children's Court was created, and such were the principles upon which it was founded. It has been in existence and operation since September 2, 1902. Its policies, plans and methods, while not perfect, stand in refreshing and encouraging contrast to those that preceded, and it is exerting power and influence that may be measured with some degree of accuracy and satisfaction.

Instead of delay ending in failures, we have promptness bringing results. Children are not lugged from court to court, often going to each several times before a hearing; they come up for trial not later than the day following arrest, and they do not have to return unless convicted; even then many are permitted to go home with some sense of what they have done, the reasons making it objectionable and the consequences sure to follow a repetition. The quickness with which conviction follows the commission of an offense is of the highest importance; especially if it be a serious crime, such as larceny, burglary, etc. It is one of the Court's most valuable assets.

There is a total suppression of sympathy or sentiment during trial. The prisoner is arraigned, the charge is explained and then he or she must plead guilty or not guilty. Each has the benefit of counsel—if not employed by a

parent the Court invariably assigns one; the trial proceeds at once if the plea is "not guilty," and at its close comes acquittal or conviction. During all this time a dispassionate and methodical inquiry is pursued by strict legal methods, in which the prisoner has the advantage of every technicality known to criminal practice. The justice presiding is both judge and jury. He has absolute control over future proceedings; if there be a conviction, therefore, he divests himself entirely of pity or prejudice. With him it is simply the elucidation of facts by strict legal evidence and reaching a conclusion that is logical and just. There are objections and rulings, demurrers to pleadings, motions for new trials and motions in arrest of judgment. Frequently some bright boy defendant watches the progress of the trial with interest and learns something which, never injurious, may be of advantage. The sad and possibly harmful thing is that he is on trial for a crime; and yet that one feature may save him from a disastrous career.

The time for pity, sympathy and sentiment on the part of the justice comes when he pronounces the defendant guilty. Then the character and attitude of the man upon the bench undergo a complete change, for a duty far transcending that of weighing facts and reaching conclusions now devolves upon him. This duty is to determine what to do with the youngster who has been convicted, and upon this question the greatest mistakes may be made; it is the one that weighs most heavily on the conscience of the Court and is the most perplexing to the judicial mind.

The controlling principle in the solution is, what is best for the boy is best for society; he must either be committed to some reformatory presided over by persons of like religious faith as the parents, or he must be permitted to return home. Either course may be dangerous. To commit may blast his future; to release may be iniquitous to him and a positive menace to others. In order to decide the judge must learn all that is possible about the individual; his habits, disposition, associations, reputation, home environment and previous record. If the boy attends school his record there is obtained; if at work the opinion of the employer is sought, but in a way not to produce injury. Happily the law upon this subject permits the Court to get information through any channel, not even gossip, rumor or hearsay is excluded. In many cases several days are necessary to gather the material upon which the Court finally acts.

The majority of the cases do not require postponement for this purpose. The records of the Society for the Prevention of Cruelty to Children are so complete and instantly available as to enable us to know at the close of the trial whether there has been a previous conviction, which is of the first importance. If there be none, a suspended sentence or a parole generally follows, for it is believed that with the majority better results are obtainable through fear under freedom than by discipline under restraint.

There is a misunderstanding in the public mind, and unfortunately with some of the police officers, as to “suspended sentence.” It means that criminal punishment is not then inflicted, but may be the following week or month or some time thereafter, but will not be so long as the youngster is of good behavior. The boys understand that they will not be molested so long as no bad report reaches the Court, and the most of them act accordingly. Quite recently several on parole for engaging in street stone fights were separately asked what they did during the epidemic of stone battles that broke out in January. They replied that they ran home and stayed there while the fight lasted. A suspended sentence is quite apt to work in the same way with most boys, for a second conviction would surely disclose the former, and punishment then is severe.

Occasionally a boy is sent to an institution on his first conviction as a safeguard against parents whose depravity and shameless indifference are positively detrimental, and sometimes a child is permitted to go home and remain so long as the mother avoids drink. Good work has been done in both directions—the boy removed from iniquitous surroundings, or these mended through parental affection.

A child is rarely committed for the first offense, no matter how serious it may be; there is a remand to the Society for its officers to gather and report information of the individual and environment, and then sentence is deferred and the child put on parole. He goes home with an opportunity to earn a suspended sentence by his individual conduct, which covers a wide range. It is intended to correct every bad trait; evil associations are to be avoided; staying away from home nights must cease; conduct everywhere—in the house, on the streets and at school—must be exemplary. During this time he is under the supervision of the parole officer, to whom there must be a report each week and at the end of the period—four, five or six weeks—appearance and report in Court. If a high standard of excellence is

reached, sentence is suspended; if there is improvement, parole is continued; if the boy continues in his old ways, sentence is imposed, or there may be a short parole with certain commitment at the end if a radical change is not shown.

By these means the boy sees that others are interested in his welfare, and he gets encouragement in all directions, for neighbors, noting the change, treat him accordingly. Frequently he gets sufficient satisfaction out of the experience to determine that he will continue in the same way, and in all cases he learns what he can do by exercising self-control; it never works harm and often produces most gratifying results. I mention a few as indicative of many within the experience of every justice holding the Court.

In October last a widow had her only child, a boy of fourteen, taken into custody by the police for absolute incorrigibility; he stayed out nights, associated with bad companions, would not work and was rude and insolent. On the following morning the mother appeared in Court to press the charge under oath and insisted that the boy be committed forthwith. The usual practice was followed; the boy was remanded to the Society and an investigation ordered; the report confirmed everything the mother had alleged, and the few days of separation had in no way changed her determination to have the boy committed, for, as she declared, she was completely discouraged, and he was past redemption. Something about the boy led me in the opposite direction and I said to her, "I think we had better give this young man just one more chance," and, turning to him, I said, "Don't you think so, my boy?"

"Yes, Judge," was the quick response.

After some conversation with the mother, who finally relented, a five weeks' parole was ordered. On the return day both were in Court. The boy, tidy in appearance, stood erect and looked me manfully in the eye as he took his place before the bench. The parole officer's report, in writing, told me that immediately following parole the boy had secured a position in a hardware store, and by industry, attention and intelligence had obtained a voluntary promise of increased wages; that he had spent his evenings, during parole, at home, which the mother confirmed and with moistened eyes she added:

“I could not ask for a better boy, and we are both happy.” The boy had found what he could do by trying, and was satisfied. It would be difficult to determine which was the prouder and happier, the mother or son, as they left Court together.

A disorderly boy at school, and an habitual truant, coming up for commitment asked me to try him on parole. He came back a month later with a school certificate of 100 per cent. in attendance and deportment. A father brought his boy of fourteen to Court for commitment because of prolonged disobedience, which could not be corrected by chastening; he was a nuisance in the neighborhood and the complaints sent to the house had utterly destroyed paternal confidence. He was put on parole against the father's protest. A month later the father reported a satisfactory change, which, as the parole officer's report stated, had been noticed by the neighbors. On request the parole was continued for a month, when the report of father and parole officer showed almost perfect conduct. On the father's special request the parole period was extended two months. While these are exceptional cases they are by no means rare.

From this extreme there is a gradual shading downward to the point of absolute hopelessness, when the subject is turned over to the disciplinary methods of a reformatory. During the year 1904 out of 1,098 paroles 170, or 15½ per cent., were subsequently committed, which shows satisfactory results of 84½ per cent. Nineteen hundred and three was a trifle better with its 1,117 paroles, of which 13½ per cent. refused to be benefited. But if one-half of the lads can be redeemed or kept within reasonable bounds during character formative period, the Court will prove a success, and intelligent citizens will regard the parole system as worthy of continuance and extension. It is harmful to none and gives each a fair chance to test self-reliance and manhood; it does not injure the boy past redemption, but simply postpones commitment, and is a wholesome demonstration to him that his misfortune is of his own choosing.

The boys generally understand that but one chance can be expected, and coming back a second time on a serious charge the benefit of parole will be withheld. This is not an inflexible rule. If there are good prospects a second or even a third parole would not be refused. But there must be more than mere possibility to secure a second and exceedingly strong assurances for a third parole. One good test of its beneficence is the frequency with which

parents ask that it be extended rather than terminated; always on the same ground that the boy is better behaved at home and at school, and is more careful of his associations.

There is another factor that gives the boys considerable worry and serves somewhat as a deterrent: the “Gerry Society,” with its complete up-to-date record running back for thirty years. When the time comes for pronouncing judgment a Society representative—one or more always being in Court—is called upon for the record of the boy and his family. This is given in his presence, and sometimes involves older brothers or sisters. So that the youngster goes out of Court convinced that it is impossible to hide any misdeed. The services of the Society and its officers are of inestimable value in the conduct of this Court.

A feature of the Court which would occur only to one who is a frequent visitor and careful observer of its proceedings is that of a practical kindergarten in civics to those most in need of instruction. As to offenses involving moral turpitude—larceny, burglary, picking pockets, etc.—the child and the parents know the act is wrong and why it calls for arrest and punishment. But this is not true of a great many arrests; possibly one-third of those made during any year. There are many acts forbidden in a crowded city that would be unobjectionable elsewhere. An arrest is sure to bring to the Court a surprised and indignant parent. Such acts come under the classification *mala prohibita* and include bonfires, ball playing, craps, cat, throwing missiles, jumping on and off street cars, truancy, peddling, etc. It is for the justice to explain why the act is condemned and forbidden.

Bonfires may be taken as an illustration. Many arrests were made on the day of the last election, and each boy confessed that the fires were political. The boys assiduously gather fuel for days in advance and will burn it election night, whoever is elected. The lads were commended for political zeal, and were asked whether they wanted to become good or bad politicians. The answer, of course, was “good,” and then they were informed that they had started out wrong, because a good politician always studied how to save the people from needless expense; that fires on asphalt pavement ruin an area that may require twenty-five, fifty or a hundred dollars to repair, which has to be raised by taxation, and some portion of it each individual boy or man must pay either directly as a property owner or indirectly in the increased cost of rent, clothing, fuel, groceries and other

purchases. Other matters are explained on similar lines, and often the eyes of some youngster will brighten as the explanation proceeds and at its close he will say, "I didn't know it was so bad; I'll never do it again." Such a boy rarely comes back on a second charge. These explanations are not made purely for instruction, but to inform the child that behind all law interdicting ordinary acts there are good reasons and to state them so as to come within youthful comprehension.

The child is not the only beneficiary, for the English-speaking parent absorbs some of the information, and each goes away knowing why it is unlawful to build bonfires, play crap or ball, or do other things which result in arrest. When time permits, the non-English-speaking parent gets his information on these topics through the official interpreter. To punish a child, or through him the parent, for an act when neither understands why it is forbidden, is extremely distasteful; but such instances occur, and punishment is inflicted because it is the only method for impressing clearly on their minds that the act must not be repeated.

Thus far boys only have been mentioned; but a like method of treatment applies to girls whenever there is occasion, which is not often. Fortunately for the world in general and this city in particular, the female sex is far less prone to crime and venality. This is specially prominent in the Children's Court, for, eliminating improper guardianship—neither boy nor girl being responsible therefor—girl prisoners constituted but four per cent. of the cases. In the police courts women make up twenty per cent. of arrests. There were but thirty-eight girl defendants in a total of 1,055 larcenies, six in a total of 2,870 disorderly conduct cases, two in the 50 robberies, two in 197 assaults, two in the 346 burglaries; of the three attempts at suicide all were girls. It may truthfully be said that womankind is the crowning glory of the race and the sheet-anchor of progressive civilization.

Much time is consumed with questions of improper guardianship, of which during the year there were 1,983 cases; during 1903, 1,582. These complaints are rapidly increasing, partially because of ignorant and indifferent aliens. But the machinery for dealing with such matters is so much better than formerly existed that more attention is given to the subject. During the year preceding the establishment of this Court there were but 539 such cases in the seven City Magistrates' courts of this division. There is greater firmness in dealing with them than with some

transgression of the child. While the subject of inquiry is under sixteen years of age the cases practically are of parental adjudication; the fathers and mothers are on trial, and it is one or the other that is disciplined if the complaint is well founded. If the evil be drink, which is true as to many of the cases, it sometimes may be overcome if parental affection and desire to retain custody of the child are well developed; if in surroundings coming within parental means to correct or in restraint and supervision which parents neglect to exercise, the objection is overcome with most parents by a warning. While testing sincerity and ability the child is permitted to remain at home. In this way children are given approximately fair opportunity to develop proper and becoming tendencies. The world would be tremendously shocked if it could know how many of its criminals, paupers and vagrants are caused primarily by home environment and improper parental conduct.

A short time since a visitors' book was opened at the Court and in it those who remained long enough to form an opinion have given expression thereto. In closing I append the following excerpts:

"A life-saving station"; Morris K. Jesup, president New York Chamber of Commerce. "Profoundly impressed with an institution in which there is the highest promise"; Bishop Henry C. Potter. "It does one good to appreciate how great an advance has been made as is evidenced by such courts"; Seth Low, ex-Mayor of New York. "The spirit of Christianity practically expressed"; Rev. Wm. C. Bittings. "A most pathetic and interesting scene"; R. Fulton Cutting. "A superb illustration of sanctified common sense and of applied religion"; Rev. R. S. MacArthur. "The Court is doing most excellent work"; George L. Rives, ex-Corporation Counsel. "A practical application of justice and Christian charity"; Dr. Norman Fox, ex-Mayor of Morristown. "Impressed by the hopefulness of the Children's Court"; Adolf Hartmann, Berlin. "The best work is always the preventative work"; Rev. W. Merle Smith. "One of the best of the city's methods of improving the conditions of the future citizens of New York"; Chas. R. Lamb. "A long step in advance in social progress"; Rev. Gaylord S. White. "This Court should be better understood"; Wm. T. Woods. "The work this Court is doing in sustaining the discipline of the Department of Education is invaluable"; Frank H. Partridge. Hon. Jacob H. Schiff, Rev. Rufus P. Johnston, Rev. E. S. Holloway and several other well-known citizens have

visited the Court since the book was opened, but unfortunately their entries are so mixed with personal compliment as to make reproduction here inappropriate.

Arguments on behalf of the Court from those officially interested in its success are not needed when its ordinary sessions call forth such commendations from representative men.

What Buzz-Saw Morgan Thinks

BY W. S. MORGAN

MUCH of our modern civilization is nothing more than refined savagery.

The yellow metal kills more people than the yellow fever.

Harmony is simply stopping the wheels of progress to get rid of the noise.

Saying that a thing is settled does not settle it.

All old party roads lead workingmen to roam.

Shall our financial system be American or British?

Don't surrender until you see the size of the enemy—and then don't surrender.

A man must open his eyes in order to see even as bright an object as the sun.

Corruption in the best form of government makes it the worst of all.

The trusts owe their existence to yellow-dog politics.

With the control of the currency turned over to the bankers, it will be in order to allow the hawks to feed the chickens.

The independent vote is a nightmare to the yellow-dog politician.

The Beef Trust is living in constant defiance of the law. It is a greater menace to the rights of the people than a thousand highwaymen.

Democratic statesmanship has gone to seed, and the seed has germinated into a howl.

Jefferson and Jackson placed the mark of Cain on bank money, and the bankers have never been able to remove it.

The men who talk the most about “sound money” and the “nation’s honor” are the greatest tax-dodgers.

Take the corporation lawyers out of the important offices in this country and about two-thirds of them would be vacant.

The banker has no more right to regulate the quantity of currency that shall be used by the people than he has to limit the number of cattle that shall be raised.

Enforced poverty is taking many a man out of the ranks of yellow-dog politics and making an independent voter out of him.

It always gives me a pain in the left hind foot to hear a man who wears a hoot-owl look on his face, a quid of tobacco in his mouth and a double-barrel patch on the bosom of his pants talk about “money that is good in Yurrop.”

About the only thing that Bryan can reorganize out of the Democratic Party is a bob-tail flush, and that is just what the Republicans want him to do.

A stand-patter is a fellow who is too lazy to move, or who has plenty of feed in his own trough and doesn’t care for anyone else.

The Beef Trust might possibly make good its plea of innocence, were it not for the fact that it has been “caught with the goods.”

The cotton growers who met in New Orleans in January decided that the Wall Street “bear” was worse than the Texas weevil.

Yellow-dog politics is the spirit that moves a man to ride to hell in a two-wheel cart drawn by the Democratic mule or Republican elephant, rather than to go to heaven by the independent route.

It is gratifying to know that a real effort is being made to “control” the railroads. The failure of such an effort is the best evidence that it can’t be done. Then will come public ownership.

The government has no more right to farm out to the bankers the privilege of issuing money than it has to grant to a few rich farmers the exclusive privilege of breeding short-horn cattle.

It is said that gold furnishes a stable currency, but history teaches that it is the most cowardly money ever used. In time of war, when it is needed most, it hides itself and paper money fights the battles.

The glory of war is a relic of barbarism. It differs only in form from the ghoulis dances of the aborigines, or the fiend-like performances of the Dervishes. "War is hell." Its spirit is of the devil. Nine-tenths of the wars could be avoided. They are caused by the selfishness of man.

In this day of progress and invention no man can define radicalism. That which appears radical today is conservative tomorrow. The leaven of a higher and better civilization is working in the hearts of the people, and the day of emancipation from false systems draws near.

In the past ten years in this country the railroads have killed and crippled more people than all the wars in which this government was ever engaged. Put that in your pipe and smoke it, and then howl against government ownership.

It is urged that the greenbacks should be retired, because they constitute an "endless chain" to deplete the gold reserve in the Treasury. It should be remembered that no one ever uses the "endless chain" but the bankers. The people don't want the gold; they would rather have the greenbacks, and they will take them without any gold behind them. The way to break the "endless chain" is to abolish the gold reserve.

Bryan seems bent on building up a straw party for the Republicans to knock down. In doing so he is playing into the hands of the Republicans, and he is using some good men for straw. He is doing just what the Republican bosses want him to do. Whether he has sense enough to see it, does not alter the situation. Every move he makes tends to divide the Democratic Party and help the Republicans.

The bold and brazen bag-barons of the Beef Trust will in all probability find some way to dodge the injunction issued against them. There is an old saying that runs something like "catch your cottontail before you cook it," or words to that effect. If there is no change in prices of cattle and beef, you may rest assured that the beef barons are still robbing the people at both ends of the line.

For thirty years I have heard this talk of the better class of men in the Democratic Party getting control of it and bringing it back to its old-time moorings, but the party is in a much worse condition today than it ever has been before. That there are good men in it, no one will attempt to deny. The rank and file of the party are honest and sincere, but the party is controlled by the most unscrupulous set of buccaneers that ever existed, and, under the system of primaries and conventions, the people have no more show to win against the professional politicians than a goose would have in a running match with a red fox. The party is not only divided and demoralized, but it is disgraced in the eyes of the people. The attempt of the party in the recent campaign to ape the methods of the Republican Party as practiced by Mr. Hanna in 1896 and 1900, and its bid for Wall Street support, were despicable beyond description. A party that has for years laid claim to being a reform party, that will stoop to such contemptible methods, deserves not only the distrust of the people, but their everlasting condemnation.

The Heritage of Maxwell Fair

BY VINCENT HARPER

SYNOPSIS OF PREVIOUS CHAPTERS

Maxwell Fair, an Englishman who has amassed a colossal fortune on 'Change, inherits from his ancestors a remarkable tendency to devote his life to some object, generally a worthy, if peculiar one, which is extravagantly chivalrous, even morbid. The story opens with Fair and Mrs. Fair standing over the body of a man who has just been shot in their house—a foreigner, who had claimed to be an old friend of Mrs. Fair. Fair sends her to her room, saying: "Leave everything to me." He hides the body in a chest, and decides to close the house "for a trip on the Continent." Fair tells the governess, Kate Mettleby, that he loves her, that there is no dishonor in his love, in spite of Mrs. Fair's existence, and that, until an hour ago, he thought he could marry her—could "break the self-imposed conditions of his weird life-purpose." They are interrupted before Kate, who really loves him, is made to understand. While the Fairs are entertaining a few old friends at dinner, Kate, not knowing that it contains Mrs. Fair's blood-stained dress, is about to hide a parcel in the chest when she is startled by a sound.

CHAPTER V (*Continued*)

“H SS—hss,” once more came the noise, and this time she realized that it proceeded from the doorway. With a frightened look she saw a man peering and smiling at her between the portières.

“Why, who are you?” she asked, involuntarily retreating toward the bell.

“Sh-h. They are at dinner—a very good dinner, from the smell, too,” answered the stranger, entering the room with an air of such thorough good-nature and easy friendliness that Miss Mettleby gained courage. He was a little, wiry, dapper, insinuating fellow whose cockney smartness of attire and knowing, “between ourselves” manner suggested almost anything, from an upper groom or a veterinary’s assistant to a rising young follower of the turf or a successful burglar with aristocratic connections.

“I will ring,” said Miss Mettleby, puzzled whether to scream or laugh.

“Oh, I wouldn’t do that, you know,” suggested the visitor pleasantly, more like one throwing out a friendly suggestion than a burglar intimidating a very frightened young governess. “You see, miss, I have business with Mr. Fair—rather nasty business, too, and I never broach a disagreeable subject until after dinner, do you?”

“But what do you mean by prowling about people’s houses?” asked Kate, with a dignity born of growing assurance that the man did not contemplate her immediate murder.

“Oh, I say, let up, miss, you know,” deprecated the invader ruefully. “You see, when you have passed a few hours back of pianos and under beds and in wardrobes you grow attached to a house, don’t you, miss? I’m that attached to this house that you’d be surprised if I was to tell you how much. You’ll be the governess now, I dare say?”

“Yes, but on my word, you are the coolest thief—” replied Kate, and the cool one broke in:

“Oh, oh, pretty young lady, recall that there wile insinuation, you know.”

“Well, since you are so cool about it and come here where you are sure to be seen, I’ll believe you,” answered Miss Mettleby. “But what do you want? Really, this is refreshing.”

“Ain’t it just, miss?” acquiesced the cool one, sitting down. “Askin’ your pardon, I’ll smoke. Now, miss, that we’re so cozy like, I’ll ask you a few questions. A dark foreign gentlemen called here about an hour ago.”

“Perhaps he did—what of it?” asked Kate, with a very feeble effort to cover the alarm which his words created.

“You saw him?” went on the stranger, with an exasperating coolness.

“If I did, I don’t see what business that is of yours,” retorted Kate haughtily enough, but inwardly quaking. “Who are you, sir?”

“I am Ferret, miss,” he answered, rising and bowing; “Mr. Samuel Ferret, of the Scotland Yard private detective force—your servant.”

“Good gracious,” cried Miss Mettleby, springing up in spite of her effort to betray no feeling. “A detective? But why should you come here?”

Poor Kate’s alarm would have been considerably heightened had she only known that three or four other insinuating and evanescent gentlemen had been in and out of the premises for the past hour, and that still more of them were at that moment watching the house, front and rear.

“Well, you see, miss,” replied Ferret, trying by his manner to reassure the young woman, “I’ve been taking an interest in my foreign friend for a week. He came here today. I haven’t seen him go away again? Have you?”

“No,” answered Kate, with an indifference which she did not feel; “but he must have gone, of course. There is no such person about the premises. I must ring and advise Mr. Fair.”

“Now, really, you know,” exclaimed Ferret, jumping up to intercept her; “I wouldn’t do that, would you? When a gent goes into a house and don’t come out again, it is just possible to imagine that he is somewhere near that house, not to say in that house. You follow me, I hope? Well, my dear foreign friend came into this here very elegant mansion and he didn’t go out of it again, so by a stretch of fancy I think he may be in London yet, and in that part of London which is up in your attic. Now, don’t jump. If you make a row, you’ll frighten the great folks at dinner—such a deucedly good dinner, too—and besides give my foreign friend advance knowledge of my little surprise party—I just love surprises, don’t you? And then there foreign gents can get out through a smaller hole than a self-respecting Englishman, let me tell you.”

“But who is the man?” asked Kate, forgetting her alarm as Ferret, with the oddest winks and gestures with his long thumbs, delivered his speech. “And what is he doing here? And what do you propose to do about it?”

“Me? What do I propose to do about it?” inquired Ferret as if the thought that he would be expected to do something about it had just struck him. “Well, first of all, I propose to ask you to be a nice young lady and help me a bit. You see, miss, my friend don’t mean any great kindness to Mr. and Mrs. Fair. Not a bit of it—that ain’t like my friend. In fact, there’s going to be a row—now, now, don’t jump, you know—I was saying that there is going to be a row, unless you and I prevent it, you know.”

“Then I insist upon telling Mr. Fair at once—this is awful,” cried Kate, beginning again to believe that the alleged detective was simply a clever sneak-thief who was playing upon her ignorance.

“Hawful is it?” smiled Ferret, warning her to remain seated with a hand lifted eloquently; “but it won’t be hawful, but just a pleasant little picnic if you will do just what I tell you. Come now, don’t be a fool, miss, but a dear, good, cool-headed young lady. Will you help me?”

“Yes,” replied Miss Mettleby; “of course I will do anything to help Mr. Fair—I mean, Mrs. Fair.”

“Of course you will,” said Ferret encouragingly. “I knew you was a Christian the minute I see you, miss. You stop in this room until I come back. I am going out to telephone, you see.”

“Oh, we have a telephone in the house, you know,” eagerly remarked Kate, not liking the idea of being kept a prisoner in the library while this man roamed about the house at his leisure.

“Yes,” jeered Ferret; “and it would be a fine thing, wouldn’t it, for me to yell through your telephone downstairs that I wanted the Yard to send me six constables at once to nab a foreign gentleman—with the foreign gent himself lying under the very mat on which I was standing. Innocent! No. I must go out to telephone—and if you sort of want to see me safe out of the house, why, come down to the door with me—yes, that’s it. I want you to sit in the little room by the street door, and when my friend goes out the door follow him—follow him, miss, you understand. He will go across the street, down the next street to the square, turn to the left, and call a cab at the corner. You call the next cab and direct the driver to follow the first one. Watch him, follow him, don’t lose sight of him.”

“But he wouldn’t be such a fool as to go out by the front door,” replied Kate, thoroughly puzzled by Ferret’s mysterious instructions, which she, of course, did not understand were merely attempts on his part to get her out of his way and fixed permanently in some known room.

“Never fear,” answered Ferret; “that’s just what he will do. He’ll go out of the front door as if he owned the house. In all likelihood I’ll be over the way when he and you come out, and then of course I’ll follow him myself, but if I ain’t there, you must do as I say. Follow him no matter wherever he goes—and then come to Scotland Yard and report.”

“I don’t know about all this,” stoutly returned Kate, shaking her head. “Why can’t Mr. Fair be advised at once? This is all wrong—and strange.”

“But you see, miss,” quickly protested Ferret, “Mr. Fair has private reasons for not wishing us to trouble the foreign gent, so he wouldn’t help us to nab him. Funny, isn’t it? But it often happens that we poor detectives has to catch all sorts of gents in spite of the very parties on whose accounts we wants ’em. The aristocracy has objections against appearing in court even against their own murderers. Now Mr. Fair does not know this gent’s little game and so he trusts him. We’ve got to do all this business ourselves—and, I tell you, it’s life and death. So, is it a go? Will you be a sensible young woman and not make a row, and help me?”

“I will,” answered Kate, convinced by the fellow’s irresistibly frank air—and moved by the comforting thought that her consent to his plan would at least get him out of the house—when she would of course advise Mr. Fair of the whole matter, even if it did spoil a good dinner.

“That’s a real lady for you,” gallantly remarked Ferret. “Now I’m off. Come downstairs if you want to see me out of the house—you suspicious young thing. No? All right. Thanks, but you really must sit in that little room, you know, for he may be leaving the house at any minute.”

“I’ll get my hat first,” replied Kate, “so that I can be ready to follow him if he goes out.”

Ferret slid noiselessly out of the library with a warning finger at his lips, and Kate congratulated herself upon having so cleverly deceived him. She would hide the parcel containing the surprise and then send word to the dining-room that she must see Mr. Fair at once.

She sat for a moment trying to think out the impressions which had been pouring in upon her in this hour of cataclysm and departure. What had brought the foreign gentleman to the house? What had he done to make him the subject of police suspicion? And why should Mr. Fair wish to protect him from the law? And—oh, how the thought came crushing back into her heart after being dislodged by the detective's sudden appearance—of what crime had Mr. Fair spoken? The temporary calmness that the diversion had purchased for her gave way now to all the torment that had preceded it. Springing up to carry out her resolution—action being at all events less dreadful than idle horror—she took the parcel from the table, and going hurriedly across the room, lifted the lid of the old carved chest. She dropped the parcel into it—and fell.

Allyne had just elicited a laugh by one of his characterizations of a certain great personage, when the party at dinner heard a shriek that brought them all to their feet. Mr. and Mrs. Fair dashed upstairs with who can say what horror of expectancy in their minds. They found the governess lying beside the chest in the library. Fair acted promptly.

He heard the others running up the stairs, so as he raised Kate from the floor he said to Mrs. Fair; "Sit on the chest, Janet—never mind why—and do not rise from it until I get them all out of here. It is only Miss Mettleby, the governess—she has fainted," he added as Mrs. March and Allyne entered followed by Travers.

"Oh, my dear Mrs. Fair, how pale you look—what has really happened?" asked Mrs. March anxiously.

"Miss Mettleby has had a bad turn—that's all. Pray, all of you go," replied Fair, for Mrs. Fair, with a white face and vacant look, sat as if unconscious of what passed.

"Allyne, take Mrs. March down, won't you?" asked Travers, to relieve the situation, and then, after Allyne and Mrs. March were gone: "Is there nothing that I can do, Fair? My God, man, what does it all mean?"

"Thanks, old chap," answered Fair as he laid Miss Mettleby upon the leather lounge; "nothing. Go down now, or Lady Poynter will fear there is something serious the matter. Janet, my love, let Travers see you down."

Mrs. Fair suffered Travers to lead her away, walking in a trance.

“Kate—Kate,” said Fair, bending over the governess and chafing her hands which now began to twitch convulsively.

“Has he gone?” asked Kate, opening her eyes and staring nervously around the room.

“There is nobody here, Miss Mettleby,” quietly answered Fair, helping her to her feet. “Are you better?”

“I must have fainted—how stupid of me,” replied Miss Mettleby, getting herself together and shuddering as the reality came back upon her. “It is nothing, Mr. Fair. Now please go back to your dinner—oh, how foolish and annoying of me to disturb you all in this way! I will get my hat and take the air for a few minutes. Come.”

They walked slowly out of the library, and in the passage Kate insisted on his returning to the dining-room while she ran up to her own room.

Fair went down accordingly, tortured with the fear that she had opened the chest. Miss Mettleby, hastily preparing for the street, slipped out of the house and fled along to the corner, where she took a cab and was driven off at a mad pace.

CHAPTER VI

About nine o'clock that evening Mr. Inspector Sharpe sat in his little office, running his eye over the records of a day's departures from the steep and thorny path on the part of the very mixed and sorely tried people of London. At that hour he was on duty also on emergency cases that might be reported at the ever-expectant Yard. So he glanced at his reports casually, as one does who looks to be interrupted at any moment. The bells in the steeples were chiming nine when a constable entered, conducting a very agitated young woman who showed not only the usual nervousness of the layman in police offices, but also a great deal of not very clearly defined personal anxiety.

“Well? Well?” asked the Inspector, without looking up from his reports.

“I beg your pardon—but is this—?” asked a timid voice in return.

“Ah, a lady,” exclaimed the Inspector on seeing her. “Beg pardon, ma’am. Have a seat, ma’am. And now what can I do for you?”

“Is this where they report things?” asked the girl apologetically.

“Bless us all,” cried out Sharpe, with a smile; “they report some things here, miss. Who are you, now?”

“Does it matter? Must I say who I am?” inquired the lady anxiously.

“Really, you know, I can’t say as to that, you know, miss,” replied the Inspector, with a merriment which he frowned at when the constable began to join in it. “If you have something to report, I must know who it is as reports it, wouldn’t you say? But there, now, miss, don’t you be afraid of nothing. Out with it. What seems to be a-troublin’ of such a quiet-looking young person as you, miss?”

“Well,” answered the girl, much encouraged by the humanity of the terrible officer whose uniform and surroundings appalled her at first, “I just wanted to report that he did go out and I followed him, but he walked so fast that I couldn’t keep up with him, and he disappeared around the corner, please, sir.”

“He did, eh?” laughed the Inspector. “You wouldn’t have no objection to mentionin’ the gent’s name, now, would you? Must have somebody’s name.”

“Why, you know who I mean,” answered the girl, with surprise, as it did not of course occur to her that a number of young women had been asked to follow strange gentlemen about the streets that very evening. “You know who it was—the foreign gentleman, you know.”

The Inspector burst into a hearty laugh at this, but said sharply to his subordinate: “Bellows, if you laugh again, I’ll report you. No, miss, I really can’t say as I do know just who you mean. You see, we has such a lot of foreign gents to look after one way or another, that we gets ’em sort o’ mixed like, sometimes, you know. Who was your particular foreign gent and why did he walk so fast and why was you so keen to catch ’im?”

“This is very strange,” replied the girl, beginning to think that, after all, she had been played upon by that horrid, suave thief. “Mr. Ferret told me to

come here and tell you all about it, you know. At Mr. Maxwell Fair's, you know—Carlton House Terrace—please say you understand.”

“Ah, I see,” exclaimed Sharpe, at once showing the keenest interest and bristling with alert readiness both to hear and to act. “It's Ferret, is it? Bellows, go and ask Ferret to come here.” The constable departed to do as he was bid in spite of a gesture of protest from Miss Mettleby and her statement that Mr. Ferret was not here but at Mr. Fair's house.

“Now, miss,” began the Inspector, when Bellows closed the door after him, “how do you come to be interested in this Spanish conspiracy? It was Señor Mendes that you followed, eh? Why? Speak out, now, plain and square. It's an ugly business for the likes of you to get mixed up in.”

Miss Mettleby heard all this with a rapidly deepening feeling of guilty complicity in some dark plot, and yet, beneath this sickening dread, she felt a vague hope that now she would glean some intelligent idea of the mystery into which she, Mr. Fair—all her world, had been so suddenly plunged by the hurrying events of the past two hours.

“Oh, you see, sir,” she began; “I assure you that I know absolutely nothing at all about what Mr. Ferret was about—nothing. I am the governess in Mr. Fair's family, that's all. And this evening when the family were at dinner Mr. Ferret came into the library—nearly frightening me to death—and told me that a foreign gentleman was in our house who intended some sort of mischief to my kind employer. So he asked me to watch the street door and to follow the man if he should go out before Mr. Ferret returned from telegraphing or something. And, of course, the whole thing is non——”

Her pitiful little plot to divert police suspicion from her knight until the horrible evidence of someone's guilt—not his, not his!—could be removed was nipped at this point by the entrance, to her unspeakable surprise, of Ferret himself, smiling and unruffled.

“Ferret, do you know this young lady?” asked the inspector perfunctorily.

“Yes, sir,” replied Ferret, with a salute—military to his chief and cavalier to the trembling Kate. “She's the governess, sir, at Mr. Maxwell

Fair's. How are you again, miss? You are here rather earlier than I looked for you. She's a regular corker, sir."

"Silence!" snapped the Inspector, to whom discipline was all. "This young person was telling me that she watched as you requested. Go on, miss."

"Well, Mr. Ferret had scarcely gone out when the foreign gentleman passed out of the street door and I immediately followed him," went on poor Kate, with oozing hope that her blundering lie would be believed, now that that gimlet-eyed Ferret was here to observe her. "The man crossed the square and walked quickly down the next street."

She stopped. Ferret seemed to be whistling in mild but growing unbelief—conduct which he suddenly abandoned on receiving a wireless message of caution from the Inspector. The nimble mind of Ferret caught his superior's point at once, so he fell in with his policy and said, as if to encourage Kate to proceed bravely with her transparent and useful lie: "Didn't I tell you he would do so?"

"Be quiet, Ferret!" cried Sharpe, fearing that Ferret would develop some new indiscretion. "Go on, miss, go on. You saw the gent turn the corner?"

"Yes," replied Kate, with fresh courage; "he turned the corner and I ran after him. There were many people in the narrow street into which he had turned, but I kept him in view and——"

"And you jumped into the next cab as quick as a flash—" put in Ferret, when he noticed that her powers of creation were ebbing, "and followed him until you saw him go into—go on, go on, miss—you're great, you are."

"Alas, no," sighed Kate, fearing to venture to be so specific as to locate the mysterious man in a definite house anywhere. "Alas, no. When I reached Pall Mall he had disappeared."

"Oh, dam—that is, you know, I beg pardon—what a pity you missed him," exclaimed Ferret, rapidly calculating what her game was.

"It is only just gone nine," remarked the Inspector sternly. "When was it that you were at Mr. Fair's house, Ferret? This is very strange."

It was Ferret's turn now to fear that the course of affairs reflected on his discretion, and, while he could hardly believe that the Inspector had failed

to perceive that the governess was fibbing, he could not risk being thought a bungler, for Sharpe was a man of few words, quick action, and little given to reopening cases once he had decided them.

“I am afraid the young lady has made a mistake,” Ferret continued carefully. “It was dark and she probably mistook somebody else for the foreign gent. You see, sir, I changed my mind and didn’t go to telephone, but stood immediately opposite Mr. Fair’s house until ten minutes ago, and the gent had not come out of the door—that I can swear to.”

Ferret hoped that this bit of information would so shake the girl’s confidence in her story that she would begin a new and contradictory one.

“But he *did* go out,” sobbed Kate, truly shaken, but with a woman’s determination to see a thing through; “I say he did go out. Oh, Mr. Inspector, tell me that you believe me! There is no foreign gentleman at Mr. Fair’s house—so it will be very foolish for you to send any of those awful detectives there. Do, *do* believe me! I tell you, sir, that there has been no foreign gentleman at our house, and anyway I saw him go out.”

“Ferret, come into my private office a minute,” said Sharpe, trying to retain his customary solemn and impressive expression. “Please wait here for us, miss. Nobody will come in to molest you.”

“My God, what have I done now?” cried Kate, when the two terrible men, with their cold, businesslike, lynx ways, had gone. “But he did not do it—he did NOT!” she moaned as she leaned her poor reeling head upon the edge of the Inspector’s desk.

They came back after a few minutes.

“We believe your story, miss,” began the Inspector kindly; “and Ferret will be severely reprimanded in the morning for having annoyed you by going into your house. Now tell me anything more that you may know about this silly rumor—but be careful what you say, for you may have to swear to the truth of it all in a court of law. I shall take down what you say. Come, now, what is your name?”

“Kate Mettleby,” she replied, with uneasiness as she thought of perjury; “but really, truly, honestly, there has been no murder at our house, so I don’t see why you should want me to——”

“Of course not, of course not,” interrupted the Inspector, with a cordiality and candor that brought her immense relief; “but, you see, the law compels us to look sharp into the ways of all foreigners. The law is that all foreigners are guilty until they can prove themselves innocent—which is very seldom possible.”

Ferret made a little movement as if he were going to protest against quite such a bald bit of cruel treatment of an innocent baby, but he remembered his duty and held his tongue.

“Oh, is that the law?” asked Kate, with wide eyes. “But surely there must be some foreigners who are as good as English people.”

“There may be,” admitted the Inspector sorrowfully; “but the law don’t believe it if it can help it. Now, Miss Mettleby, governesses and servants has opportunities. They sometimes hear and see a good deal that is said and done by the gentry. Mr. and Mrs. Fair never quarrel, I suppose, about a party by the name of Mendes, do they?”

The shrewd officer of the law regretted his words as soon as he had spoken them, for Kate sprang to her feet, burning with shame and indignation.

“You mistake, sir!” she cried fiercely. “I am not a servant, but the friend of Mrs. Maxwell Fair. And if I were a servant, do you suppose—I despise your insulting innuendo! And I tell you that Mr. Fair is utterly incapable of the crime which I can see that your bloodhound, Mr. Ferret there, thinks he has committed. I am going.”

“You are going in a moment—when I allow you to do so,” returned the Inspector, anxious to retrieve his mistake, but also desirous to let her understand that he had authority. “Now don’t be foolish, miss. You fly off into a rage quite unnecessarily, I assure you. Mr. Ferret neither makes nor implies any charge of any sort against Mr. Fair, you know. Now be calm and simply answer my questions—you will have to answer them here or in court, remember. You have heard Mr. and Mrs. Fair speak of one Don Pablo Mendes, I suppose?”

“Yes—many times, but always with kindness,” replied Kate stiffly.

“Good,” said Sharpe benignly. “Now we are getting on. And this Don Pablo Mendes has been at the house frequently, has he not?”

“Never, as far as I know, until today,” answered Kate, still far from mollified. “Mrs. Fair has been—but, no, I sha’n’t say that.”

“Oh, I say, don’t half say things in that way, you know,” exclaimed the Inspector, nettled. Then, coaxingly: “You see, miss, when a witness says half of a thing, the law compels us to piece it out as we think best. So out with it. Mrs. Fair has seen Mendes somewhere away from home—you were going to say?”

“Yes,” replied Kate, scarlet with shame at the man’s seeming implication, and not a little annoyed by his almost supernatural ability to piece out, as he put it, her half sentences; “but, sir, I’d have you understand that Mrs. Fair always consulted Mr. Fair before meeting Mr. Mendes—always.”

“No doubt,” answered Sharpe, with a look of lofty elevation above her implied rebuke. “Now, miss, don’t please see more than is in my words. And don’t be afraid either. Remember, it is this Spanish gent, Mendes, and not either your Mr. or Mrs. Fair, that we are looking for.”

“Thank God for that,” murmured Kate, beginning to break down visibly.

Sharpe, on a wink from Ferret, waited a few seconds while Ferret fetched a glass of water, which the wretched girl drank eagerly—with a poor little smile of thanks that made the susceptible Ferret wish Mendes had never been born. This diversion greatly cleared the atmosphere at once.

“Do you happen to know who Mendes is and why we want him?” asked the Inspector finally, with the air of a gossip rather than that of an inquisitor, which had the effect he desired, for Kate looked up fearlessly now.

“I have no idea,” she answered promptly, glad to be able again to tell the truth. Then, adding with the former tone of apology to truth: “All I ask is that you send nobody to our house—now that Mr. Mendes has gone away from it. You won’t, will you? Please, please, do not!”

“It would be nonsense to look for him when he’s gone, wouldn’t it?” laughed Sharpe. “And you know we never do nonsensical things when we know it. That will do, I think, miss. You may go, if you wish.”

“Thank you, sir,” gasped Kate, with alacrity. “And don’t you see that if Mendes has committed some great crime he would be very likely to commit

suicide? So I don't see why you should think that—now, don't laugh.”

Her last words were addressed to Ferret, who did not know that she had an eye on him. When she closed the door and they heard her pass into the outer passage, it was with anything but a smile that Ferret looked up at his chief and said: “Well, by all that's holy—did you ever?”

CHAPTER VII

Miss Mettleby took a cab and was soon stretched upon her bed more than ever torn and tortured by the perfect vortex of vague conjecture and too actual knowledge which now dragged her and the man she loved and her whole world down to some indefinite but certain ruin.

In the meantime Inspector Sharpe disposed of two cases that had just been brought in, and then sending for Ferret, the two penetrating, cool, keen-scented gentlemen sat on opposite sides of the little table in the Inspector's private office and discussed the rapidly developing situation.

“But what the devil does it all mean?” inquired Sharpe, showing by his graver and tenser expression that the case was passing from an ordinary piece of blackmail, involving a few unimportant foreigners, to a very genuine mystery of much more serious aspect, involving not an English gentleman merely, but the particular English gentleman who was at that moment in the eye of the public.

“Mean? Mean?” answered Ferret, leaning back with an air of immense professional eagerness. “Why, man, can't you see what it means? In the first place, something happened after I left the house that changed the dear little governess lady's mind. She was told to leave the house, to follow the Cuban, you see. Well, the Cuban didn't go out as the little one so prettily lied to you. I know this because I had five of our trustiest men watching every entrance to the house. So, for some reason the girl has joined Fair in his unaccountable effort to keep the rum chap out of our hands. There was a row of some sort just after I left the house, for Wilson, whom I let into the place, saw them all suddenly rush up from the dinner-table, but, as they came back presently, Wilson didn't go up to the library—especially as he saw pretty Kate slip out into the street. Getting thickish, eh? Well, sir, the shot that we heard about seven o'clock was fired in Fair's house, for I saw

his revolver lying on the library-table with one chamber empty. How's that for your little game?"

"This is getting interesting," muttered the Inspector.

"Isn't it just?" answered Ferret, sitting up triumphantly. "And what did I tell you? I knew there was a deal more than just an innocent bit of Mendes's regular little practice. The papers will be worth reading, sir, tomorrow or the day after. I wish this governess, though, was out of it."

"You have the house well watched?" asked the Inspector.

"Rather," answered Ferret, with one of his expressive winks. "Wilson and Banks and Thorpe and two others. They won't let very much get through their fingers. Another thing. The Fairs are closing the house tomorrow morning all of a sudden. All the servants have been notified. Fair himself will spend the day at Drayton Hall—you know, old Sir Nelson Poynter's place in Surrey—and the missis and the kids will go to Paris. I quietly read the two telegrams that Fair sent off to engage the rooms for them in Paris. Wilson will follow them, while Thorpe will run down to Drayton Hall tonight to see how things lie. Tomorrow after they have gone I shall give the house a thorough looking over, I can promise you. Sharpe, my lad, we've struck a gold mine!"

"But what do you make of it all?" asked Sharpe. "I confess that I'm in the dark. Have you got at the real situation?"

"Walls have ears—and even minor police officials have a liking for knowing what their superiors are at—so, your ear," replied Ferret, going to the Inspector's side and whispering to him.

"Lord! You don't mean that?" exclaimed Sharpe, jumping up.

"How's that for a bit of sensation for the newspapers? Maxwell Fair—Phew!"

"But how ever did you come to talk to the young lady at the house? Was that quite prudent, do you think? Isn't she a bit skittish?" asked the Inspector when he resumed his seat. "Poor little innocent!—what a fool she was to come here and tell us that he didn't do it, eh?"

"Oh, the governess—ain't she a circus?" laughed Ferret. "What a deep one to come and tell us not to send any horrid detectives! You see, she was

in the library when I went up there during their dinner to have a look round for the cause of the shooting, and, incidentally, for the Cuban, though I knew he must be higher up in the house somewhere—attic probably. I had to get the blooming girlie out of the library, so I opened up my little plan about having her watch for the Cuban, and she took to it like a trout after a fly. That was before whatever happened a little while afterward which opened her eyes and changed her bearings. When I went out of the house I let Wilson into it, to be ready to investigate the library when pretty Kate came down to watch the door—but the row that sent them all hurrying from the dinner-table altered that. I stood just over the way under a tree, when out comes my little lady, not following the Cuban, for he hadn't come out of the house, but all by her lone and all of a blue funk. She hops into a cab at the corner and I into the next one—and she got here half a minute ahead of me. Glory what luck we're playing to; why, it's better than——”

He was interrupted by the telephone bell. The Inspector answered it: “Well? Who? Yes. Yes. Ferret is here—with me in my office. What? No? Wait—Ferret will speak to you. Good. All right.”

Sharpe turned to Ferret: “Here, Ferret, it's Wilson—says something's up. Better get it yourself.”

Ferret grabbed the instrument eagerly. The case was developing a trifle too rapidly. What could Wilson, whom he had left under the stairs at Mr. Fair's, want so soon?

(To be continued.)

The Say of Reform Editors

WHEN the German Emperor rides on the railroads a detailed bill for every locomotive and every car used is sent him and he pays the bill.

In the United States when the President rides on the railroads no bill is sent him and no charge is made. In Germany the government owns the railroads and in this country they are private property.—*Nebraska Independent*.

GOVERNMENT ownership would adjust the matter of railroad rebates equitably. And it would do more. It would prevent the railroads extorting from the government untold thousands of money which they at present filch from the public treasury by excessive charge for hauling mail cars. This money would come mighty handy in extending the rural free mail delivery system. And it could be spent to good advantage in raising the salaries of the postal clerks who deserve so well at the hands of the people. Or it could be turned to account in lowering the price of letter postage. There's a thousand and one better ways to spend the people's money than handing it over to the corporations that are always soaking it to the government every time they get a chance.—*What's The Use?*

IF President Roosevelt sincerely and vigorously attempts to obtain any reform legislation during his administration, two-thirds of his support will come from the opposition. His own party, owned by and mortgaged to the few, is absolutely powerless to effect any good. There are a few prominent kittens in the party who simulate a little independent thinking, but when the mother cat gives them a collective swat in the face, they lie down and put their chins on their paws and mew in obedient accents that they are now good cats.—*Chadron (Neb.) Times*.

A CERTAIN Wall Street firm was engaged in doing business as curb brokers and “washing” a certain stock.

Do you know exactly what “washing” stock is? It is simply a fake auction on a big scale. It is the kind of thing that puts a little man in jail if he is caught doing it. It is the kind of thing that makes respectable fortunes for some of the big men.

This firm was engaged in “washing” a certain copper stock. An officer of the dignified National City Bank was interested in this stock. He had agreed to take a certain amount of it at a very low price, and he wanted to unload it on the public at a very much higher price.

The brokers proceeded to “wash” the stock accordingly.

Let us say that the stock was worth fifty cents per share. One broker bid fifty-five cents for a thousand shares, and they all pretended that it was a legitimate transaction—in reality it was a fake bid and a fake transaction.

The other broker engaged in the skin game would then bid sixty cents for another thousand shares—and so it would go.

Not one person engaged in the swindle was actually buying a single share of stock. They simply bid back and forth, pretending to buy it, and putting the price up day by day.

The crowd of poor fools that believe in the “honor” of these disreputable Wall Street gamblers looked on at this mock auction, this fake selling and buying of stocks, amazed and excited by the constantly increasing values.

Occasionally some gullible creature outside the combination that was doing the stock “washing” would come in and in good faith buy some shares, actually paying his good money for the worthless stuff.

This went on until they had forced the price of the stock up to a high figure, ten times what it was worth. During this “washing” operation, they had succeeded in working off a good deal of this stock on the public that believed the crooked sales were really genuine.—*New York Journal*.

THE Chicago Union Traction Street Railway Company has issued bonds and stocks to the amount of \$112,500,000, or at the rate of \$135,507 a mile. The capitalization of all the street railways in Massachusetts only amounts to \$110,000,000. In Massachusetts, stock watering is prohibited, and the average capitalization of trolley lines in that state is only \$390.67 per mile. The sort of work done in Chicago is theft, and the men who did it, although they occupy the chief seats in the churches, are thieves. There is not a preacher in the whole city that dare say so, and that makes them accomplices of the thieves.—*Nebraska Independent*.

THE Chicago *Record-Herald*, a Republican paper, refers to the fact that the Federal Grand Jury returned indictments against Senators Mitchell, Burton and Dietrich, and says: "In each of these deplorable instances the charges involve corruption and moral turpitude—a bitter reflection for a legislative body proud of its traditions and jealous of its prerogatives and reputation. The low tone of political morality receives a painful and striking illustration in these successive blows to senatorial prestige."

The *Record-Herald* adds: "The possibility of further disgrace and degradation would be greatly diminished by substituting for indirect elections the plan of popular election of Federal senators."

The *Record-Herald* might also have said that the fact that there are a number of prominent United States senators who have not yet been reached by indictment and will perhaps never be reached by indictment, who serve on the Senate floor as the representatives of special interests, provides another striking argument in favor of the popular election of senators.

The *Record-Herald* might also have said that the fact that New York, Minnesota and Nebraska have during the present year elected to the Senate men who were picked by the railroads provides another strong argument in favor of the popular election of senators.—*The Commoner*.

AN Eastern woman, who "wants to do something for the poor laboring man," threatens to start a school of physical culture for them in New York City.—*Rocky Mountain News*.

BEE stings cure rheumatism, but a more drastic treatment is necessary for the man troubled with politics.—*Eastern Sunday Call*.

THERE are persons who, with their backs to the future, see no objects but those that are past. Of history in the making they know nothing. Such are those public men, editors and statesmen who are now asserting that Jeffersonism has given way to Hamiltonism. The truth is that Jeffersonism has been giving way to Hamiltonism ever since Chief-Justice Marshall began on the judicial bench to retrieve for Hamiltonism the utter defeat it had suffered at the polls. Step by step the Hamiltonian principle was built up by judges until the Civil War, and by judges, Congresses and Presidents of all parties after that war. But the day of Hamiltonism is now passing. A new regime is setting in. The pendulum is poised for the swing back to Jeffersonism. Those who think they see Hamiltonism looming up ahead are really looking backward.—*Chicago Public*.

WE blame men for bribing legislators; yet sometimes they are in the position of the fellow who is “stood up” by a footpad, with the demand for his money or his life.—*San Francisco Star*.

THE pretentious Apes, in either finance, literature, religion or moral philosophy, are making faces at Thomas W. Lawson, of “Frenzied Finance” fame.

MAKING faces, through such mediums as *Collier's Weekly* and others of that ilk, is all they can do. The weekly tasks of a half-dozen of such writers, the rapidity and the versatility of Thomas W. Lawson shows that he could walk all over them in ten minutes. The exhibitions of these hirelings exemplifies the old story of the frog trying to swell himself up to the size of the ox.—*The Patriarch*.

THE Populist ideas are well to the front. It is difficult to pick up a magazine or newspaper of any kind now without finding favorable opinions of some Populist measure, particularly as to the reforms in voting and the

management of monopolies. The Populists never stood so high in the respect and admiration of the people. It is a time when state and local committees should be up and stirring. Whenever and wherever an improvement comes, the Populists will be the kernel of the problem. The Populists will be required to furnish the working plans and should be prepared to receive their friends.—*Joliet News*.

IT is a lamentable fact, but true nevertheless, that there is more absolute want and poverty in these United States than ever before.

Notwithstanding we have made so much cotton here in the South that we cannot sell it for enough to pay the cost of production, there are thousands in our Southland who are shivering with cold for want of needed clothing. Though our prairies have furnished trainloads of choicest cattle, our people are forced to go hungry or pay robber prices for meat. Our coal mines have yielded coal enough to warm every hut in all the land, yet thousands are freezing for want of fuel. Our charity associations are snowed under by the inordinate demands for help from the unemployed. Even in New York there are forty per cent. more idle men today than ever before.

We Southern people know but little of the effects of the concentration of wealth in the hands of a few men; of the grinding poverty which prevails in the congested centres of population; of the lavish extravagance of the pampered spawn of plutocracy and its parasites. It will come to us later unless we set to work measures to check it at once.—*Southern Mercury*.

WHILE the bacillus of populism is still at work in the Democratic Party, it has also attached the railroad arm of the Republican machine.—*Our Standard*.

OUR readers will remember the article we printed a short time ago by Mr. Eltwed Pomeroy, showing how the voters of one ward of the city of Los Angeles, Cal., “recalled” an alderman charged with corruption. That was the first time in the United States the Recall has been used. About six weeks ago San Diego voted to amend its constitution by adopting the

Initiative, Referendum and the Recall, and the Legislature has just ratified this. We understand that Pasadena has also just adopted the Recall, though it has had the Initiative and Referendum for about a year. Thus government by the people extends itself. The evils of democracy can best be cured by more democracy.—*Independent (N. Y.)*.

REPORTS of suffering from poverty in London are harrowing. At a relief meeting on the 31st it was reported that 200,000 people in that city alone are living on the verge of starvation. In the midst of all this suffering there is something shocking, in spite of the evident good intentions of those in attendance, about the self-satisfaction of the luxurious persons constituting the relief meeting at which this report was made. The meeting was held in the house of a duke, whose great income flows unearned into his private coffers from the common inheritance of all Londoners. A duchess, whose family lives in luxury on incomes also wrung unearned from people who work, occupied the chair. Among those participating were other titled personages whose luxurious incomes are enjoyed at the expense of their starving fellows whose sufferings they had assembled to relieve. But all they proposed to do was to spend pennies here and there for sweet charity. Sweet charity! Yes, sweet; so sweet to those who dole it out, and so bitter to those who must humbly take it or starve. Not one word escaped the lips of any of this charitable assemblage in recognition of the element of justice. To know that 200,000 fellow men and women were on the verge of starvation excited their human sympathies; but that the starving horde were starving because privileged drones and titled parasites revel in unearned incomes, clearly manifest as is the relation here of cause and effect, did not concern the relief meeting. It was something like this that Tolstoy had in mind when with characteristic simplicity and directness he said: "The rich are willing to do anything for the poor people but get off their backs."—*Chicago Public*.

THE Democratic mule is dead.

The last echo of his heroic brays has died away.

His tail lies limp on the bare ground, like the banner of a defeated army.

His ears lop together and lie stiff and lifeless, like fallen flagstaffs from the conquered walls of a dismantled fortress.

There is no breath to moisten the lips that gave forth such pleasant music.

Around him stand the doctors.

The autopsy begins.

Dr. Bryan gently, almost lovingly, lifts the tail of the corpse and examines it carefully.

“It was Spinal Belmontitis,” he says. “That’s what killed him.”

Dr. Gumshoe Stone is down on the ground examining the ears.

“I think it was Parkeritis.”

“It might be a complication of both,” answered Dr. Bryan.

Dr. Tillman gritted his teeth and spit like a cat.

“I know a name for it,” he hissed, “but I have no language to express it.”

“I pronounce it damphoolishness,” answered Dr. Hogg, of Texas.

“That’s a slow disease,” chimed in Dr. Daniel.

“He’s had it a long time,” said Dr. Hearst.

“But it never affected his voice,” suggested Dr. Williams.

Dr. Bryan blushed and dropped the mule’s tail.

“Let’s try a reorganization battery on him,” he said.

“He’s been organized and reorganized too often now,” grunted Hogg.

“Let’s prop him up anyhow; maybe we can ride him again,” insisted Dr. Bryan.

“Let’s rest,” the others said, and they all sat down.—*Morgan’s Buzz-Saw.*

Influence of Letters

J OHNSON—What do you think of those correspondence schools?

BRONSON—I guess love is about the only thing in this world you can learn by correspondence.

A Bad Break

S UITOR—I'd marry your daughter if she didn't have a single dollar.

ROCKSEY—Then you're a bigger fool even than I thought you were. Get out of my house at once.

News Record

FROM FEBRUARY 7 TO MARCH 7, 1905

Government and Politics

February 7.—The Navy Department awards contracts for armor plate to two companies belonging to the Steel Trust, notwithstanding the fact that the Midvale Steel Co., which is outside the Trust, underbid the other two companies \$56 per ton, or over \$75,000 in the aggregate. Secretary of the Navy Paul Morton says the award was made because he feared the Midvale Steel Co. could not furnish the plates on time.

February 8.—The charge is made in the Wyoming Legislature that United States Senator Francis E. Warren has three persons on the payroll who are never in Washington and that the salaries are turned over to Warren. A resolution to investigate the charge is tabled.

The National Red Cross Society is reorganized with Honorable William H. Taft, Secretary of War, at its head.

Honorable Judson Harmon, of Cincinnati, and F. M. Judson, of St. Louis, are appointed special attorneys to investigate the granting of rebates by the Santa Fé Railroad.

Representative Comerford is expelled from the Illinois Legislature for making charges of graft against the members.

February 9.—The President signs the bill providing for the building of railroads in the Philippines.

February 10.—The United States takes over the custom house collections at Monte Cristi, Santo Domingo.

February 11.—It is announced at the White House that all the members of the Cabinet will be reappointed except Postmaster-General Wynne, who will be made Consul-General at London. George B. Cortelyou,

Chairman of the Republican National Committee, will be the new Postmaster-General.

February 13.—Secretary of State Hay announces that the arbitration treaties, because of Senate amendments, will not be presented to the governments with which they were originally negotiated.

President Roosevelt, speaking at a Lincoln Day banquet in New York, defines his position on the race question.

February 15.—The President sends the Santo Domingo treaty to the Senate, with a letter upholding the Monroe Doctrine, but insisting that the smaller American republics must pay their debts.

February 16.—President Roosevelt orders a thorough investigation of the Standard Oil Trust in accordance with the House resolution.

Secretary of the Interior Hitchcock calls the lease of the oil lands of the Osage Indians to the Standard Oil interests “a public scandal.” This lease was made during President Cleveland’s second term.

February 17.—Six supporters of J. Edward Addicks desert him in the Delaware Senatorial fight.

Government agents start to Kansas to conduct the inquiry into the Standard Oil Co.

The West Virginia State Senate appoints a committee to investigate the charges that the Governor of the State has been in collusion with Standard Oil agents.

February 18.—Isthmian Canal Commissioners assert that they are authorized by the President to retain fees received as directors of the Panama Railway.

President Roosevelt receives a portrait of the Empress Dowager of China, sent as an evidence of China’s good will to the United States.

February 20.—Ex-Chief-Justice Alton B. Parker appears before the New York Court of Appeals to argue a case in favor of the New York City Interborough Railway Company, whose chief owner is August Belmont.

The United States Supreme Court sustains the Kansas Anti-Trust law, affirming sentence of fine and imprisonment against Edmund J. Smiley, an agent of the Missouri Pacific Railway Company.

A special committee of the California Legislature recommends the expulsion of five State Senators on the charge of soliciting and accepting bribes.

The Kansas Legislature, by concurrent resolution, asks the annulment of the Government's blanket lease of Osage lands to the Standard Oil Company.

February 21.—The Government begins criminal prosecution of the Beef Trust before a Grand Jury at Chicago called especially for that purpose.

Despite the protests against it, Secretary Hitchcock decides to extend the leases of the Osage Indian oil lands.

The Illinois Legislature orders an investigation of the oil pipe lines of the State, and offers to loan the State of Kansas \$100,000 to aid in the fight against the Standard Oil monopoly.

While J. Edward Addicks has lost all but about fifteen of his supporters in the Delaware Legislature, these decide to make the deadlock permanent and thus prevent the election of a United States Senator at this session.

President Truesdale, of the Lackawanna Railroad, criticizes President Roosevelt's attitude on rate legislation.

At a dinner of the National Roosevelt League given in New York a criticism of the President's message of condolence on the death of the Grand Duke Sergius was loudly cheered.

February 23.—The Interstate Commerce Commission hands down a decision that the Santa Fé and Southern Pacific railroads have violated the law by entering into a pool.

February 24.—The Department of Justice begins an investigation of the Tobacco Trust.

The Board of Trade of New York City decides to begin a campaign to force an investigation of the Telephone Trust.

Governor Edwin Warfield, of Maryland, in a speech in New York warmly commends President Roosevelt's policy on the negro question.

February 25.—The Isthmian Canal Commission reports in favor of the Panama Canal being constructed at sea level with two or three sets of locks.

Despite the higher offer made by Kansas citizens, President Roosevelt decides that the lease of Osage oil lands to the Standard Oil interests must stand.

The Democrats of Chicago nominate Judge Edward F. Dunn for Mayor on a municipal ownership platform.

Secretary of the Treasury Leslie M. Shaw defends the action of his predecessor, Lyman J. Gage, in selling the New York Custom House to the City Bank.

Joseph V. Quarles, of Wisconsin, whose term as United States Senator ends March 4, is appointed United States District Judge. The La Follette men bitterly oppose the appointment.

February 27.—Four members of the California State Senate are expelled from that body for accepting bribes.

The United States Supreme Court sustains the Texas Anti-Trust Act under which two oil companies were forced to give up their licenses as a penalty for pooling.

February 28.—Word is received at Washington that Colombia will resume diplomatic relations with the United States.

March 1.—Secretary of State Hay, in a letter to the Haytian minister, says that the United States has no intention to annex Santo Domingo and "would not take it as a gift."

In the contest for the Governorship of Colorado, thirteen Republican members of the committee appointed to conduct the contest report in favor of seating ex-Governor James H. Peabody, nine

Democratic members sign a report favorable to Governor Alva Adams and five Republican members refuse to sign either report.

March 3.—Commissioner of Corporations James R. Garfield reports on the Beef Trust, his findings generally favoring the packers.

Former Land Commissioner Binger Hermann, of Oregon, is indicted in Washington for destroying public records.

March 4.—Theodore Roosevelt is sworn in as President of the United States in the presence of the largest assemblage and the most elaborate military display ever seen at an inauguration.

The Doings of Congress.

February 7.—The Senate passes the Statehood bill, but amends it to admit New Mexico as one State, leaving Arizona as a Territory. Oklahoma and Indian Territory constitute one State, as in the House bill.

February 8.—The electoral vote is canvassed by a joint session of the House and Senate, and the result is declared as 336 for Roosevelt and Fairbanks, to 140 for Parker and Davis.

The Senate Committee on Foreign Affairs disregards the wishes of the President and amends the arbitration treaties by striking out in each the word “agreement” and substituting therefor the word “treaty.”

C. W. Post, of the Postal Progress League, asks the Senate to expel Thomas C. Platt, of New York, on the ground that Platt is the President of the United States Express Co., and is not a fair representative of the people on any question involving the interests of that corporation.

February 9.—The Townsend-Esch bill, giving the Interstate Commerce Commission power to fix railroad rates, passes the House by a vote of 326 to 17.

February 10.—The Senate begins the impeachment trial of Judge Charles Swayne, of Florida.

The House Republicans decide to stand by their own Statehood bill, refusing to concur in the Senate amendments.

February 11.—The Senate, by an overwhelming vote, amends the arbitration treaties, thus virtually breaking with the President. It insists that all treaties must be ratified by the Senate.

Testimony was introduced in the Swayne impeachment trial to show that the defendant had falsely certified his expenses.

February 13.—Representative John A. Sullivan, of Massachusetts, makes a sensational attack on Representative William R. Hearst, of New York, and Mr. Hearst in reply shows that Sullivan was once indicted for murder in Massachusetts.

Senator Bacon, of Georgia, introduces a resolution calling for the facts relative to the United States seizing custom houses in Santo Domingo.

February 14.—Senators Lodge and Spooner defend the action of the Senate in amending the arbitration treaties.

Representative Littlefield, of Maine, warns Congress that it is riding for an \$80,000,000 deficit.

The Senate passes the Agricultural Appropriation bill, but amends it by prohibiting drawbacks on wheat imported to make flour for export.

February 15.—The House, by unanimous vote, adopts a resolution introduced by Representative Campbell, of Kansas, which directs the Department of Commerce and Labor to investigate the Standard Oil Trust.

February 16.—The House declares the Senate's amendment of the Agricultural Appropriation bill a violation of the Constitution.

The House passes the bill for the government of the Panama Canal zone.

February 17.—The House Committee investigating the Panama Railway hears testimony to the effect that the commissioners pocket the fees

paid them as directors. The Senate withdraws its amendment to the Agricultural Appropriation bill.

February 20.—By the aid of 46 Democratic votes the Naval Appropriation bill, providing for two new battleships, passes the House.

Representative Baker, of New York, denounces President Roosevelt for having sent a message of condolence on the death of the Grand Duke Sergius.

Representative William R. Hearst introduces a bill to make oil pipe lines common carriers, thus taking them out of the exclusive control of the Standard Oil Company.

Friends of the freight-rate bill announce that they have abandoned hope of its becoming a law at this session.

February 21.—A letter is made public from former Senator William E. Chandler, of New Hampshire, to Senator Elkins, Chairman of the Senate Committee on Interstate Commerce, urging the passage of the rate bill and predicting that, if this is not done, government ownership of railroads will result.

The Senate Committee on Naval Affairs decides to report favorably the House bill providing for two additional battleships.

Senator T. M. Patterson, of Colorado, says that if the government does not control the railways the people will demand absolute government ownership.

February 23.—The House Indian Committee decides to investigate the Osage oil land lease.

Senator Chauncey M. Depew declares in favor of government regulation of railroad rates.

Stuyvesant Fish, President of the Illinois Central Railroad, tells the Senate Committee on Interstate Commerce that President Roosevelt, in a private conference, urged reduction of freight rates as long ago as 1902.

The House and Senate conferees on the Army Appropriation bill decide to give General Miles retired pay instead of full pay, as at

present.

The Senate passes the Panama Canal bill with the clause destroying the Panama Canal Commission stricken out. Representative Bishop, of Michigan, attacks the River and Harbor bill and accuses fellow-members of being under the influence of the Great Lakes dredge owners.

February 24.—The item of \$130,600 for the rent of the old New York Custom House from the City Bank (Standard Oil) is stricken from the Civil Appropriation bill by the Committee of the Whole House. Mr. Sulzer (Dem.) leads in the attack on this item, and the vote striking it out is 90 to 77.

Representative Vandiver, of Missouri, attacks the Armor Plate Trust and asks the Attorney-General why it has not been prosecuted.

Senator Morgan, of Alabama, starts a filibuster against the Statehood bill.

February 25.—Senator Hale, of Maine, makes sarcastic references to the Administration policy of “browbeating smaller Powers.”

Arguments are concluded in the impeachment case of Judge Charles Swayne.

Senator Morgan, of Alabama, lodges with the Senate Foreign Affairs Committee a formal protest against the action of President Roosevelt relating to Santo Domingo.

February 27.—Senator Dryden, of New Jersey, at the supposed request of the President, introduces a bill establishing Federal supervision of insurance.

Democratic leaders bitterly attack the President’s foreign policy in both the House and Senate.

The Senate votes in favor of the House appropriation for two additional battleships.

The Democrats of the House prevent the reinstatement of the appropriation for rent to the City Bank of New York, enough Republicans joining them to reverse the ruling of the Chair.

The Senate, sitting as an Impeachment Court, declares Judge Charles Swayne, of Florida, innocent of all the charges against him.

The House Committee on Interstate and Foreign Commerce resumes its investigation of the Panama Canal and Railroad, and brings out testimony to the effect that supplies were bought without bids, and that the President's instructions were not always heeded.

The Naval Appropriation bill, as amended by the Senate, directs the Secretary of the Navy to investigate the cost of armor plate and report to the next Congress.

February 28.—The Senate votes an amendment to the Indian Appropriation bill providing that a portion of the educational fund may go to sectarian schools.

Senator Kearns, of Utah, in his farewell speech, makes a sensational attack on the Mormon Church, which he says is ruled by a "monarchy."

March 1.—The day is spent on the appropriation bills, a large number of which are agreed to in conference, and pass both houses. The Senate does not attempt to reinstate the item for the rent of the New York Custom House from the Rockefeller bank. An objection by Representative Baker, of New York, prevents the President's salary from being raised to \$75,000. The House votes itself \$190,000 for mileage for the "constructive recess."

March 2.—Both houses spend the day on the appropriation bills. The Senate adopts the Kean resolution for a railroad rate inquiry during the recess.

The Senate kills the \$190,000 mileage grab of the House.

March 3.—The Fifty-eighth Congress practically completes its work, both houses agreeing on all appropriation bills. Freight-rate legislation and the Statehood bill go over to the next Congress.

March 4.—The Fifty-eighth Congress ends and the new Senate convenes in special session.

General Home News

February 7.—August W. Machen and the Groff brothers, the Post-Office Department officials convicted in the postal fraud cases, and whose sentence has just been confirmed by the United States Supreme Court, are taken to prison.

It is announced that an international parcels post is to be established between Great Britain, France and the United States.

The Standard Oil interests are reported to have made a \$20,000,000 purchase of stock, thus securing control of the Santa Fé Railroad system.

The Interstate Commerce Commission hears the charges brought against the Coal Trust by the Honorable William R. Hearst.

The Board of Aldermen of New York City takes steps for the construction of a municipal electric-lighting plant.

The State of Kansas continues its war on the Standard Oil Trust, the State Senate passing three bills providing for the erection of a State oil refinery, for making pipe lines common carriers, and for fixing freight rates in oil.

February 8.—Henry C. Frick, of the Steel Trust, and Henry H. Rogers, of the Standard Oil Company, are elected directors of the Santa Fé Railroad.

Elihu Root, former Secretary of War, leads an attack on the constitutionality of the New York State Barge Canal, which is opposed by the railroads, and which was supported by such an overwhelming majority in last fall's election.

February 10.—In the hearing of the Hearst case against the Coal Trust, the attorney of the Trust says in effect that the United States has no power over the corporation.

February 13.—The Federal Grand Jury returns new indictments against Senator Mitchell and Representatives Hermann and Williamson, of Oregon, in the public land fraud cases.

February 14.—A sensational war in high finance is begun between President Alexander, of the Equitable Life Assurance Association, and James H. Hyde, its First Vice-President and majority stockholder.

February 15.—The Kansas House of Representatives passes the bill for a State oil refinery already passed by the Senate.

The New York Legislature adopts a resolution directing an investigation of the Telephone Trust.

February 16.—A truce is patched up between the warring factions of the Equitable Life Association on the promise of Vice-President Hyde to mutualize the company.

February 17.—Governor Hoch, of Kansas, signs the bill appropriating \$400,000 for the erection of a State oil refinery.

February 20.—Mrs. Jefferson Davis, in a letter to the public press, scores General Nelson A. Miles for having placed her husband in irons, and asks General Miles to publish a photographic copy of her alleged letter of thanks.

An explosion in a coal mine at Virginia, Ala., entombs 160 men.

Thomas W. Lawson, in *Everybody's Magazine*, continues his story of the formation of the Amalgamated Copper Company, outlines its devious operations under Standard Oil, accuses James M. Beck, ex-Assistant Attorney-General of the United States, of perjury, and attacks James H. Eckels, ex-Comptroller of the Currency, for his part in the infamous Cleveland bond deal.

February 21.—Mayor George B. McClellan and ex-Mayor Seth Low, of New York, appear before the Legislature at Albany to plead for a larger water supply for New York City, claiming that a few dry years would bring a water famine to the metropolis.

President Mellen, of the New York, New Haven & Hartford Railroad, refuses to arbitrate with the firemen who threaten a strike.

Fifty of the 160 miners entombed by the explosion at Virginia, Ala., are known to be dead, and little hope is entertained for the remainder.

A manuscript copy of one of Edgar Allan Poe's poems sells for \$1,000 in New York.

John W. Gates and Joseph H. Hoadley claim to have secured control of the Tennessee Coal & Iron Company.

February 22.—Washington's Birthday is generally celebrated throughout the United States and foreign nations. President Roosevelt is the chief orator at the University of Pennsylvania, which institution confers the degree of LL.D. on himself and Emperor William of Germany. A bust of Washington is presented to Congress by M. Jusserand, the French Ambassador.

A "boodle fund" of \$60,000 is produced in court at the trial of Charles Kratz at Butler, Mo. Thomas K. Niedringhaus, Republican nominee for United States Senator, is summoned as a witness in the case.

Professor William Osler, in his farewell address to Johns Hopkins University, states that men after forty years of age are "comparatively useless," and after sixty are entirely so.

President William R. Harper, of the University of Chicago, undergoes an operation for cancer while thousands of students and friends pray for his recovery. Physicians find cancer, but are unable to remove it.

Colonel William F. Cody, "Buffalo Bill," says he will apply to Howard Gould, the millionaire, for \$125,000 furnished Mrs. Howard Gould when she was an actress.

February 23.—General Nelson A. Miles, in the *Independent*, makes a rejoinder to those who had criticized him for placing Jefferson Davis in irons, publishing several letters, among them a note from Mrs. Davis thanking him for "kind answers," and begging him to look after her husband's health.

Standard Oil stocks drop 10 points, or \$41,000,000 in nine days.

February 24.—The New York State Factory Inspector finds immigrant boys who are virtually made slaves and compelled to work twenty hours a day without pay.

Governor Vardaman, of Mississippi, employs troops to protect from lynching a negro accused of having assaulted a white girl.

Frank H. Monnett, ex-Attorney-General of Ohio, reaches Topeka, where he will assist in framing a case in the Supreme Court to oust the Standard Oil Company from the State.

The plan for mutualizing the Equitable Life Assurance Society fails, and the war between the Hyde and Alexander factions goes on.

The Vanderbilt interests purchase a majority of the stock of the Boston & Maine Railroad.

February 25.—Wall Street sees a wild day on the stock market because of a reported merger of the New York Central and Union Pacific railroads.

Independent crude oil producers and refiners of Kansas, Ohio, Illinois and Indiana unite to fight the Standard Oil Company.

A two-million-dollar fire sweeps Hot Springs, Ark., causing several deaths.

Richard Croker, former chief of Tammany Hall, sails for Ireland.

The Engineering Committee of the Isthmian Canal Commission estimates that a sea-level canal can be constructed for \$230,500,000, and that the time occupied in building it will be ten or twelve years.

February 26.—A five-million-dollar fire sweeps the river front at New Orleans. Elevators and piers destroyed, entailing future loss of export trade.

February 27.—By the collapse of the second floor of the African Methodist Episcopal Zion Church, of Brooklyn, N. Y., eleven persons are killed and several score injured.

The Alexander-Hyde fight in the Equitable Life Assurance Society is carried into the courts.

After making from \$5,000,000 to \$8,000,000 in wheat, John W. Gates and his associates throw their holdings on the market, causing a sharp decline.

March 1.—Three New York thieves testify that they have been dividing proceeds with the police to secure immunity from arrest.

March 2.—H. Rider Haggard, the celebrated British novelist, visits the United States for the purpose of studying colonization plans for the poor.

March 6.—A general strike is declared on all the Subway and Elevated lines of New York City.

The Russo-Japanese War

February 7.—A growing peace sentiment is manifest in Russia, and press and public are becoming more outspoken against the further prosecution of a losing war.

General Kuropatkin sends word of a raid in which fifty Japanese were killed.

February 8.—Admiral Togo returns to his flagship, and resumes sea duty.

Tokio hears of skirmishes near Mukden, in which the Russians were defeated.

February 10.—The Russians retire from Songchin in Northeastern Corea.

The Russian Baltic fleet is reported off Madagascar on its way to the Far East.

General Stoessel says in answer to critics that he sacrificed glory to humanity in surrendering Port Arthur.

February 12.—Field Marshal Oyama reports two skirmishes in which the Russians are defeated.

February 13.—General Kuropatkin reports that a Japanese cavalry raid has destroyed several miles of railroad north of Mukden; also that the Japanese have resumed the bombardment of Lone Tree Hill.

February 15.—A large force of Russian cavalry moves against the Japanese left in the vicinity of Heikontai.

The Russian third Pacific squadron sails from Libau on its way east.

February 16.—Russian attacks at Waitao Mountain are repulsed, and the cavalry force, which moved against the Japanese left, is forced to retreat.

February 17.—General Gripenberg, who was removed from his command in the Russian army after the battle of Heikontai, is given an audience by the Czar, and says that General Kuropatkin refused to support him when victory was within reach.

February 18.—The Russian strike closes a number of Government factories and interferes with manufacturing and shipping of war supplies.

February 20.—Russian cavalry passes Japanese left flank near Hun River. Movement of no special importance, and losses insignificant.

Russia's third Pacific naval squadron passes through the Great Belt off Denmark on its way to join the Baltic squadron.

Tokio gives out semi-official statement that Japanese casualties at the battle of Heikontai were near 10,000.

February 21.—Lieutenant-General Stoessel, former commandant at Port Arthur, lands at Kaffa, Russia, on his return from the Far East, and is received by a cheering crowd.

February 22.—A Cossack raid reaches nearly to the Yalu River, and destroys a Japanese depot of supplies.

February 24.—The Japanese move northward along the eastern coast of Korea, fortify Port Lazareff and threaten Vladivostok.

The Japanese move forward in the Tsinkhetchin district, and after desperate fighting force the Russians to abandon their base at Beresneff Hill.

February 25.—A battle involving General Kuropatkin's left flank opens south of Mukden.

Mr. Kogoro Takahira, Japanese Minister to the United States, says that his country has made no peace advances to Russia.

February 26.—The battle brought on by the flank movement of the Russians is continued, and General Kuropatkin admits another defeat. Japanese capture the city of Tsinkhetchin, drive in the Russian outposts and cross the Sha River. It is reported that Oyama's artillery is even throwing shells into Mukden.

February 27.—A number of Russian naval officers returning from Port Arthur are entertained by Count Cassini in Washington. Other Russian officers from the same siege land at Victoria, British Columbia; in interviews they speak disparagingly of General Stoessel, one expressing the opinion that Stoessel showed himself to be “not a hero, but a coward.”

Fighting continues about Mukden, the Japanese being the aggressors. It is now certain that General Kuroki has captured Tie Pass from the Russians.

February 28.—The battle near Mukden becomes general along a 100-mile front, and involving 700,000 men.

It is stated that the Cossacks lost 2,000 men at Tsinkhetchin.

March 1.—The Japanese make a terrific bombardment of Lone Tree or Putiloff Hill, employing for the purpose the great siege guns used at Port Arthur.

Fierce fighting rages over the Sha River bridge, which is finally held by the Japanese.

Field Marshal Oyama gradually forces the Russians back in the general battle about Mukden.

March 2.—The Russian flanks are pushed backward and Kuropatkin's entire army continues to retire before the onslaughts of the Japanese.

March 3.—General Kuropatkin is in retreat toward Tie Pass and a portion of Oyama's army reaches a point eleven miles west of Mukden.

The battle around Mukden continues, the results generally favoring the Japanese.

March 4.—General Kuropatkin's left flank suffers and his position grows still more critical.

March 5.—A fierce artillery engagement rages throughout the day and Marshal Oyama continues his flanking movement.

March 6.—General Kuropatkin is hemmed in and vigorously attacks the Japanese left centre. Marshal Oyama relentlessly tightens his lines in an endeavor to trap his foe.

General Foreign News

February 7.—As a result of the massacre of Russian citizens on January 22, the Social Democratic Party of Russia calls on workmen to march on the Czar's palace with arms in their hands instead of ikons and petitions.

Father Gapon, the Russian revolutionary leader, is reported to have escaped to Switzerland.

General Trepoff, the "man of iron" who has been placed at the head of the police system at St. Petersburg, threatens to close the universities because of the revolutionary sentiment there existing.

Disorders continue in Russian Poland, and several strikers are killed by the troops.

The assassin of Soisalon Soininen, Procurator-General of Finland, is identified a former student at one of the Finnish universities.

February 8.—Because of the failure of the employers to concede the demands of their workingmen, new strikes are declared at St. Petersburg, Vassili Ostroff and other points in Russia.

Strikers tear up the Siberian Railway east of Irkutsk.

Maxim Gorky, the Russian novelist, is questioned in court and afterward returned to prison.

The students of one of the St. Petersburg schools refuse to attend lectures because of police interference.

Because of the continued state of disorder in Russian Poland, many refugees leave the country.

The new protocol between the United States and Santo Domingo is signed at Santo Domingo. It provides for the territorial integrity of the island republic and for ratification by the United States Senate.

The British Government decides that John H. Gaynor and Benjamin H. Greene, American refugees in Canada, may be extradited and returned to the United States.

King Oscar, of Sweden, turns over the government to Crown Prince Gustav.

February 9.—Many strikers are killed by the troops at Sosnovice, Russian Poland.

M. Rouvier, the new Premier of France, submits a bill absolutely divorcing church and state.

German mine strikers denounce the action of their leaders in voting to return to work, and thousands decide to continue the struggle.

February 10.—Over sixty strikers are killed and hundreds are wounded by troops at Sosnovice and Lodz in Russian Poland.

Strikes are being renewed to such an extent in St. Petersburg that the authorities are growing apprehensive.

February 11.—Prince Paul Dolgorouki says that the Czar must call a Zemsky Sober (a popular assembly) if he would avoid a revolution.

The strike at Lodz now involves 100,000 men.

Four thousand ironworkers strike at Kharkoff.

Disquieting conditions are reported at Batoum in the Caucasus, with a general tie-up of railway lines in the vicinity.

February 12.—Three aeronauts make a balloon voyage from London to Paris in a little over six hours.

The Czar promises a commission, including workingmen, to deal with the labor problem.

Russian conscripts and reserves mutiny in several provinces. Cossacks kill eighteen at Kieff and wound over eighty.

Franz Kossuth, the leader of the Hungarian Independence Party, is received in audience by the Austrian Emperor.

February 13.—The Russian Cabinet decides to adopt reform measures, including some sort of concessions to the workingmen.

Arguments are concluded in the North Sea case before the International Commission at Paris. Decision, it is announced, will

be handed down at a later date.

It is reported from Essen that the German coal strike, which has been one of the most important industrial struggles in German history, is ended.

February 14.—King Edward opens the British Parliament. The speech from the throne contains no significant passages.

February 15.—The strike in Warsaw again becomes general.

The Emperor of China approves a plan for a parliament of the empire's leading officials.

President Castro, of Venezuela, refuses to arbitrate the asphalt claims and other disputes between that country and the United States.

February 16.—The strike at St. Petersburg, which was reported to be abating, breaks out with renewed force.

On a test vote the Balfour government is sustained in the British House of Commons by a majority of 63.

The Venezuela Supreme Court reaffirms its order sequestering the lands belonging to the American Asphalt Company.

February 17.—The Grand Duke Sergius, uncle and brother-in-law of the Czar and the most reactionary and influential of the Grand Ducal clique, is blown to pieces by a bomb in the Kremlin, Moscow. The assassin, who is dressed in the garb of a workingman, is arrested.

February 18.—The Russian strike spreads to the employees of many railways and to the telegraphers.

Two Russian officials are assassinated in Transcaucasia.

Consternation reigns among the rulers of Russia, and members of the royal family do not venture to appear in public.

The British Government announces that in 1911 it will take over the entire property of the National Telephone Company.

February 20.—Three thousand Russian students and professors, in mass meeting, denounce the Czar, demand constitutional government and shut up the University of St. Petersburg till September.

Martial law is declared at Tsarskoe-Selo, the residence of the Czar.

China expresses the desire to pay all her indemnity at once, but some of the Powers object, as it deprives certain officials of commissions and interest.

Sir John E. Redmond leads an Irish attack on the British ministry.

February 21.—The Home Rule amendment offered by Sir John E. Redmond is defeated in the British House of Commons, and the Balfour government is sustained, but by the reduced majority of 50.

A general revolt against the Russian Government is reported throughout the entire Caucasus region.

February 22.—The Armenians seize three towns in the Caucasus.

Sir John E. Redmond renews his attack on the Balfour ministry, and the government majority is still further reduced to 42.

Polish disturbances continue, and all trains from Warsaw on the Vienna line are discontinued.

Many bodies of slain strikers are found in the streets of Baku, a town in the Caucasus.

Workmen destroy factories at Riga, Southern Russia.

February 23.—The London *Times* states that the Czar has decided to call a Zemsky Sober, or popular assembly, to decide, among other things, as to the continuation of the war in the Far East. The German Court, on the other hand, gives out the statement that the Czar is determined to continue the war.

The Tartars are turned loose on the Armenians in the Caucasus revolt. The number of corpses found in the streets of Baku is reported as high as 300. The revolt continues in other towns in the region, 40,000 Georgians being involved.

The strike extends at Warsaw and more railway lines are tied up.

Leonide Andreef, a famous Moscow author, known as “The Little Gorky,” is arrested.

Funeral services are held over the remains of Grand Duke Sergius at Moscow. The Czar attends a requiem at Tsarskoe-Selo. Both ceremonies pass without special incident.

February 24.—An unsuccessful attempt is made to assassinate President Morales, of Santo Domingo. Five persons are arrested.

The famous Simplon Tunnel through the Alps, leading from Switzerland to Italy, is completed.

It is announced from London that Sir Henry Irving, the famous actor, is so broken in health that he may never again appear on the stage.

A coffin believed to contain the long-sought remains of John Paul Jones, the American Revolutionary naval hero, has been found in Paris.

Strikes and rioting continue practically throughout the entire Russian empire, many railway lines are tied up, and moujiks are becoming fired with the idea of a general land division.

February 25.—The International Commission to inquire into the North Sea incident concludes its sittings in Paris and hands down its decision that the action of Admiral Rojestvensky, commander of the Russian Baltic fleet, in firing on the British fishing vessels was unjustified.

The Warsaw railway strikes are reported partially settled, but a street railway strike begins and disturbances continue.

Severe fighting between the Armenians and the Mussulmans continues in the Caucasus region; leading officials and merchants are assassinated at Batoum, and revolutionary manifestoes in favor of a republic are circulated broadcast.

The Countess of Warwick begins an automobile tour of Great Britain for the purpose of assisting the various labor candidates for Parliament.

A general railway strike begins in Italy, the workmen being dissatisfied with the treatment proposed to be given them under the bill creating State management of railways.

It is announced that the Czar has decided not to call the Zemsky Sober, and that he has irrevocably decided that the war with Japan must go on.

February 27.—Maxim Gorky, the famous Russian novelist, is released from prison only to be rearrested by order of General Trepoff and banished to Riga.

President Morales lays before the Dominican Congress the protocol with the United States.

Berlin's new cathedral is dedicated in the presence of the Emperor and delegates from all parts of the world.

The Czar, in an effort to break the strike, orders a raise of wages on State railroads and in Government arsenals.

The disturbances in Russian Poland are augmented by a serious revolt of the peasantry in fifty villages.

A second Kishineff horror is reported from Theodosia in the Crimea, where forty-seven Jews were killed and many more injured in a recent massacre.

February 28.—The strike situation in Russia grows steadily worse, especially in Poland, where a coal famine is threatened.

The Russian Council of Ministers decides on more repressive measures and definitely refuses to call the Zemsky Sober.

March 1.—The workmen selected by the Czar to organize a commission on the labor situation meet and demand concessions from the Government before taking further action.

Lord Selbourne is chosen British High Commissioner in South Africa in place of Lord Milner, resigned.

March 2.—The Russian ministry votes to grant the people religious freedom.

The majority for the present British ministry is reduced to 24.

March 3.—The Czar calls a representative assembly, but without power except to consult and advise.

Rioting continues in Russian Poland and a general strike is ordered at St. Petersburg.

March 4.—Cossacks kill nine students and wound many more at Tomsk.

March 5.—The Czar's action in calling an assembly has little or no influence on the Russian situation, which grows more grave.

Obituary.

February 7.—Joseph H. Manley, prominent Republican politician, dies at his home in Augusta, Me., aged 62.

February 8.—Rear-Admiral Frank C. Cosby, of the United States Navy, dies at the age of 65.

February 9.—Adolf von Menzel, famous German painter, dies in Berlin.

Chief-Justice Pardon E. Tillinghast, of the Supreme Court of Rhode Island, dies at the age of 68.

Henry W. Blodgett, former United States District Judge, dies at the age of 84.

February 11.—Sylvester Scovel, the well-known war correspondent, dies in Havana, aged 36.

February 14.—James C. Carter, leading New York lawyer, dies at the age of 78.

February 15.—General Lew Wallace, the celebrated author, dies at his home in Crawfordsville, Ind., aged 78.

William Cullen Bryant, publisher of the Brooklyn *Times*, dies at the age of 56.

February 16.—Jay Cooke, once famous as a financier, dies at the age of 83.

February 20.—Norton P. Otis, Member of Congress from New York, dies at the age of 65, at his home in Yonkers, N. Y.

February 21.—Jacob Worth, well-known Brooklyn politician and race-track man, dies at Hot Springs, Ark.; age, 67.

February 23.—W. F. G. Shanks, a well-known New York newspaper and magazine editor, dies in Bermuda, aged 68.

February 24.—Sidney Dillon Ripley, Treasurer of the Equitable Life Assurance Society, dies from the effects of an operation for appendicitis, at New York.

February 25.—Edward Cooper, ex-Mayor of New York and only son of Peter Cooper, dies at New York City, aged 81.

February 27.—Honorable George S. Boutwell, former Governor of Massachusetts, United States Senator and Secretary of the Treasury, dies at his home at Groton, Mass., aged 87.

Harry Morris, well-known American comedian, dies at New York, aged 49.

Henry C. Whitney, formerly one of Chicago's leading lawyers, dies at Salem, Mass., aged 74.

Richard A. Donnelly, Quartermaster-General of New Jersey since 1890, dies at his home in Trenton, aged 64.

March 1.—Mrs. Jane Lathrop Stanford, widow of Leland Stanford and famous for her gifts to education, dies suddenly in Honolulu. Subsequent investigation shows she was poisoned.

Edward O. Wolcott, former United States Senator from Colorado, dies at Monte Carlo, Monaco, aged 56.

March 4.—H. L. Muldrow, Assistant Secretary of the Interior under President Cleveland, dies at Starkville, Miss.

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